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Virginia Board of Education, Special Meeting, Tuesday, December 12, 2023

Date	Tuesday, December 12, 2023
Place	Virginia Board of Education (Virginia Department of Education), Richmond, Virginia
Length	6h 46m (video)

- Official meeting video (VDOE, YouTube): https://www.youtube.com/watch?v=nWTiZm0Ib-o
- Board of Education meetings, agendas and minutes (VDOE): https://www.doe.virginia.gov/state-board-data-funding/virginia-board-of-education

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[00:05:49] So it is 9 o'clock, and I'm going to call this meeting to order now. I just want to note that I've approved the remote participation of Mr. Rotherham and Dr. Siebert. Additionally, Mr. Hansen, who will probably not be with us until about noon, as we discussed, as he and I discussed, to be able to be with us by virtual means.

[00:06:13] So I have approved their participation remotely under the board bylaws and 2.2-3708.3 B3 of the Code of Virginia because their principal residences are more than 60 miles from the meeting location. And as is customary at this time, we'll begin our meeting with a moment of silence followed by the Pledge of Allegiance.

[00:06:35] Pledge allegiance to the flag of the United States of America and to the Republic for which it stands, one nation, under God, indivisible, with liberty and justice for all.

[00:07:07] Okay, so can we get a motion to approve the agenda as presented, please? Absolutely. Second. Ms. Kilgore?

[00:07:24] Yes. Ms. Holton? Yes. Dr. Siebert? Aye. Dr. Northern? Aye. Mr. Sturdefin? Aye. Mr. Rotherham? And chair votes aye. Okay, and staffs provided the members of staffs provided members of the board with

the draft minutes from our November meeting. Is there a motion to approve those minutes as presented to the board? So move. Ms. Kilgore? Aye. Ms.

[00:08:02] Holton? Aye. Dr. Siebert? I'll come back. Dr. Northern? Aye. Okay, he said aye. Mr. Sturdefin? Aye. Mr. Rotherham?

[00:08:16] Fair vote's aye. Okay. So as we all know, we are, we've convened today in a special meeting this morning to consider a number of items that need to be finalized before the end of the year. And I want to thank you all for making yourselves available here today for us to get this crucial work completed. And so we will move into our public comment section. And so, as you all know, in our public comment time, we generally accept public comment on all matters related to public education at our regular meetings, but have not generally accepted public comment

[00:08:55] at special meetings. However, given the nature of this particular meeting and the items that are on the agenda today, the board's decided to accept public comment on the agenda items only. We ask that you please provide your name and affiliation at the beginning of your remarks and speakers should limit their comments to three minutes.

[00:09:19] You will notice our timer, okay, good. You'll notice the timer on the screen. It's green at your three minutes and then it turns yellow and then red as it's time for you to close your remarks. So speakers, please provide your comments if you have written comments to Mr. Joe Crook here in the front and he is the department's regulatory and board coordinator.

[00:09:45] Joe will provide your comments and any written items you have for the board to the board members as necessary you can also email any comments that you might have to jim chapman our director of board relations so at this time i would like to call jenna alexander followed by jeremy bennett good morning president creasy members of the board superintendent coons my name is jenna alexander i'm the president of the virginia pta and a proud

[00:10:21] parent of two lowton county public school students i'm here today to share our disappointment with the proposed standards of quality. On September 12th and again on October 25th we joined with 11 other statewide education associations to share our unwavering support for implementing high priority recommendations made by the 2023 JLARC report and we're disappointed to see those letters somewhat disregarded. I want to remind you that our 130,000 members across roughly more than 900 of Virginia's public schools join Virginia PTA every year and for the past decade Virginia PTA has been one of the most outspoken groups advocating for the elimination of the support

[00:10:57] cap and asking for funding to reflect actual school division staffing practices according to the j-lock report school divisions employed 51 percent more staff in 2021 than recommended by the soqs our members see principals serving lunch helping with trash we are the parents sitting in hallways helping with math and reading instruction volunteering in the library and in the cafeteria the support cap has effectively restricted the way school divisions can utilize funding to meet the needs of our students.

[00:11:25] This is particularly problematic because over the last several years, we've seen increased enrollment of special education and English language learner students, both of which need additional services to reach their full academic potential. Additionally, we see variable levels of enrollment across our school divisions, which means that an arbitrary cap limits the support for those students.

[00:11:43] What concerns us is the first half of the standards of quality document talks about the urgent academic needs of our students, and as a board, you've established that you want to raise the cut scores, adjust accreditation to reach this North Star of having high expectations for every learner and closing achievement gaps. And while those high expectations are laudable, the proposed standards of quality don't provide enough staffing to accomplish that goal. Virginia has had this decade-long experiment now in restricting support staff, and it's had a clear result on our schools. We have the biggest drop in reading performance in 30 years, achievement declines in math, science, and history, rising teacher vacancy rates,

[00:12:19] and our school divisions receive less k-12 funding per student than the 50 state average the regional average and three of virginia's five bordering states school divisions in other states receive 14 more per student than school divisions in virginia this is unacceptable um we urge you to revisit the soqs that are proposed and include the recommendations that are made by jlark that immediately provide staffing and funding to meet the needs of our students you have a recommendation here to change the high school experience and while that's great there's not a corresponding recommendation for the school counselor ratio to reach one to 250 to support the course scheduling and career planning support that our students will need to do that we support the development

[00:12:57] of the statewide iep program but part of the significant problem in special education has been the lack of staffing to fulfill the ieps we also appreciate the proposal to modernize the state data collection system and to study student-based form funding but that is a long-term goal we need urgently funding to support our students needs in the next school year and so we urge you to eliminate the support cap adjust the staffing ratios to reflect actual school division staffing and use division averages to calculate salaries modernize the way funding is used for low income

[00:13:28] thank you alexander thank you very much thank you jeremy bennett morning president gracie members of the board dr kuns uh jeremy bennett representing the virginia association of counties vaco uh have very brief remarks this morning just want to uh thank the board on behalf of vaco for your work in the biennial review process including the inclusion of some of the jlark uh recommendations and just say we we encourage the board to work with the general assembly moving forward to try

[00:14:04] to implement as many of them as possible and also appreciate the uh the flexible uh components of the prescriptions regarding local spending requirements for soq as you know local government spend above and beyond the requirements for uh the soq so any additional flexibility and how those dollars are administered we definitely appreciate so just want to thank the board for its work and look forward to working with you going forward. Thank you Mr. Bennett. Scott Brabrand.

[00:14:30] Good morning President Creasy, State Superintendent Dr. Coons, and members of the Virginia Board of Education. I'm Scott Brabrand. I'm Executive Director for the Virginia Association of School Superintendents and I'm here to comment on your SOQ amendments. Amendment 1: Flexible Funding.

[00:14:53] We continue to support flexible funding for our schools and we're open to considering a student weighted funding formula but any new formula must address the key finding of the jlark study that virginia is underfunding all of its public school divisions any new formula must increase funding across all of our school divisions further understanding of the pros and cons of a new formula is essential we're going to be setting up a webinar next month to do that with our superintendents and others in the meantime we also continue to advocate for full repeal of the

[00:15:30] support cap amendment number two academic flexibility we're supportive of this amendment amendment three work-based learning and high school redesign we are supportive of additional work-based learning opportunities for students in high school we need to ensure some flexibility for students based on their specific post-secondary plan so any redesign still needs to have some flexibility in it for kids or on a college track or looking more for career military work-based learning should not be a one-size-fits-all approach for amendment number four special education we're

[00:16:06] supportive of improving the special education experience for our students and parents there would need to be a multi-year phased approach to a statewide iep system we advocate for a comprehensive assessment of the current virginia iep system that some school divisions are already using with the shared IEP system before deciding to move forward with this statewide IEP approach. Amendment number five, educator pipeline. We're generally supportive of this amendment provided there is extensive staff support provided to these school divisions

[00:16:42] who have that vacancy rate of over three percent. Increasing teacher salaries will remain a key component to attracting teachers to the profession for the educator pipeline. And then number six, the data modernization a statewide student information system is an ambitious goal for this board of education and serious consideration must be given to the loss of school district flexibility and autonomy if virginia chooses to go in that direction financial considerations must be reviewed as many districts have spent millions on purchasing and training personnel on existing systems there's two big systems right now in virginia and about two-thirds use one system

[00:17:21] and another third use the other system and that third represents about 50 of the kids so you've really got a trick there to figure out how to do that with the investments that local districts have made i'm sure that would be a consideration that you all look at as you continue to look at data modernization thanks to many of you for coming to our fall conference and we look forward to working with you in the new year thank you so much are there any other people in the audience that would like to speak jt mr kessler please come up good morning um our

[00:17:58] president cardell patil was going to um speak today but he's feeling under the weather uh president creasy members of the board of education dr coons my name is jt kessler i'm the director of legislative services with the virginia school boards association we'd like to express our thanks to dr coons the board of education and the department staff who reached out to our association for feedback on the soqs earlier this fall vsba appreciates the board's recommendation that the general assembly investigate model and develop a plan for a potential change from a staffing based to a student-weighted funding model for determining the state and local shares of costs of standards

[00:18:35] of quality however vsba would like to reiterate that the jlark report included several recommendations including the elimination of the soq support cap the need for virginia to increase its share of funding for support services to K-12 education and the crucial role compensating teachers at the national level has on keeping effective educators in the classroom. We hope that these findings from JLARC, in addition to the Board's urging to investigate and develop a new funding model, will be key discussion points when legislators return next month. BSBA is delighted

[00:19:09] to see the focus of local flexibility throughout the Board's SOQ recommendations. Each school division across the commonwealth has unique needs that require innovative strategies designed by our educators at the district and school level when given the resources with flexibility to implement ideas our

schools will meet the needs of students as evidence with the recent flexible monies to assist in learning recovery programs to combat chronic absenteeism and implementation of the virginia literacy act that were appropriated by the general assembly this past fall vsba supports

[00:19:45] the board's recommendation that the general assembly appropriate funds for assessing of data in one system this change will save dollars and allow for more collaboration between the doe and local school divisions our biggest concern is the board's recommendation letter e we believe this will become an unfunded mandate and are concerned about the financial and human resource impact this will have on our most challenged school divisions we would encourage the board to recommend the general assembly allow for more local flexibility in licensing at the division level while directing the board to look at creative ways for alternative pathways that

[00:20:23] lead to teacher licensure as a more productive means to assist our school divisions in conclusion i appreciate your uh time allowing me to speak to you today and i wish each of you a happy holiday season thank you very much is there anyone else who would like to speak today okay i'll close the

[00:20:48] public comment session. All righty. All right. So we are moving on to our consent agenda. Is there a motion to approve the item A on our consent agenda? So moved. Ms. Kilgore? Aye. Ms.

[00:21:17] Holton? Aye. Dr. Siebert? Aye. Dr. Northern? Aye. Mr. Sturdefin? Aye. Mr. Rotherham? And chair votes i got a thumbs up okay so we will move on to our action discussion items letter b final review of the board of education 2023 annual report um dr coons are you going to do any kind of presentation here i think we've had extensive conversation and board feedback i just want to

[00:21:55] compliment the board on the collaborative nature of the data the resources and really getting a full comprehensive picture in the annual report. So really appreciate the collaborative nature that we were able to put that report together. So I'd like to also echo my encouragement on how well staff and the board work together on feedback and comments on the annual report. And Dr. Koons and I have reviewed all of that feedback, incorporated those comments here, representing the majority of

[00:22:29] board's wishes from our last meeting and so with that i'd like to get a motion to approve the 2023 annual report as presented and delegate any final edits authority for any final edits to the board president and the superintendent so mo second any discussion madam president i do have one further amendment i would like to address uh and that is and i did raise it before and uh uh it may have this i'm proposing that the language that says these losses were most severe

[00:23:07] among low-income and minority students and students whose schools were closed longest i'm reading that in the executive summary on the in the second paragraph and i'm uh i propose that we delete the language and students whose schools were closed longest i believe that language may have been deleted from the substantive from the from the full report but not from the executive summary and my argument for it is is uh threefold first it's just um the evidence for it is uh in my

[00:23:45] estimation um uh inconclusive at best uh the virginia evidence is very uh sparse and it disappears if you control for poverty uh the national evidence the pisa the international evidence pisa report just came out saying that the countries that opened sooner did not perform significantly better in the pandemic than those who closed uh who stayed closed longer and but finally and most importantly um our uh our school board leaders and other local educational leaders

[00:24:23] had very, very tough challenges during the pandemic. We were operating under so many unknowns. They were trying to manage so many priorities, keeping their staff safe and alive, keeping their students safe and alive, and protecting against learning loss. And they were all doing the best they could, in my opinion, under very difficult circumstances with so many things we just didn't know at the time. And to me, these words are unnecessarily picking a fight with those who close schools longer. Nobody in Virginia closed schools very long, frankly. Most of them were

[00:25:00] open by March of 21. And it's just in this era where we need to be moving forward and pulling everybody together. How do we address learning loss? How do we get all entities, local localities, state leadership, folks across partisan divides, all working together. It's just not necessary. The language adds nothing, and therefore I propose that we, and I would therefore move that we amend, if that's my correct motion, the report to delete that language.

[00:25:33] There are other, you know, issues in the report that some of, you know, I agree with some of the language and not with all the language, but I'm comfortable going forward with the rest of the report. But as to that, I propose an amendment. Mr. Rotherham, sorry, he had his hand up.

[00:25:54] Thank you. Thank you, Madam President. Thank you, Ms. Holden. I appreciate your comments. I disagree on this one for a couple of reasons. First of all, I don't think this is about blame. I don't think it's about casting blame on decisions that were made.

[00:26:10] That's in the past, and I think we all can agree that the spring of 2020 was a really challenging, difficult time. We can all remember we were, you know, washing our grocery bags and all sorts, you know, leaving our mail untouched for a few days. It was a different time. And so I don't think we need to go back and, like, second guess.

[00:26:27] The issue becomes, though, I don't think we can say a couple of things. First of all, I don't think we can say most schools are open by March 21. Because first of all, that's a year. And then even then, they were not open necessarily for normal operations. It was disrupted. If you were a special ed parent, you weren't, and we're still sort of trying to unwind what happened there and address that.

[00:26:50] Like, this was a substantial thing. And so it's not about casting blame, but it is about saying, this is a major problem for the Commonwealth that as leaders, we need to be absolutely focused on. The piece of results didn't say that there was no relationship. They just said it was a modest relationship and other things mattered.

[00:27:08] And I would just suggest this whole conversation just doesn't make a great deal of sense to me. But if we don't think having kids in school for orderly, live instruction matters, what are we doing here? Like, of course, this matters. And of course, the longer you're out of school, the more impact you're going to have.

[00:27:28] Otherwise, what is the point of any of this? We have good educators around the state, and if they have the opportunity to teach kids, we're going to see benefits, and if they don't, we're not. And so I just don't see this in any way as casting blame or picking a fight. I do see it as part and parcel of just leveling with people about this enormous challenge that we face.

[00:27:48] Mr. Stardefine? I was going to say something very similar. I will disagree with you. On one hand, oftentimes you hear about absenteeism, chronic absenteeism, why we have to combat that.

[00:28:03] know from chronic absenteeism it leads to learning loss so i will not support the amendment okay well we have a motion made and properly seconded um so if there's a substitute motion to amend it then that's how we would take that motion up thank you madam president i will make a substitute motion to adopt the report with the one change that the sentence would read these losses were most severe among low-income and minority students period that's my substitute motion is there a second

[00:28:39] second okay all those in favor of the motion um miss kilgore we're voting on ann's motion correct correct uh nay um miss holton aye dr siebert motion is to amend the language as presented this is the substitute motion and substitute substitute motion yes nay um dr northern hi

[00:29:14] mr sturdifant hey mr rotherham and chair votes nay so that amendment fails or that motion fails um so we are back to the original motion which is to approve the 2023 annual report is presented and delegate authority for any final edits to the board president and the superintendent So, Ms. Kilgore, how do you vote?

[00:29:42] Aye. Ms. Holton? Aye. Dr. Siebert? Aye. Dr. Northern? Aye. Mr. Sturdefin? Aye. Mr. Rotherham? Aye. And Chair votes aye. Okay, moving right along.

[00:30:00] Item C, final review of the Board of Education Comprehensive Plan. Again, thank you to board members who were so eager to be a part of this process and helping us get feedback and comments on the Comprehensive Plan. And so unless, Mr. Chapman, do you have a presentation or are you just there for questions if they have arrived?

[00:30:24] Anything, Dr. Koons, from you on this one? Yeah, we really appreciate the board's recommendation around a work plan. And given we wanted to have both the annual report, the work plan, the SOQ prescriptions to develop that work plan for the comprehensive plan, We will take the actions that happened today, finalize the draft of the work plan, and then bring the work plan component of the comprehensive plan to you to discuss in January for a first conversation.

[00:30:52] So that is not part of this comprehensive plan today because we wanted to make sure that we were able to see the will of the board today and then finalize a draft of that work plan for discussion in January. Okay. Can I get a motion to approve the comprehensive plan as presented and delegate any authority for final edits to the board president and the superintendent?

[00:31:16] So moved. Second. Any discussion? Ms. Kilgore, how do you vote? Aye. Ms. Holton? Aye. Dr. Siebert? Aye. Dr. Northern?

[00:31:32] Aye. Mr. Sturdifant? Aye. Mr. Rotherham? Aye. And chair votes aye. Okay. Moving right along to D. Final review of the Board of Education 2023. prescriptions on the standards of quality. So I think what we're going to do is discuss each item separately. So we'll call for motions separately here because we do, if you all are on your attachment here, the draft, you'll see those recommendations at the bottom there of each

[00:32:11] section and so um the recommendation okay so if we go with the first prescription what i'd like to do is get a motion to approve the prescription a regarding the student-weighted funding formula or if we if we need to take this up with this amendment then we can that recommendation says serious give serious consideration you guys there yet are we having technology hiccups

[00:32:46] If I may, Madam President, so the question is whether the language is that the General Assembly investigate, model, and develop versus investigate, model, and give serious consideration to? Those are the key choices? Correct. Those are, yes. The rest of the language is all the same?

[00:33:03] That's correct. Thank you. Madam President? Yes. Dr. Siebert? Yeah, I envision this was a recommendation I performed. I thought give serious consideration was strengthening it.

[00:33:19] If it perceives that that's less strong than developed, then I withdraw that recommendation. Okay, so what's the will of the board on this one? Would we like to, Dr. Northern?

[00:33:37] Yeah, I mean, I think all of us have been in agreement that this is the direction that we'd like to go. The public comment even today supports that direction. So I feel like develops a stronger verb. And we're trying to give a message that this is the will of the board and the people. So I would support leaving the verb as develop as opposed to give serious consideration.

[00:34:01] Not that we tell the General Assembly what to do, but. OK, so are you making that motion then? I am. Thank you. Do I have a second? Second. OK, so this is we're voting to keep the language as presented rather than taking the recommendation.

[00:34:23] Everybody on board with that here. Miss Kilgore. I'm sorry, just a brief discussion. Sure. So the language, I'm comfortable either way on the language, but just to be clear, while we're asking the General Assembly to give serious consideration, if it is part of the SOQs, then we need to give serious consideration.

[00:34:40] And it is my hope that the work plan for next year includes, I mean, really what should happen is we should develop an SOQ prescription that would be a student-weighted funding formula for the General Assemblies to either reject or adopt or amend.

[00:35:00] That's the process. The Constitution gives this to us, Dr. King. Initially. So I'm happy to have a presentation for the January meeting on student weight of funding formula. Can you tell me what kinds of things you want in that presentation so we can make sure that we have that prepared? Do you want more of a general overview of how different states have done that? Do you want a model? Do you want what kinds of things would you like to see in that presentation? So I'm happy to talk about that now or later. I would just suggest that if we're going to move towards a student weighted funding formula, we're talking about a multi, I mean,

[00:35:34] basically it should be a big part of our 2024 work plan over the course of the year, looking at different models and what weighting would be appropriate and what categories should be weighted and are there other changes to the funding formula? In other words, it's a major task for us if we're serious about this and it will be a major task for the General Assembly over a matter of years, I suspect. But we are, at least according to the Constitution, the first step of that process. So I would love to see us start this in January and continue it throughout the year. Madam President.

[00:36:09] Mr. Stardofen. Also, I think it's important that, you know, Ms. Hilton has time to put it in the form of an email so she's not missing out anything. I know that the superintendent has asked what specifically, but I think Ms. Hilton would probably better serve sending an email so she doesn't miss on any of the points and that way the superintendent can present and and i anticipate others of us will also have thoughts so yes thank you thank you any other discussion on this okay miss kilgore

[00:36:39] miss holton hi dr siebert dr northern hi mr sturdifan hi mr rotherham hi and chair votes i okay all right so moving along to item b within the prescription document um there is a recommendation as you can see there that states jlark estimates this change would cost 250 million

[00:37:15] per year um the request is to adopt their cost estimates and refer to the jlark report for further detail as needed um does anyone want to make a motion here or um would someone like to make a motion to maintain the language that has been presented in this draft so i would like to make a motion and my motion would be that we adopt the language of section b with an estimate of 250 million dollar annual impact and the recommendation language is a little confusing was that that was

[00:37:51] my recommendation but it was mixed up with my recommendation on a later soq but my my um what would advocate here for is uh 250 million dollars a year of annual flexible funding to address the multiple needs listed under item b which include learning loss vla absenteeism and all the other really frankly flexible funding to address all the other issues we've heard from the public

[00:38:25] This would, I see, be in lieu of fixing the support cap, addressing counselor ratios, addressing reading specialist ratios, addressing English language learners, special ed, all of those needs together.

[00:38:39] If you look at the individual prescriptions that the board has adopted in the past, and or if you look at reports such as JLARC that have addressed the severe underfunding in these areas, if you look at the amount of the flexible funding the General Assembly gave last year outside of the SOQs, 418 million, the 250 million per year would be a very modest step towards addressing those multiple needs, but would be a move in the direction, a stepping stone towards a student-weighted funding formula

[00:39:16] that gave more flexibility to the local. So instead of telling them more counselors, more reading specialists, more this, more that, we're going to give you a pot of money. And I think that's the spirit of Proposal B, but that frankly the amount that's proposed for Section B is, well to put it modestly wildly insufficient to meet the need and so all i'm doing there is requesting a larger amount be allocated to that and that would still be way less even if we adopt other proposals that

[00:39:54] i'm going to advocate for when we get later on in the discussion it would still be way less than the amount that we are underfunding public education in Virginia, it would be, if we do this, if we do 250 million here, if we recommend 250 million here and 250 million on the at-risk add-on proposal that I'll be advocating for later, that 500 million per year would be well under half of what the JLARC said the immediate urgent needs are, and that other

[00:40:28] reports consistently have recommended we're we continue in virginia to want a top quality education system while we're funding a less than left less than average education system and this would not close that gap but it would make a big step in the right direction okay so and therefore should i make a motion just to put it on the table i would oppose a substitute motion as to this section that we amend the impact to 250 million okay so it sounds like that motion fails for lack

[00:41:08] of a second oh and i'm sorry one more thing is there's a sunset provision maybe the sunset provision has come out already it has okay good okay so considering that motion died for lack of a second can i get a motion to approve prescription b yes i'm sorry mr rotherham i'm mute mute can't hear you yeah sorry um uh i want to speak to i think the larger problem and i think the issues Ms. Holden raises are really important but the larger problem here is we don't have a good school

[00:41:44] financing system in Virginia. It is inequitable and it's outdated and we are trying with like all of these things like bubblegum so do we give do we suggest 25 million do we suggest 250 million in funding that's flexible we don't actually know what it's going to be used for and what exactly the roi is going to be on it and and so we're left like constantly um uh i feel like we're just constantly spinning our wheels we have to put this in that context and it ends up being like a very frustrating conversation because we we are we are like i don't know what the

[00:42:22] proper cliche is but i'll leave that to brother siever but uh we are uh the the metaphor we're shutting the barn door after the horses have run out or whatever and so we've got to fix this core problem um uh or we're going to constantly be spinning our wheels on us i think there's a lot of merit to the issue that that um uh the miss holden raises it's just we are stuck with this architecture to trying to trying to fix it that's just insufficient for what we're trying to do at this point dr siebert i know good metaphor there mr ruffer i apologize but uh i i would simply

[00:43:00] point out two things one um yeah the flexible funding my biggest concern is in this current fiscal years it's not going to influence benchmarking in subsequent years so i i appreciate the flexibility but not being in the base formula is a little bit of a challenge um also we've talked a couple more weeks ago now but we want to be careful what we ask for because if we ask for too many things we might not get the things we wanted so while i i certainly support um secretary holton's idea about making a down payment toward the future moving toward uh better funding in terms of you know even to our student weighted funding model i i will be saving my thoughts on

[00:43:37] that for a later item in terms of the at-risk add-on i think the at-risk add-on is a place where those dollars could be recommended um as part of moving at risk add-on uh to the soq formula so that that's that's where i will be recommending we make that down payment okay if i can just respond briefly that i i would argue that both of these together are a stepping stone towards the student-weighted funding formula direction we want to go in and both of them help address the severe

[00:44:11] underfunding and to address the severe underfunding is going to be a multi-biennial process and the right time to get started on it is now okay so do i have a motion to amend or to approve prescription b regarding madam president yes clarifying question the sunset provision is out is that correct that's correct we're gonna just leave that decision to a future board that's correct thank you okay just to clarify is my my substitute motion has been made and failed for lack of a

[00:44:50] second is there still no second as to that motion let's clarify dr northern so i have a clarifying amendment fixed to the yellow highlighted part. So is that a different motion or do you want me to wait on that or is that also up for discussion right now? What would that be? It says schools must use the school improvement planning process already required to identify the need that the school division chooses to support with these funds, track progress, identify goals, and report

[00:45:26] on the progress of goals the school division expects to achieve. And what would your amendment it be it would be i mean it's just simple but it's identify the goals before you can't track progress before you identify the goals i think that would certainly be it yeah that would be more of a um just a wording move and i don't think it's going to impact the overall effect of the item just to if i may but we certainly will make sure that that's been noted in response if i on that point. Any extra reporting requirements we give divisions, this is basically $19 per student

[00:46:03] per year that we're giving. We're suggesting the General Assembly give. So any extra reporting requirements, the local, it would use up the entire $19 almost. So it's, I would suggest that we keep our reporting requirements to a bare minimum, given that the money is bare minimum.

[00:46:24] I think you can accomplish this with existing reporting and the school improvement planning. that's why we put the school improvement planning in there. So the whole $19 can go to helping students. Gotcha. Yeah. Yeah. Yeah. I think, I think that was very well discussed and we wanted to make sure it was in a process that was already existing for school divisions. Okay. So then there's no motion needed because the, so we would need to have a motion to approve the prescription

[00:46:53] B as it's presented here? So moved. Second. Okay. Ms. Kilgore? Aye. Ms. Holton? No. Dr. Siebert? Aye. Dr. Northern? Aye. Mr. Sturdifant? Aye. Mr. Rotherham? Did he do aye? Aye. Sorry. And Chair votes aye. Okay. We will go on to prescription C. So we had a few recommendations here. And so if you are the author of one of these recommendations,

[00:47:44] recommendations, I would encourage you to speak up at this time. Recommendation one, if everybody's on the recommendation list here, so if you are recommendation one, can you please speak up and defend your recommendation?

[00:48:04] Mr. Rotherham? You or Dr. Siebert? Okay. Dr. Siebert. Madam President, thank you. This was part of the conversation we had at the last meeting. I'm kind of interested in where the superintendent is on this.

[00:48:20] I absolutely, and my idea here on special ed system is the same as when we get the student information system later. So I'll speak to both just in concept now. I will hold the support of the Commonwealth providing the tools that it expects divisions to use.

[00:48:38] My only concern here was with the timeline in terms of launching next school year versus having to be available next school year. So I just, again, maybe there's ideas and thoughts on how to address that concern, but I wanted to lift that up, and I thought maybe the making it available language would give the board a little bit of flexibility as we move forward, but I wanted to advance the conversation.

[00:49:02] Dr. Cairns. I think several of you have had a conversation around the process that the Workforce Board is doing to identify meaningful industry-recognized credentials. We could put something along the lines, and I know I will open that up for discussion, upon the completion of the work-based credential being identified by the Workforce Board or by a certain timeline that aligns with the accountability work that y'all are doing. So you give us some dates and timelines, and we're happy

[00:49:42] to incorporate some kind of timeline. I think the timeline is a little bit stronger than making available, but that would be at the will of the board of what direction you want to go in that space. Dr. Sievert? Madam President, apologies. Please. Madam President, I thought you said D.

[00:49:58] I've scrolled too far. No. Yes. My comment was for D. Okay. I apologize for the confusion there. Okay. So we are on item C. So if you are the author of any of these four recommendations, speak now or forever hold your peace. Otherwise, we're going to make a motion. Dr. Norther.

[00:50:20] I am the author of recommendation three. And I actually want to add more to it now. But with the changes I'm recommending, it would say high schools must use flexible scheduling and flexible seat

time to ensure all students are able to engage in. And then I've got a list, credentialing, state apprenticeship, dual enrollment, advanced learning, military readiness, work-based learning, work-based learning seminar.

[00:50:41] I think that gives districts a lot of flexibility for, you know, how to think about these experiences. I would like to add that, you know, obviously we want all of those opportunities to align with the accountability system we're trying to build here in that CCR, career college readiness indicator we've all been, you know, trying to figure out.

[00:51:00] We know that that indicators cause a lot of confusion for districts. So so my intent here was was just to give more examples of what this could look like. But at the same time, I think when we get to the accountability discussion again, we should tighten up some of these things and and more clearly sketch out our intent here.

[00:51:21] So it doesn't become, you know, confusing the districts and that sort of thing. If I may, I'm not completely understanding what this, with or without the recommendations language, what this changes.

[00:51:37] I mean, our current, and I'm also not clear whether this belongs in an SOQ as opposed to other board work. So we set graduation, we set high school graduation requirements. We do that by regulation. That's independent of our SOQ recommendations to the General Assembly.

[00:51:54] We have our role in the accountability accreditation system. We have a career readiness index now that incentivizes schools to give students opportunities around career technical education and work-based learning.

[00:52:11] We can amend those changes separately from our SOQ, but to me, this belongs in SOQs if we're recommending that schools be required as part of a quality education to spend resources and that the state and locality together must spend resources to support work-based learning.

[00:52:32] Given that there's no resource impact, I don't understand why it's in SOQs, number one. And number two, I don't understand what it changes. And if we are moving from the current law, which requires local divisions to give all students the option of work-based learning, et cetera, et cetera, If we're moving from an option, students must be given the option to students must complete A, B, C, or D, then I think there's a fiscal impact that we need to address.

[00:53:01] Dr. Kim, do you want to comment or? Mine is on, I think. Sorry. Yeah. If I'm not close enough to it, let me know. I think, Ms. Holton, to your point around must, I think the conversation and the support of this was around must, not would be offered, which is why such some of the substantive language around consider versus must was put in the document for consideration.

[00:53:35] So I think that's a good conversation. I think when the prescription was brought last month and the conversation was had, it was around must. So it does have a fiscal impact. This would be a must for school divisions. So, Ms. Holton? why does it say no fiscal impact happy to address that in the way the board would like to address that in the the conversation madam president mr sturdifant i move that we approve item c as

[00:54:05] presented no recommendations is there a second so mr sturdifant has made a motion to approve item c without making any changes to item c is there a second for that no so how do we want to proceed

[00:54:37] them. I think this goes back. Go ahead, Alan. Do you have your hand up, too? Go ahead, Dr. Northern. I was just going to say, I think this gets to another larger issue, which is the standards of quality being used as a vehicle by which we support fiscal recommendations. And again, I'm always trying to push us forward into the next step of this. And I think what we're all

[00:55:10] struggling with or at least I am is how do we move forward to the system that we want but but not continue to stick to the old habits that we've always had in terms of you know how we're seeing these I mean when I was not on this board and when I look at these SOQs I never saw them as the vehicle by which we supported education I felt like that was the role of a you know of a different document. But I get that this is how it's historically been used. And that's what I think I'm struggling with in terms of trying to put a price tag on all of these things when we really

[00:55:47] don't have a lot of good document and data on how much these things should cost. I feel like we're all just like, should it be 100 million, 200 million, 300 million? And it's a really tough spot to be in relative to how if we are forced, if somebody's forcing our hand to try to come up with a figure amount. That's very difficult. So that's what I'm struggling with. It's not that, you know, any of us are against, we need to be funding our schools adequately and so on and so forth. It's just trying to come up with figures for all of these things. So all that said, I would

[00:56:20] be in favor of changing a must, you know, to not read like, you know, we have to have so and so many dollars tied to this. I'd be fine with making that wording more flexible. So would you like to propose an amendment? I think I'd rather wait and hear my colleagues. Okay. Dr. Siebert.

[00:56:45] Madam President, colleagues, I agree that putting fiscal impact on this would be very difficult, especially this morning. My recommendation was recommendation two, and that was to include the regulation that provides some flexibility to seat time. I think that does two things. One, I think that we do have some seat time flexibility there. But two, I do think when people look at it, they'll find that it's actually pretty limiting and it'll be an opportunity for this board to come back and look at that seat time flexibility so we can broaden it. We really have the tools and things in place that have moved toward ever-increasing efforts toward competency-based demonstrations to help provide flexibility and hours and credits for kids and courses.

[00:57:25] And I think it's going to be very important if we're going to really move the needle on workforce and college preparation, et cetera. So mine was just to add the regulation there. I think it lifts it up and then we can come back later and hopefully make it better. Madam President, if that is his recommendation, which is recommendation two, I would second his recommendation.

[00:57:48] Okay. Dr. Siebert, did you want to offer that in the form of a motion to amend item C according to recommendation two? So moved. Yeah, second. Okay. Any comments on that, Ms. Holton?

[00:58:07] So a question to Dr. Siebert. Am I right? So your recommendation is recommendation number two, that high schools must use flexible scheduling and competency-based, et cetera. But does that, number one, is that appropriately addressed in our SOQs versus in our regulations that govern flexibles, C-TOM regulations, et cetera? Is it appropriately addressed here as opposed to other board opportunities? Help me understand that, number one.

[00:58:37] And number two, if we adopt the base recommendation with your amendment, does that then become a new unfunded mandate on localities if there isn't funding that accompanies it?

[00:58:53] So to the second point, I think we're going to have the must and the experiences. I think there's enough in the language here. I just want to see this as kind of a cross-reference between this document and our other documents.

[00:59:09] Specifically, if we're going to, the only way we can achieve this prescription is to be prepared to provide space and schedules for students on their graduation requirements, et cetera. Because we have so many graduation requirements already, we're going to have to provide time.

[00:59:28] And so, yes, the fiscal impact I think is indetermined, but I do think that time is also a resource that we need to acknowledge. there is some flexibility for principals to grant some seat time uh based on uh demonstration of knowledge etc and and so again i didn't find that code section in time but i think we should just reference that yeah just this whole job and dr siebert so am i so do you think that if we adopt this soq under the under our without addressing our current regulations on graduation requirements

[01:00:07] seat time, et cetera, the principals do have the flexibility to enact this, or do we need to adjust graduation requirements and seat time requirements? Dr. Siebert. I think we need to come back to those things. I'm sorry, Madam President, I think we need to come back to those things. I think right now we're talking about experiences. I think the language of experiences provides some elbow room. I do think that ultimately, if we're going to be serious about this, we're going to have to talk about time business so i'm all in favor of being serious about this

[01:00:46] i think this is one of the most important things we as a board could do is to facilitate more work-based learning i think doing it through an unfunded mandate soq rather than in the right part of the regulations where we do graduation requirements and we have the responsibility to set graduation requirements seat time requirements etc uh i think it's the wrong place to do it here So I will, unless we can figure out how to fix it to have it be more local, to not be an unfunded mandate on the localities, I'm not comfortable with the prescription.

[01:01:21] Any other discussion on this item? Dr. Northern? So what if we say they can use instead of they must use, they can use flexible scheduling, a flexible seat time to ensure. I mean, personally, I'm OK with keeping to ensure if we have can use.

[01:01:46] I mean, I think what I think our intent is not to, you know, jam down an unfunded mandate in my mind. And maybe it's not the right vehicle. But in my mind, I think we're saying like we're all in agreement. These opportunities are really important for kids that so many of them are just clamoring for a work-based experience or apprenticeship or some non-traditional path.

[01:02:08] So to the extent that we can open up these opportunities and make them more clear than they are now, that's what I'm for. So in my mind, to ensure is not a mandate, but I'm happy to hear some more discussion around that.

[01:02:23] any other comments here i guess i would just um i would uh say that if we i mean i this is already an option as far as what divisions can and can't use or could um i think we want to be a little stronger here in the use of must so i think that's why that that is used there instead of just can

[01:02:58] any other comments before we close this one out we have a motion made and properly seconded to amend item C by adopting recommendation two as the amendment. And so, Ms. Kilgore, how do you vote? Ms. Holton? This is on whether to adopt section C as amended by recommendation

[01:03:32] two. Yes, ma'am. No. Dr. Siebert? Aye. Dr. Northern? Aye. Mr. Sturdifant? Aye. Mr. Rotherham? I guess he was an aye. He did aye. Thank you. And chair votes aye. Okay. All right.

[01:03:56] now we are moving to item b so i scroll up here okay we do have one recommendation for amendment here and if you are the author of this amendment please speak now madam president dr sievert this is the one i was speaking to you out of turn okay that uh for this and for the uh uh student information system wanted to follow i i just i wanted to have to hear the board's conversation

[01:04:33] on the uh on the timeline so i guess for the sake of discussion i would move that we go to this recommendation okay so there's a motion on the floor to amend prescription d uh to add or i'm sorry to replace the word launch with be available to all school divisions and an additional change to the last sentence which would say the system should be available to all school divisions for

[01:05:08] the 24-25 school year is there a second to dr siebert's motion okay um and so is there a discussion on this amendment to this particular item just if i may miss holton i'd love to hear dr coons help us know whether is it feasible is it possible if the general assembly were to adopt this recommendation um in february or march or perhaps june whenever they file as the uh that we could

[01:05:42] going to have this ready for the 24-25 school year? I think that would be an aggressive timeline, but it's certainly feasible given the needs we have to have a standardized IEP across the state. So I'm sorry, you say it is feasible? I think it would be aggressive, but it is feasible given the critical needs we have across the state. I take that to mean yes, it's possible. Ms. Walton,

[01:06:10] anything further? Any other comments here? Yes. Mr. Sturdefin? Well, if this is saying it will be available if we approve this versus the system should launch, should start, but by this amendment is saying that it will be in all school divisions. And if we add that, then it's a must. It has to be.

[01:06:45] So if we're simply replacing launch here, it would read this system should be available to all school divisions. Okay. So if you're looking at the recommendation, that last sentence should actually be replaced completely with this system should be available to all school divisions for the 24-25 year that's how it should read so miss holton i think it's mr uh dr siebert's intent

[01:07:23] that that that it would be available um at their option at the option okay okay would we be better off to just delete that sentence altogether and just not talk about the timing dr kids how do you feel about that that was the original space but there was an ask to put a timeline in so happy to move that at the will of the board the original draft that you saw last time did not have a date but someone asked for um an aggressive date timeline so i would

[01:08:00] i would just say that a timeline to me the constitutional obligation to prescribe standards of quality does not talk about that it doesn't get to the implementation piece it's that we are supposed to be telling the general assembly the minimum elements that are required for a quality education and then the general assembly is required to fund it and of course in the funds between the state and the locality so that's the our constitutional duty is to prescribe quality education and the funds needed for that and then send it over to the general assembly to deal with

[01:08:38] i just don't think it needs the timing i i don't feel strongly about this i'm happy to vote for it either way but it just to me seems like stronger without the timing at all if there if people are interested i will make that motion otherwise i'm happy to support the motion uh dr siebert's made dr siebert any further comments on the discussion here i'm fine i i think taking out the launch works however the lord

wants to do it so are you do you want to commit to this timeline or would would you like to change your motion?

[01:09:19] I consider Mr. Sturgeon's recommendation or finally amend. Okay, and so can you repeat your recommendation for us, please? After all that dialogue, it's going to be difficult. I think the issue is whether or not we need to keep the time in there or just simply remove the time.

[01:09:34] Okay, so if it's the will of the board, what I would say is, can I get a motion to amend this item D here to remove this system should launch for the 24-25 school year so move second okay so let me make my notes here okay and so with that is there any further discussion on that particular amendment

[01:10:11] we are simply removing the yellow this system should launch for the 24-25 school year and adopting the rest of this recommendation. Okay, Ms. Kilgore. Ms. Holton. Aye. Dr. Siebert. Aye.

[01:10:32] Dr. Northern. Aye. Mr. Sturdifant. Aye. Mr. Rotherham. Aye. And chair votes aye. Okay, and now we are moving on to E. Being that I have no recommendations in front of me for item E, can I get a motion to approve prescription E regarding the grow your own teacher pipeline

[01:10:56] development as presented. So moved. Any discussion on this particular item? Okay, Ms. Kilgore, how do you vote? Ms. Holton? Aye. Dr. Siebert? Aye. Dr. Northern? Aye. Mr. Sertifan? Aye. Mr. Rotherham? Aye.

[01:11:26] And chair votes aye. Okay, moving right along to item F. There is one recommendation that is similar to Dr. Sievert's original, or I'm sorry, to his amendment on a previous item. So I'm guessing this is probably your amendment, Dr. Sievert. Yes, and I would recommend the same approach. Okay, so we would simply do what we did in the previous item, which would remove

[01:11:59] the sentence in highlighted yellow. Is that correct, Dr. Sievert? Yes. Okay, so. Madam President, unless the state superintendent sees this one differently, I'd like to hear Dr. Coons.

[01:12:18] Dr. Coons? I agree with the same approach you did for motion four. Okay. So in that case, thank you. Do we have a second? Second. Okay. So just as in item D, same action.

[01:12:42] All right. Any discussion here? Ms. Kilgore, how do you vote? Aye. Ms. Holton? Aye. Dr. Siebert? Aye. Dr. Northern? Aye. Mr. Sturdifin?

[01:12:57] Aye. mr rotherham he's okay and chair votes i all right going on item g okay we have one recommendation under item g and i don't know who the author of this one is so if you are the author of recommendation the only recommendation on item g for the at-risk add-on please speak now uh that would be me

[01:13:31] right so yeah so the uh recommendation in the the main recommendation is that we move the at-risk add-on as is uh and the prevention and prevention and remediation formula funds from their optional incentive program location into the soqs where they become mandated and that's all as i understand it that's in the base recommendation i'm recommending that we go farther and that we also recommend that

[01:14:07] we uh adopt the identified student percentage which is the updated modernized poverty measure instead of using the outdated free lunch measure and also that we change the concentration index Currently, the at-risk add-on funds allocate a little bit of money to schools that are serving poor kids

and a good bit of money to schools that are serving, school divisions are serving poor kids in schools with concentrated poverty.

[01:14:45] And one of the recommendations that came out of the JLARC report was that we weight the concentration index differently so that school divisions that serve kids in poverty but not necessarily in high concentration poverty schools also get some significant support because low-income kids need extra support whether or not they're in the high concentration poverty schools.

[01:15:16] And I would recommend that we adopt the version of the at-risk add-on change that's written here. And overall, the reason I would support the change is because this is a move towards a student-weighted funding formula where we are recognizing that our high-poverty kids need more support.

[01:15:41] And I think all the research is clear on that, that higher high poverty kids can be successful, but they need a lot more wraparound because of the various needs they bring with them into the school. And right now we see huge achievement gaps based on income.

[01:15:58] And it's part of our American dream that kids should be able to be successful regardless of where they started. But it is not part of the reality of our school system right now. um uh and therefore the mandating extra support for kids in poverty uh should be part of our soqs and uh should be a robust add-on and i would argue also that it is a stepping stone towards the student weighted funding formula it is a good first step uh in that direction

[01:16:37] and the last thing i would say is that if we are serious about doing an accountability system that would draw even more scrutiny of a potentially punitive nature towards our our schools that that serve our poorest kids that it's going to be punitive instead of constructive unless there's money that comes with it so if we're going to fund our schools that are serving our neediest students well then we can hold them accountable but if we're not going to fund them

[01:17:10] then raising accountability will have a contrary effect to what we attend it will push more families away families who have options away from those schools and it will push teachers and administrators away from those schools as it has in the as it did during the no child left behind era and we already have a big enough problem attracting strong attracting and retaining strong teachers and administrators in our neediest schools and without extra funding the accountability changes we're considering uh would be counterproductive and thus i move that we adopt uh uh this

[01:17:49] recommendation g with recommendation one in the recommendation one version there second anthony's andy's raising his hand andy i'm sorry mr rotherham yeah sorry i'm having a little choice has the motion been seconded no i'll second the motion okay discussion so sorry go ahead um so a

[01:18:28] couple contextual points um it's worth remembering again our schools are not evenly underfunded we have some of the most well-resourced school systems in the entire not only the entire country the entire world right here in our commonwealth and we also have school districts that are under resource, and that's the problem we need to solve. This out-risk add-on, I think, is a step in that direction. The problem, again, as we talked about earlier, is we are, and again, I'll leave it to Dr. Siebert to come up with a more compelling metaphor than I can, but that we are trying to, this is patchwork, and we're trying to make up, you know, ex post facto for a system that doesn't

[01:19:07] work very well um where i dissent uh from my colleague miss holton i don't think accountability is punitive um in fact during the nclb era you saw fairly steady gains um uh for the kids who

were furthest from opportunity those gains actually stopped when we stopped doing accountability so i i think pinning the two things completely against one another or talking about that accountability is punitive i don't think i don't think helps us here but obviously resources and helping the places that are most in need the kids are most in need is really important and this is a

[01:19:39] this is an important step um uh in that direction madam president dr sievert um yes thanks for that up i i see this really as being the step in the direction that we talked about on a previous motion i said i was going to save my thoughts for this one um currently the at-risk add-on is is part of what school divisions have been relying on for more than a decade now and so because it is now effectively part of the funding model that every all school divisions rely on further i think the

[01:20:14] you know the evidence is that community eligibility provisions cep divisions um are disadvantaged here because they're as a cep division you cannot for federal regulations request receive or process for your lunch applications um if you've not been a part of that process for many many years you're frozen with old data that is no longer capturing you know how many students uh you have that actually qualify the average cat on one of the things this board has talked about over the past year and a half that i've been on is that whatever we do we want to drive resources toward where they're needed so all i in my opinion again there might be other thoughts about the language

[01:20:52] that i've not anticipated this recommendation simply um again we're affirming that we think that the soq that the the average guy don't should be part of the base soq and that the methodology should be updated to make it make it realistic dr northern so just to clarify what is the new and improved i asked this last meeting what's the new and improved identification not that's not frl is it actually certifying that the kids are receiving federal benefits does anyone know the answer to

[01:21:25] that mr dickey can you help us answer some of these fiscal questions from the board my my intent my intent behind the question is i don't want this to become watered down and spread across like if we're really talking about identifying the at-risk kids i want to make sure that we are actually identifying the at-risk kids good morning mr dickey good morning and can you state that specific question again if you yeah miss holton mentioned that we were no longer going to use the frl

[01:22:05] measure because over and over again it's been proven to be not useful across the country um and some states are using a federal certification measure and i'm wondering whether we're able to actually identify an at-risk child by whether they're receiving federal benefits so snap for instance those types of things right right yeah that that that's the isp uh measure that's reported by all districts um in every state including virginia and so it includes multiple you know measures and metrics of student poverty medicaid eligibility snap tanf

[01:22:41] some other high need uh categories would qualify students under that reporting so that that's a very well vetted annual reporting uh for uh every school and every school division in virginia um and it's tied to the community eligibility provision program but that that is data that's currently available and has been for five or six years now statewide okay so we are using that measure of federal receipt of benefits the the state funding formulas

[01:23:17] currently do not they use they use the traditional free lunch eligibility measure uh and and and that's by current policy of the general assembly in some cases uh that data is is aged uh as divisions and schools have moved off the traditional free lunch program and household application collection moved moved on to the cep program which uses the new isp metric uh and and

[01:23:51] so um in in the formulas uh are is the traditional free lunch measure in some cases that data is is older for some school divisions before they transition to the cep program okay so miss Ms. Holton, was it your intent that your amendment here would use the CEP and not the FRL measure to identify these children?

[01:24:17] Yes, I've identified it as the identified student percentage. That's what the CEP formula you're referring to is the ISP. And yes, that is what's in my amendment. Thank you. Am I stating it correctly?

[01:24:33] That is correct. Any further comments here? Ms. Holton? I am realizing one of the things that got a little boggled in the translation, but the cost impact of this would also need to be amended.

[01:24:49] And I'm proposing the $250 million per year cost impact based on the JLARC report. The current, the estimate in here is for a different version of the change. And, you know, if Mr. Dickey has any updates, if he has a different estimate of what it would cost to implement recommendation number one, you know, we could certainly consider that.

[01:25:17] But I've just borrowed the number from JLARC. I propose we borrow that number, which would make that $25.6 million become $250 million. Obviously, the General Assembly will do their own calculations and estimates if they adopt this estimate, this recommendation. But we are required to give them a ballpark, I think.

[01:25:36] So would you prefer to send your motion and make a new motion to add both of those together? Yes. So, yes, I would. Thank you. I will offer a substitute motion that would be use recommendation number one language and also change the statement under the first line under at-risk add-on estimated cost $250 million per year.

[01:26:02] Okay, so currently that at-risk add-on estimated additional $25.6 million, you're asking to amend to $250 million. Delete that whole sentence and say estimated impact $250 million per year. Okay. Does everybody understand that new motion that will need to be seconded? Ms. Holton rescinded her previous motion to simply amend Prescription G to include or to change Prescription G to include Recommendation 1.

[01:26:36] and now she has said, scratch that, we're going to go with recommendation one in addition to a cost impact estimate of $250 million per year. So we'll have both of those pieces in Ms. Holton's current motion. Am I correct? Am I? Thank you. Okay, so she has made her motion and it needs a second

[01:27:00] to move on. Second. Any comments or discussion here? Madam President. Dr. Northern.

[01:27:17] i'm just clarifying where that 250 million was that a jlark estimate miss holton was that yes mr okay all right thank you it was dr sievert yeah if mr dickey is still podium you know i'd like to have his assessment that that's my only qualm here is about this number um you know one of the things that i know some cep divisions are looking for is what the change would mean for them individually um but that would be for the general assembly session forthcoming that data is not ready yet so i'd just like to hear from mr dickey uh about this number because i ultimately the general

[01:27:55] assembly is going to have to choose what it does and choose whether it funds it or not so i i don't want this recommendation that we move uh at risk out on into the base soq and that we begin using the better data that dr northern outlined um i just don't want this to i want to make sure the the price tag is correct, because I think this recommendation movement is very important.

[01:28:21] Mr. Dickey? Right. And one of the passport recommendations has been to move the existing at-risk formula into the SOQ with the enhanced add-on formula. But in lieu of the SOQ PIR formula and the existing at-risk add-on formula as it exists, that was a net cost of the $25.6 million.

[01:28:55] That is really coming off of a past recommendation and methodology of the board. The JLARC recommendation, this is something we really may need to refine and quickly look at,

[01:29:10] And there could be a mix of methodologies and data sources here, but this $25.6 million net increase is to run the enhanced add-on formula recommended by the board in the past, making updates for FY24, but it would be in lieu of the existing at-risk formula, which is different, and the current SOQ prevention and intervention remediation.

[01:29:39] that was stemming off a passport recommendation. And so it's a substantial amount of money, but it would be replacing essentially two line items right now. That's the basis for that existing $25.6 million net increase because the existing two programs, the funding's in the base budget already, that enhanced add-on would ramp up the funding another $25,000, $26 million.

[01:30:12] But if I'm correct, that would not account for the changes in the identified student percentage and the changes in the concentration index, all of the pieces that JLARC recommended and that recommendation number one incorporates. And so my question to you, Mr. Dickey, would be, have you had an opportunity to look at that JLARC recommendation? And do you have any suggested amendments to their number? Or is that something you've not had a chance to look at yet?

[01:30:43] No, we've reviewed it, of course. But we've not replicated the calculations. That was their recommendation. That was their concept. It does incorporate the ISP, the individual student percentage data, as you mentioned. But we've not had a chance to replicate that number.

[01:31:07] So if we need a number for today, for a ballpark, JLARC is a reputable nonpartisan entity and you trust their methods of calculation. Is their number a fair ballpark place for us to start with? Or do have any other alternatives for us to consider well we can quickly look at it in more detail today um and again the question would be um would would uh as part of the recommendation would would that new funding formula or something similar to what j lork recommended would it be in lieu of or

[01:31:45] replace other funding streams um madam president mr certifan um forming a new program that's going going to cost an estimated $250 million as opposed to the $25 million. It's very difficult for me to support. And I know we have a Phinex guy and he's saying it's something that he could look at pretty quickly. I don't think that's going from $25 million to $250 million is something you can

[01:32:21] quickly do for the support of the vote on. Particularly being from rural county, when we talk about impacts of school divisions, our rural school divisions are struggling to keep up with your more urban areas um i can't support a new program where 250 million dollars strictly going to a program not exactly the kids that that benefit the most from for money um so my stance on design i can't support that recommendation mr rotherham i know you had your hand raised

[01:32:56] yeah members i'd be interested i mean i think the jlark methodology makes sense i'd be interested if we and and so i'm not sure if we're able to do this but if we could table this for later and and if i heard uh mr dickey correctly he said they could give us some analysis that's correct madam president i would feel better about that also that's i share their concerns without being such a fast decision okay so yeah and i i see this word this is starting to bring us into line with

[01:33:33] reality but i want i'd like to see those numbers okay so let's do this mr dickey how how much time you thank you um we we can work on this today and try to turn something around as quickly as we can but i need to check with staff and see how soon we can do that okay um perhaps yes dr siebert both to keep this process on track and to see where we are procedure wise um i think the

[01:34:09] substitute motion was to change the physical impact i think the original motion was to adopt the language um and so i'm not sure where you are in terms of your parliamentary procedure there i would like to uh i i think i like at this juncture i think we have consensus on the language so i would suggest that we go with the motion where we adopt the language with the existing department staff price tag we invite mr dickey to come back if when he has a new number hopefully during this meeting and we could always have been at that time take a separate action to amend the price tag but at this point i'd like to i think we have consensus on the language i'd like to see

[01:34:44] that move forward okay so the way that we are currently postured is a substitute motion from miss holton to additionally amend recommendation one further to increase the cost impact to 250 million dollars so i think what we probably need to do at this point is vote down that amendment so that we are clear, and go back to the original motion. Are you okay with that? Well, I'll just withdraw the motion. Or you could. And I'll make, how about I make a substitute motion that we adopt

[01:35:20] recommendation number one, and that we, for the time, amend the cost estimate to say cost estimate unknown, as we do on a number of the other. I don't, I don't think that's the right ultimate solution, but, or just to delete the cost estimate sentence altogether. Let's do that for now.

[01:35:40] JoAnne Hanrahan: just delete it i'm sorry I couldn't hear miss holton. JoAnne Hanrahan: I don't know what i'm doing, I need my mic closer, thank you, I need my mic closer, thank you, Mr rotherham so my motion i'll substitute, if I may, motion for my subsequent motion I withdraw my prior subsequent motion and now propose a substitute motion.

[01:36:00] JoAnne Hanrahan: That would adopt recommend the recommendation number one version of item G and that we delete the first sentence under. at-risk add-on that contains a cost estimate.

[01:36:17] Just delete it all together for now. Okay, so that would remove any type of cost estimate. Correct, and hopefully we'll be able to come back by the end of the day and add a proper cost estimate. Okay, any comments or discussion on that?

[01:36:34] Do we have a second for that amended? Not yet. Okay. Okay. All right, then I have discussion. Okay, go ahead. But it goes back into Madam President. Yes, sir.

[01:36:49] Forming a new program now, If we get Ms. Holton's recommendation, we will consolidate form a new program with an unknown cost, which could be $250 million. So I can't support forming a new program without knowing what the cost is going to be. So I'm still opposed to that.

[01:37:08] If I may respond, I appreciate that we would be, I would submit that it's not affirming a new program. It's an existing program that we're altering, but that's maybe mincing words and that the cost, yes, the cost could be as high as $250 million, which JLARC has recommended. That is 1% of the overall budget.

[01:37:30] And in the local divisions, I will tell you, I mean, we've heard from the school board associations and the PTA and the superintendent's association, they're all in favor of this because it means

more, the state is underfunding its share, the localities are already doing this work in big ways.

[01:37:48] I think the JLARC report said that 129 of 130 of the divisions are opting in to at-risk add-on already, so this will basically mean more support for those divisions. It will alter the state-local mix, but this is not an unfunded new mandate on the localities in my estimation, and it's needed, and it's not that much money.

[01:38:17] It's 1% of the overall budget that is severely underfunded. Madam President. Mr. Sturdefin. 1% is a small number when you say 1% or 1. But when that 1% is $250 million possibly, that's a big number to me.

[01:38:33] That's why I'm opposed to it. Mr. Rotherham, did you have your hand raised? Any other discussion on this amendment to item G? All right.

[01:38:53] Is everyone clear on the motion here? so our plan is to revisit this later today and make changes to this and revoke today yes that's right okay but currently it removes it removes yes or no any amount we're we're not making a move this is a motion to remove the estimated cost of 25.6 that line altogether and amend the

[01:39:27] recommendation or amend prescription G to include recommendation one, okay? Madam President, just so I'm clear on this, we're voting on whether or not we're going to support recommendation one that may have a cost estimate of $250 million. That's correct. Okay, that's what I'm opposed to. Madam President. Dr. Siebert. And this is still the substitute motion, so should it fail, we'd come back to the G recommendation that we already moved forward, which would leave in that first line.

[01:40:02] that's correct okay yeah because I think leaving the first line in now doesn't give me heartburn because I we're going to that that we would if we we could choose to amend that later in the day we're ready to vote Miss Kilgore Madam President oh excuse me Mr. Rotherham can we hear the amendment excuse me can we hear the amendment again because Dr. Siebert's comment just it can be basically we make sure we're all clear on what we're voting on okay excuse me so Miss

[01:40:37] Holton has made an amendment to her original amendment, which says that she would like to amend Prescription G to include Recommendation 1 and remove the entire line that says estimated additional $25.6 million because we, so in theory, there is no cost estimate attached here at this point. So it could be 25. Yeah, so we're voting on the language. That's why Dr. Siebert's comment

[01:41:14] confused me because I think there's no material effect. We're voting on recommendation one. Correct. Everyone clear? Ms. Kilgore? Ms. Holton? Aye. Dr. Siebert? Aye. Dr. Northern? Aye. Mr.

[01:41:37] Sturdefin? Nay. Mr. Rotherham? Aye. And chair votes nay. Okay, so we will, this means that recommendation one is now a part of prescription g without a uh additional estimate there and i guess we will make your day really fun mr dickey we will go look at it further okay thank you very

[01:42:09] much um if we could take about a five minute break come back about well maybe a little more than five

[01:42:17] um 1045 please thank you if we can come back together here um and we're gonna move we're gonna

[01:51:36] uh move from item d skip item e right now and go to item f um since we are slightly ahead of schedule so uh we will we will revisit item e in just a few minutes but mr chapman our director of board

relations um would like to to provide us with a little bit of a presentation here so thank you mr chapman uh yes thank you president creasy members of the board superintendent koons um what we have for you here is a uh kind of a new item that we're bringing to you um and it's only for

[01:52:14] first review so we we understand this is a an incredible amount um of of paper that we've provided you with essentially what what staff has done um the office of board relations has undergone a very very thorough review of all of the the board's catalog of guidance documents and what we have identified is a number of guidance documents that have either become obsolete over the years or have we think in our judgment no longer meet the definition or do not meet the definition of a guidance document something like a legislative bulletin a form or instruction an application things like this that are have been excluded under state law from the definition of

[01:52:54] of a guidance document. I think we provided a number in the 40s, about 18 pages of summaries of guidance documents for you all. I assure you that's representative hundreds and hundreds of more pages across all of these documents that we've read. And many thanks to Assistant Superintendent for Policy, Ms. Velasquez, and our Board and Regulatory Coordinator, Joe Crook, for being of invaluable assistance and getting through all that material. What I'd like to make clear is what we're asking the board to do in this action and what we will ultimately ask when this comes back for final review in January. What we're asking is that these documents be removed from

[01:53:33] town hall. And we've tried to phrase that very carefully. You know, these documents are not being rescinded per se. Some of them are in fact obsolete, but the issue is getting them off the town hall register so that they're no longer listed as active guidance documents for the board. For those items that that we are saying do not meet the definition of guidance document, what we are asking for the board to do will not affect what the board has done relative to the item.

[01:53:59] So, for example, the charter school application, we are not asking you to rescind the charter school application. All that we're asking is that we remove it from the definition of a guidance document under town hall. there are a number of items like that where uh you know when when the the notation is that these don't meet the definition of the guidance document we're not asking for the board to remove its approval of this item this is really more of a technical matter that we're saying it doesn't we don't think it means the legal definition and so should not be listed um you know on the virginia regulatory town hall as a guidance document pursuant to the virginia register act any comments

[01:54:38] from board members miss holton thank you mr chapman i have a couple of questions so uh i guess the first is can you identify for us either well now or in a perhaps in written form before the next meeting which of these many documents are being uh effectively rescinded in which though being removed from town hall are considered still active

[01:55:12] advisory documents for the divisions etc and and as to the latter where are they going to be made available if not on town hall um uh yes we we can certainly do that uh the the agency practices most of these documents are are available on the website and so for example like the charter school application i'm just just picking on that one because i i know it off the top of my head um or the lab school application those live on their web pages you know specific to the program offices usually in a couple of different places um and so yeah these are just removed from town hall

[01:55:47] but we'd be glad to uh amend the item you know for the the january meeting to be more specific about which of the items will remain and which of the items we think have uh have run their

course and were either removed from the website because they are no longer you know active and good and which we were just you know removing from town hall as a as a formality um of course we're going on the legal principle that uh um you know the office of the attorney general has given us which is that when when the board does an action um it must be undone by an act of equal dignity as as um miss love likes to say and so the of course the proper thing to do is to make sure the board is

[01:56:25] is aware and votes on taking those these off of town hall yeah and if i may thank you thank you that would be very helpful to understand which ones are being rescinded and which ones just moved basically well yeah again we we are not we don't think this action is rescinding but we can certainly highlight which ones are up we think are now obsolete for some other reason um and which are just removing from town hall maybe the right way to say it is which they're all going to be removed from town hall yes which are ones that the board the department will maintain available yes uh in other ways absolutely to offer guidance or assistance then i have a specific one and there

[01:57:04] there may be others i will say i haven't read through the whole list in detail i wish i had the opportunity to do given the short time frame but item number eight in particular that was just adopted in 22-23 school year i assume you're not suggesting that one is obsolete it was just adopted last year or the year before um but um uh but the but your the explanation says do not interpret a law or regulation so does not meet the definition of a guidance document if i i need to go back and look at what that underlying work was but it is my recollection that there was a legislative

[01:57:42] action i thought this was the part of the legislative action requiring that teachers be evaluated on culturally responsive education pedagogy and that we i thought the legislative direction was specifically that we evaluate teachers on those criteria and that we help instruct teachers in support of that and that this handbook was part of that solution and so as to that if i may i would like to ask that we have an opportunity to have a comfort if i'm right

[01:58:16] that this is that part of that action uh that we have an opportunity to have a conversation with our legal counsel to help me understand why it's not interpreting a law or regulation and we could do that at our next meeting and i don't mind doing it in an open session or i don't mind if it's best to communicate with the attorney general's office between now and then but i'd love to have a conference i'd like to have a opportunity for a conversation with a legal council to understand what's going on here yeah i mean i i can speak in part to that right now that yeah the the uniform criteria for the evaluation of principles um and things of that

[01:58:54] sort are our guidance documents that we absolutely believe are guidance but since this is a manual intended to help schools understand how to fill that out that is what we believe moves that outside of a guidance document which is which is to interpret the regulation so it's a supplemental material that we're providing in order to help them understand and that's a a practice that the department picked up of of post posting those things as um as guidance documents um we we think that the judgment is uh you know like any other material that the board would put out or the department put out to help someone um understand how to submit an application that this is really

[01:59:31] falling under that and so that that's the the judgment we'd be more than happy to to revisit those and others and make sure we have a crystal clear explanation for for what's going on for you and i will do my homework before next meeting and look more detail to see if that is this one but i hear you have the uniform criteria or evaluation that stands as a guidance document but if i remember correctly

that statutory language required us to do the uniform criteria and required us to do some training or assistance to the divisions about understanding the criteria in which case the handbook would be what's interpreting that law and regulation so so the conversation to be

[02:00:11] continued on that one hopefully with the benefit of legal counsel is that yeah yeah great anything further on this okay so thank you mr chapman we're happy to accept this item on first review and we will see you again in january and maybe we want to stay and go ahead and move g absolutely thank you thank you members of the board uh this is also part of a kind of a cleanup um that we would like to do on the regulatory actions that we'd like to propose to the board um we have three

[02:00:50] actions that we think have you know developed to a point where you know or either because of change circumstances or additional information um where we think that uh the board action is required on these items and so these are listed in the summary action 579 was originally started the nor was published back in 2021 it was an action amending the standards of accreditation in order to account for the accreditation of virtual schools and establish standards for virtual education the commonwealth what staff thinks has happened this time period you know

[02:01:27] obviously in the beginning of 2022 the board composition changed significantly and so plans that the department had to continue moving this item forward and the board had were very quickly those plans just changed and at this point because the nora has been out since and closed since 2021 you know it's been over two years we think that the right thing to do to make sure that the public is properly noticed of the action is to withdraw this action until the moment that the board is is able to devote time for it and take it back up again um we also have uh so so

[02:02:02] the the recommendation is that um this action that action be withdrawn in its entirety um action 553 48 is a set of revisions to the regulations governing secondary school transcripts the board had approved that at the final stage on march 22nd and it's since been in executive branch review in that time in the time since that action was passed by the board the department has received a number of comments and complaints from the public um about different elements of that that action the most notable of which is the weighting of advanced level courses um ap and ib courses

[02:02:42] and transcripts which was was removed from that action um and we think that it would be you know the right thing to do given the time to withdraw the stage um the final stage uh in order for the board to take uh you know proper account of the comments the the numerous comments that have been received since the action was passed um and since this is still in uh in second uh since this is still an executive branch review so again the the recommendation on that action is not to withdraw the action but to pull the final stage back um that way you know it can be examined uh you know

[02:03:18] by the board and then the final action is action 540 5943 which was a norah that was approved by the board in 2021 on advice from the office of the attorney general that is the regulations governing human research in the time since that norah was published as staff was originally you know starting that action because we thought we needed to make changes to the regulatory structure in order to start an institutional review board we have since launched the institutional review board that has been been stood up um in an unfortunate turn of events i find myself a member

[02:03:53] of the institutional review board um you know but we we have that stood up and we haven't identified any research that falls within the very narrow band in state law that is is not part of a federally guided uh research and instead would fall under these regulations and so since we don't um have any

examples of things to regulate we think that the right thing to do is to pull this back the irb has stood up we think that this has been good um and and instead you know wait until we have more information or find research and examples that would fall under this particular body so that we

[02:04:29] can make amendments so the the recommendation is to to withdraw this action um in a sense out of lack of subject matter to regulate okay any questions here okay is there a motion to waive first review and withdraw actions 5749 and 5943 as well as withdraw the final stage of action

[02:05:00] 5348 so moved okay okay miss kilgore ah miss holton hi dr siebert hi dr northern hi mr sturdifan hi mr rotherham and chair votes okay so let's go on to eight thank you so much members of the board thank you again what we have for uh for your review here is what we hope is not

[02:05:36] a very contentious uh you know action at this point um state law requires that the board conduct periodic reviews of its regulations from time to time the board in regulation has stated very specifically that it will conduct periodic reviews in accordance with executive orders issued by the governor pursuant to 2.2-4017. And what we have here is a list of regulatory chapters that staff would like to open periodic reviews over the first six months of 2024.

[02:06:08] A lot of these are very short chapters. They're chapters that only have, you know, a single section, but we think is a good solid list in order to get the board back on track of having periodic reviews of all of its regulatory chapters performed every four years. One thing that I would like to note for the board's attention is two of the chapters that we have on the periodic review we expect we would like to to start thinking about larger regulatory actions in order to you know really serve the public it's chapter 23 which is the licensure regulations on school

[02:06:44] personnel and 543 which is the the regulations governing the review and approval of education programs in virginia this is i think the result of conversations that the board has already had of course the periodic review process itself is relatively straightforward it's really just a certification that the the chapter is serving a purpose um and still meets meets the requirements set by statute but we do anticipate that the review that we were doing internally as part of that will eventually lead to a nora that will come before the board but we want to make sure that the the board is aware of at least those two chapters we think is going to result in um or or

[02:07:22] hope will result in a more significant review um and larger regulatory activity are there any questions here miss holton i'm sorry mr chapman i flinched away for a moment and heard the licensure and which is the other one you enter chapter 543 ma'am it's the the regulations governing the review and approval of education programs in virginia which of course as you know is like the companion to the teacher licensure regulation so yeah so i hear you that the review that's

[02:07:58] provided for here would be would be certifying that the reg still serves its purpose and is consistent with the underlying statute is that the nature of the review that's correct the periodic review we would open a public comment period as required by you know state law the public have an opportunity to weigh in on this as well um oag would certify and the governor would agree and we would bring a form actually back to the board with results of the periodic review where the board would have to weigh on the continued need for the regulations the nature of complaints or comments that we've received specifically during the public comment

[02:08:37] period you know the complexity of the regulation the extent to which this regulation overlaps with other regulatory chapters or duplicates conflicts with federal law the length of time since the board has last reviewed it uh and you know how technology may have changed economic conditions of the sort so this this will be um the results of the periodic review that we hope to open we'll come back before the board for approval before they're finalized as part of the statutory process miss walton that's only only a question i have for mr chapman thank you but i do have comment when the discussion when the opportunity is right okay any other questions here

[02:09:14] okay can i get a motion to waive first review and approve opening periodic reviews on the regulatory chapters identified in this item in the first six months of 2024 so move say hint okay discussion so ulton so um several thoughts first is i don't understand why this is on first and final we keep doing things on first and final when there's no reason to do so this list was posted for public uh review at the earliest on thursday last week maybe not until friday last

[02:09:51] week and here we are on a tuesday and i just i i i note my continuing objection to not honoring our normal process for including the public and giving the public an opportunity to engage in our business through a public comment and we uh i see no reason why if we've been behind on this for years why we can't wait till january to finalize it that's the first thing the second thing is i think that this is a really excessive workload i mean there's 20 some actions on here some of which are as as mr

[02:10:26] uh chapman notes small but some of them are huge i mean this is to even read all of these documents all these regulations would be hours and hours for us. And then to do what he has described as certifying that they're still useful, still meeting a purpose, still not having economic impact, et cetera, et cetera. This will overtake our work plan agenda for 2024. We have a lot of work on the plate. So if we are trying to comply with our statutory requirement, if we indeed have

[02:11:02] a statutory obligation to review regulations regularly and you know are we an executive branch agency does all this apply to us leaving all that aside if we have an obligation and a desire to review regulations on a regular basis which it makes sense to do that I suggest we wait till January hear from the public and choose two of these 20 to put on the list at the very most it's a it's a ton of work and it'll it'll occupy staff and it'll occupy us and we won't get to the things that we think matter. I will say in that note that I didn't object to the elimination

[02:11:39] of the virtual education regulation effort in the prior item because I think we already have enough on our plate, but I will tell you that when we adopted that, Nora, it was because there is a dire need for regulations around virtual education in Virginia, and we're not doing it simply because it's too hard, and we don't have time to get to it. And when we have things that are important and need to be done, and we're not doing it because we haven't got time to do it, to take on this much work unnecessarily doesn't seem wise to me. Therefore, I will oppose the

[02:12:17] motion. Additional comments? Dr. Northern? I mean, to that point, is it possible to stretch out the timeline from the first six months to 2024, where we're just, you know, what are the implications for real folks on the ground if we were to extend the timeline by another six months just to deal with this burden Ms. Holton's referring to? Well, I don't know that there would

[02:12:49] be much. I mean, staff, if the board's will is to extend us through all of 2024, we could certainly do that. But I mean, our anticipation based on our staff projections is that we can start these within the first six months. Again, I don't want to confuse what the periodic review process does with a full

regulatory action. We are not, this is not a review that in itself will result in regulatory changes, the sort of, I think, big lift that maybe Ms. Holt referred to.

[02:13:22] But the other consideration, and I think what staff would want to balance, is that the board has 65 regulatory chapters, and it has not done periodic reviews on any of them, despite the fact that there is a statutory obligation to do so and despite the fact that the board has a regulation where it has said that it will do these periodic reviews so you know in terms of benefiting the public one factor maybe to weigh is that these need to be done in order for the board to meet its own its own you know statements and regulations but also to meet the requirements of statute

[02:13:55] Madam President, Mr. Sturdifant. The board is asking for the staff to do a review. We just did a vote for an unknown, possibly $250 million, and we just quickly did it. Yet, we want to delay Board of Education staff and team members from reviewing. It just, I think if they're asking to do reviews, they're going to take the burden of their workload and review and bring it back to us.

[02:14:33] So I will support the first and final review so that this team can get the work done and we can get our work done without delay. Further comments, Dr. Northern? Yeah, just clarifying. Yeah, I'm trying to get how much time it would take for us versus you guys to Mr. Sturdivant's point.

[02:14:55] I mean, is this like Ms. Holton saying, is it going to get in the way of our, you know, more substantive work around accountability and all that we've got going? Or in your opinion, Jim, is it not a huge lift of time for us during official board meetings? I I think that that's yet to be determined yeah but but on its own I I don't think so no I mean like we'll we'll present a form back to you with the results of the periodic review and you know any recommendations that staff under the guidance of the superintendent has will be documented in that and what we think will follow and we will have you know the superintendent and the chief of staff available to help you know prioritize workload moving forward but you know the periodic review on its own

[02:15:34] fairly simple. Okay. Recall that I'm new. So I ask questions sometimes to try to understand how these processes work when I hear different comments up here. So thank you for helping clarify. Ms. Holton? If I may, this is new for all of us since we haven't done it. And I just, I don't know what it entails, but I'm just listening to what Mr. Chapman said it could potentially entail. We are going to have to vote on them. And that's a lot. But I won't repeat myself on that. I would just have one question for Mr. Chapman. Is there any reason this needs

[02:16:10] to be acted on today as opposed to January? Is there, why is it on first and final? Well, I mean, we would really like to get started on these because again, you know, 65 chapters that have to be reviewed every four years. But you could, I mean, one month delay, really? You're going to do that much work on it between now and January? Some of this is dependent, I think, on collateral reports that we have to file, things that, you know, the department has to do. I mean, again, the board has said in its regulations that it will comply with the executive orders governing um these these processes you know that are promulgated under state law um and so yeah we have we have annual reports that we're supposed to fill out very soon that we need to make sure

[02:16:47] that we're we're clear of what the plan is for 2024 um so yeah unfortunately you know staff would like to get this resolved so that the board can meet its obligations as the regulatory body um to finalize these reports as have been requested so I would just maintain my opposition to first and final. If that's so, if it's that important, they could have brought it before us in November and then done final in

December. So I just think we're, I don't know that this is something that the public would have any input on or not, but they might. They might want to say that some others of the 65 regulations we have are more important than some of these 20, or that some of these are more important than others, some of them are less important than others. So

[02:17:27] for that reason, among the others I've expressed, I continue to oppose. Thank you. Any further comments? Okay. So the motion is to waive first review and approve opening the periodic reviews on the regulatory chapters that have been identified here in this item in the first six months of 2024. So I think I am ready to ask you to vote, Ms. Kilgore. Ms. Fulton? Nay. Dr. Siebert?

[02:18:03] Hi. Dr. Northern. Hi. Mr. Sturdifant. Hi. Mr. Rotherham. Hi. And Chair votes aye. Okay. All righty. So we will go back to item E, please. And we would like to welcome Mr. Straley, Superintendent of Louisa County Public Schools. And of course, he's special to me because he is the superintendent in the neighboring county to me and is friends with many of my friends in Louisa County.

[02:18:40] And so we welcome you today and are thankful for you being here with us. Absolutely. Thank you, Madam President and members of the board, Dr. Coons. We thank you for allowing us and asking us to come and talk a little bit about what we're doing in Louisa County to combat chronic absenteeism, which I believe truly is one of the biggest issues facing public education today because we don't get this right.

[02:19:07] I think we're going to see some things in the future that are really going to be extremely hard to overcome. And Dr. Alpern, one of my assistant superintendents here with me today as well, who's heading up much of this work in our community in Louisa. And I'll tell you, we, if you look at this picture, this team back in June of 2022 began to really look at the issue of chronic absenteeism.

[02:19:34] We took the summer to really look at it after we initially looked at some of the data. So our data before COVID, we were right at 7.8%. And then when we looked at the data coming out of COVID, we're at 10.5.

[02:19:49] However, when we began to dig deep into that number over those COVID years, we were able to waive COVID absences for quarantines, isolations, and those types of things so that it didn't really reflect those absences. So we began to dig into the data. Our number was 33.7%. So one-third of our students were essentially chronically absent. We said we have to really dig into this and see how we're going to overcome this, as what we looked at is probably one of the biggest issues facing us. So then we looked at it. We came up with a plan, developed a plan, and this past year

[02:20:28] we came out with 8% chronic absenteeism. I want to talk a little bit with you today about this plan and what this looks like and some of the things we're doing in Louisa. So why do we feel this is important? What was our motivation behind this work? Why did we feel this was a top priority for public education? Well, one, obviously, would be, and my clicker's not working, there it goes, when students are not in school, their academic will suffer. That's pretty self-explanatory.

[02:20:57] If their students aren't in school, that's an issue. They need to be there getting their instruction. Two, we looked at it from the workforce standpoint. We speak frequently with our employers in our community and neighboring communities talking about what are you looking for? What are the things you need? And one of the things we're seeing, they're seeing is folks aren't showing up for work, right? Coming out of COVID, they're seeing that folks are not coming to school or coming to work. Well, if we begin that

habit in the school level, then that's going carry over into the workforce so looking at there has to be a priority of being in school

[02:21:34] and then three uh four student attendance and i would i would say this is one of the biggest ones of all um in speaking with our staff um in hearing them really talk about this issue four student attendance places a tremendous amount of stress on our on our educators and what do i mean by that well when we look at that pre-covid we had maybe one student in our class absent per day coming out out of COVID, during COVID, we were looking five, six, seven students absent in our classes per day.

[02:22:07] For a teacher, for an educator, when you think about that, so you're having to work five, six, seven times as hard to catch up your students only to maintain what you were doing prior. You're not working five, six, seven times as hard to get better. You're doing it to only maintain. I don't care what profession you're in. That's demoralizing. That's demoralizing. If you're working five, six, seven times as hard. You want to see better results. And that's what certainly we're trying to strive for every day in Louisa, but to get those results that we're working so much harder only to maintain. And we said we can't have that. So that was really a driving force behind this

[02:22:44] work to make sure we're looking out for our educators as a whole. I'll step back and say the teacher crisis is real. Coming out of COVID across this country, across the Commonwealth, and louisa county certainly not immune um they're leaving the profession and they're leaving the profession for many reasons but i think this is a big one this is a big one yeah this is a big piece of that because you're working harder only to maintain and again we can we can't do that we got to work harder to get better and so in that this was really our motivation behind the work

[02:23:21] that we've done so with that being said we looked at and we said we have to change a mindset we have to change a mindset and why are we changing a mindset we're changing a mindset because during COVID, we said, if you have sniffles, stay home. If you have a headache, stay home. If you have a cough, stay home. If you've been exposed to anyone with those things, stay home, right? That's what we said. And truly through this, what our team has said is this is no one's fault. This is a consequence out of COVID that we've got to figure out how to overcome. It's not the parents' fault. It's not the students' fault. It's not the school's fault. It's no one's fault. But we're now

[02:24:01] facing this issue that we've got to overcome and knowing that we can't point blame at anyone we've got to come together as a team and work through it and so that's been a big piece of changing that mindset because again during covid we said if you have any of these things or exposed to any of these things you need to stay home and we've got to change that mindset so with that being said dr alpern i'm going to ask you to come up we're going dr alpern is going to talk through a little bit about so what did that look like what did that team concept look like of overcoming what what we were looking at good morning so i gave you some folders and i'm going to refer to

[02:24:39] that if you'd like to look at that so on the right hand side by the way is our presentation but on the left hand side um behind um the high handout um is a chart and you'll see an attendance responsibilities chart because what we quickly realized is that this is going to take a team approach and what's not on this um on the columns are the parent the parent is really going to be a part of this attendance improvement as well but each one of the uh roles in the chart um involve a different member of the school staff so you'll see that there are um attendance and support specialists truancy support a

school social worker a school principal or designee a teacher and attendance secretary but we're going to focus today on the attendance specialists so we're very

[02:25:18] thankful that in louisa county we have actually five attendance specialists that really have that zeroed in focus on attendance when we look at the roles and responsibilities the team you'll see that as you go down the rows that we are constantly reaching out to parents based on the number of absences that a student may have and we address not only the um excuse absences but also the unexcused so the ones that are going to be affecting chronic absenteeism as you know are both excused and unexcused but we're looking at all of those in relation to truancy and also chronic absenteeism but when we look at that we we know that we are going to be able to need our parents to really interact with them and have those communications have immediate feedback with them and i'm going to illustrate that by a couple stories so our attendance support specialists are

[02:25:58] constantly looking at making those connections with families through phone calls through home visits and i'll give you an example of one family there was a student at the elementary level who was not able to come to school and the attendance support specialist gave a call to the mother and was really talking with about what what are the barriers that are preventing you from coming to school come to find out they had a long driveway to get to the bus and they she could not get to the bus take her child to the bus and also take care of an infant that she had and also deal with some health issues she was having she couldn't carry the child to meet the bus so the attendance support specialists worked with that family and it turned out that what was helpful to them what she suggested was getting a stroller and to be able to have the stroller so the parent could walk

[02:26:34] the child and the family to the bus so that was one example of that another example i would give you is at the secondary level just recently and we had a tenant support specialist that was working with the young lady who's pregnant um and so the young lady was saying the student was saying that she wasn't able to come to school she was just too stressed wasn't able to do this and the school and the uh tenant support specialist has a school social worker background and she said you know when that baby comes you're going to need to make them proud you're going to need to be able to be there for your for your child and this is the time that you're really going to have to get your feet on the ground get your high school education three days later that student came up to the tennis sports specialist to their office said check my attendance i've been here three days straight and it's because of you because you connected with me so it's those stories i want

[02:27:12] to illustrate to you because it really is that personal connection that it requires you can't do that through a robocall you can't do that through a form letter or anything that a newsletter those things are great and our attendance support team does those things they create newsletters they have the our attendance secretaries are filling out those letters we have the robocalls but it's really those personal connections that are important because we need to be able to find out those barriers for students and families and really be able to help them during those times one of the things that they also do the attendance support specialist is that they also work with the families to come up with times that they can make up instruction after school through meaningful engagement so after five missed days of school you'll see that as one of the rows on the attendance

[02:27:49] responsibilities chart they're looking at those excuse and excuse and being able to really reach out to families about meaningful engagement so what does that look like that missed instructional time it may mean that a child's day doesn't end at 3 30 it might end at six o'clock because they're staying after

school there's some some of our schools have saturday school as well and they're looking at that time to really make up instructional time so it's not just busy work it's not just time where they're just sitting there they actually have to engage in the assignments that they've missed during the day so for example if a student's missed algebra they're working on that algebra work after school so the teacher feels invested in this the parent feels invested and so they're actually using that time for that um it's also a time and you'll see in some of our other ways that

[02:28:27] we're reaching out to families it's a time that we can feed them so before they even start on the after-school engagement they're being fed a meal after school we also provide that transportation after they're finished so that's not a barrier either so they'll be able to have transportation home after the after-school instruction and then also it's also an opportunity to really reach out to families and see what is it that we can provide for them so we we are able to connect with them through counseling and not during the after school time but really reach out to what things they might need so one of the pieces um and i would just go back to this uh for a second would be to say the mentality change the the change in mindset here is you're absent but it's not okay to miss

[02:29:04] this time we have to make up this time in helping our families understand we're not just going to say okay you're absent no you're absent but now we need to we need to get you here to make up this time that you've missed. And that's been very powerful in our community is helping our students understand you really need to be here during the day. We've seen this mindset change of starting to come because of, well, if I know I'm going to have to make it up, maybe I should just go to school instead. However, but continuing that on and having the attendance specialist be able to reach out immediately to families and say, all right, they missed, so we need to schedule this time to make

[02:29:41] up the time. Instead of just saying, hey, we missed you. We're sorry you weren't here. Don't do that again. No, we missed you. We're sorry you're not here. So now let's talk about when we're going to make up this time that you've missed. And that's been very, very important and very powerful. Our teachers have been very supportive and behind this. And you may not have your teacher after school. It may be a different teacher because we can't have our teachers working after school every day doing this. We understand that's a lot of burden. But we do have folks that have said, hey, we want to be a part of the afterschool. So we're not mandating that. We're asking for volunteers, of course. We're compensating them

[02:30:17] for that. But that's been a powerful piece as well. So Dr. Alpern talked a little bit about barriers. And we want to talk a few minutes about these barriers. So transportation. Louisa County is a very long county. It's 515 square miles. So that's a lot of area to cover. And transportation, certainly getting our kids to school is a very important aspect of what we're doing.

[02:30:38] But when you think about that, our buses get on the road very early in the morning. So sometimes our kids miss the bus. Sometimes they're not there. But one of the things that's really important is we make sure we're working with our bus drivers as well. We've got a wonderful group of bus drivers who really understand their role is more than just bringing their kids to and from.

[02:30:57] It's greeting them with a smile every morning and saying goodbye in the afternoon because the first person they see that's involved with the school each morning and the last person they see in the afternoon so making sure we're having those positive connections because that often will help a kid want to come to school to have that connection two when our students potentially would miss the bus or not not make it to the bus stop on time we also have cars available at our schools where our counselors or

potentially even our administrators or central office staff would jump in the car and go and pick up students and bring them in and help overcome those those barriers as well one of the things we want to do is not make that a habit that can't

[02:31:37] become a hat but that becomes but that's part of what's saying we you need to be here we need you here but not again developing that into a habit but also having those resources and then from the school in the afternoon from the after school or the time for the makeup makeup instructional time we often we also provide evening transportation so students are provided with that transportation home as well uh in those afternoons so another barrier facing our children and our families really is mental health and the rise of mental health issues so one of the things we have and we're very blessed to have is a partnership with our local region 10 community services board and we're

[02:32:16] able to have mental health counselors on staff in our buildings every day we also have two crisis counselors as well to help our students in addition to that we have our um hired additional school counselors for the elementary level and one at the middle school level to be able to really target our students needs and in that we also have a communication with our outside resources like sheriff's office rescue squad a fire department with something called handleable care so they let us know if there's something that happens in the community um just lets us know that that child may need some wraparound support so we are able to inform our school staff about that and then finally sources of strength is another program that we use we're able to give at the elementary

[02:32:52] level give them some supports for resilience and things of that nature and then that secondary level really give them um supports in terms of crisis management and things of that nature so um it's it's a club type of activity for sources of strength but mr shirley can tell you a story about how they really make connections with students and they're able to really reach out to them because it's in those personal connections to the attendance support specialists we really find out what things our students are struggling with for example they don't want to come to school because they don't know where to sit in the cafeteria for lunch um so that that type of thing is really powerful and i would say um yeah sources of strength program uh is student-based

[02:33:24] So I had a young man, I was at the high school, and I try to be in our schools a lot, and I was there the other day walking through classrooms and speaking with a young man, and he said, you know, I really like it here in Louisa. I really like it here. I was at another school, and it was from out of state, and he said, we moved here to Louisa.

[02:33:42] I really like school. And I said, well, tell me more about it. Why do you like school? And he said, well, my first day, which was recently, he said, first day, another student came up to me and said, are you new here? And he said, yes. He said, he said, why don't you come eat lunch with us? Come eat lunch with us. And this is a student that's part of that sources of strength. These are students that are constantly in the school looking for things that are looking for students that may not feel like they're a part of what's happening. So another powerful, powerful piece with having that student engagement as well. And then I'll speak briefly on the handle with care piece. The handle with care piece is, Dr. Alpern mentioned, is through our sheriff's office, so forth, where they alert us.

[02:34:22] If there was something happening in the community or a student was involved in any type of incident, they immediately let us know. We don't necessarily know all the details of what happened, but

what we do know is that student was involved in some type of incident or trauma in which we can make sure we follow up or just make sure they're okay when they get to school the next day, which is great.

[02:34:41] I wake up to an email every morning that has those names in it if there were names, and so do our principals and counselors as well. So that's very helpful through our SSURS office. Another barrier that our students face, and it's also one of our aspects of whole child support, is food and other insecurities.

[02:34:58] So we're at 72 percent, 71 percent, excuse me, free and reduced lunch in Louisa County. And one of the things that we're able to do, we partnered in the years past with No Kid Hungry, and we're able to get grants to support breakfast in the classroom. We continue with that now. But breakfast in the classroom is where students get to eat at the elementary level.

[02:35:16] they eat in the classroom, and it's a great way to connect with the students. Teachers talk with them about their day and about their evening before, and they are able to connect with their peers, and then they get right into academic learning, so there's no wasted instructional time. The other piece of that is at the secondary level, we have grab-and-go meals, so they can come right off the bus or out of their vehicles and be able to grab breakfast and be able to start. It really helps with not having hangry kids in the morning and be able to get focused on what they need to do. And then also, as I mentioned, when they stay after school, they have meals right before they start and we also help them with weekend meals at the end of the week and in the summertime we have a mobile feeding program as well in addition to food we also have a clothing closet at a number of our

[02:35:52] elementary and secondary schools we also work with our local resource council that not only provides food but also helps with they have a clothing closet as well one of the we talked a little bit about how important these attendance specialists are and making those those personal connections and making those phone calls with families and and just an example of that is a parent saying well my students, my child, they don't have this type of clothing or that type of clothing. And those clothing closets, there is clothes donated from the community. They're there at school. A student can go in, pick out whatever they may want, or a parent can come in and help them as well. And

[02:36:27] Carla also had an example of a connection with a washing machine as well. Right. Another phone call that was made was that they did clean their clothes, but their washing machine didn't rotate correctly. So it would come out mildew smelling. So they were embarrassed about the clothing they were wearing so again that was a one phone call to our resource council about whether or not to they could provide another washing machine or repair it but again it's those personal connections that you make with families to figure that out because otherwise we wouldn't know that yeah and all that's happening through those attendant specialists that you have uh that we have on on staff that are able to really make those connections and get them in and then and then the last barrier safety and security i can tell you my number one priority in louisa is to never

[02:37:05] have a student not want to come to school because it's they don't feel safe um we have to make sure the safety and security is is in the forefront of all we do we have school resource officers in all of our schools but to build relationships to build relationships with our students they're there playing kickball they're out there in the classrooms doing projects with them they're doing all those things but that's a we're very proud of that program and what they do and the connections they're building also we we did put in weapons detectors in our schools this year not to be reactive but proactive to to to implement those in our

schools where we one more layer of protection for our students in which again not being reactive to a situation but being proactive

[02:37:44] because i want every student to be able to walk through and make sure they're feel welcome and invited into our schools and that's been a very important piece of putting those detectors in is making sure that that never was lost that the the welcoming piece was never lost so again they're not if they don't feel welcome or they feel like they're walking into a place that's not safe they may not come so we have to make sure and again just building positive relationships i think everything we talked about here today is about building positive relationships building positive relationships with students with families and staff across the board and then again to end this

[02:38:19] i would say it's all about having your community buy into our vision our community buying into what we're doing and it's been an important aspect of of this whole program i will tell you at the beginning of this when we began the meaningful engagement makeup instructional time those really weren't on board with it at the beginning i mean there was a process we had to work through this we're doing a year and a half now it's been a real process of working our families through it and understanding we want you here we're not doing this just for our benefit this is for your benefit

[02:38:53] this is for your your future the benefit of your future and making sure this happens and and now we've seen a real buy-in from our families and it's taken a while to get there is our program perfect i would say absolutely not but is it moving us in the right direction i would say yes it is indeed and we're proud of the work that's been done over the last year and a half because again i think this truly is one of the biggest issues facing public education as a whole and our country's prosperity moving forward is making sure that we can really combat the chronic absenteeism in our schools but it has to be a team effort as you've heard it's all of us working

[02:39:33] together and not pointing fingers but all working together to make it happen and to last i would say we are grateful for the all in virginia plan from that came um from from the governor and from uh department of ed and from you all because that is additional funding to help do the things that i just spoke about um and that funding is really important in helping to continue this to move forward so thank you for that as well and again thank you for having us here today dr kins i think

[02:40:03] We obviously didn't read everything to you. I know that was a great disappointment, I'm sure. But if you wanted to look at your folders on the left-hand side, the front was also one pager that we've shared with other school divisions. Just tells you a little bit about the day in the life of attendance, truancy support specialists, and some other information for you. Thank you. Thank you, Barbara. I want to thank the board and thank Mr. Straley and Dr. Alpern and the Louisa staff for giving a model of how to take a comprehensive approach.

[02:40:31] We've talked a lot, as many of you have gone to listening sessions and heard around the state, a lot of conversation around chronic absenteeism. But as the chronic absenteeism task force that was commissioned by the governor has talked about, this takes a comprehensive approach.

[02:40:48] it's not a one system approach the team has not layered on as mr straley said multiple times to teachers there are roles and positions that support each component of this there is a strong vision and a strong stance around meaningful engagement and making up instruction and you talked about the partnerships that the school division has made with law enforcement with community members and with

resources and so as we continue to think about this i just want to commend the work and really lift this up, not only for the board, but across the state as a model

[02:41:24] to help our school divisions think about partnerships and think about a really strong comprehensive approach that doesn't ask a staff member to do one more thing. It actually has clearly defined roles, clearly defined outcomes, and very clear partnerships of how to move forward.

[02:41:43] So just thank you for presenting, but thank you also for setting a model for the state on how to help our students and our families re-engage with school. So thank you. Thank you. Any other comments, Dr. Northern? Yeah, I wanted to hear just a little bit more about this missing instructional time.

[02:42:03] You know, I hear all across the, you know, a bunch of different states are thinking about this and trying this, and you guys said it took a little while to get the buy-in, and your message is so positive about the positive relationship. So it sounded like, you know, the teachers, they were voluntarily given their time or other folks after school.

[02:42:20] I mean, so how did you really get the buy-in? Because on the one hand, it could be potentially viewed as punitive. And on the other hand, you know, you guys are working really hard to, you know, you know, focus on positive relationships. So how do you thread the needle when you're asking kids to make up time?

[02:42:36] Yeah, and it's a it's it's very much threading the needle. OK, so and that's and that's been something that's been very delicate as we're moving forward with this. But just making sure and helping helping our whole team community understand it is not punitive. This is not about being punitive. This is about being.

[02:42:51] This is about helping you invest in your future to make it better. And those are the types of conversations really having those conversations. I will say in the summer of June of 22, which I started the presentation. Now, with part of that was reviewing the data and the comments back every year.

[02:43:08] I I ask our staff at the end of the year, what are some things we need to start doing? doing and I survey every single staff member what are some things we need to start doing stop doing and continue doing and one of the things that and I look at that data very very carefully and we heard very clear we need to start holding accountable on the absenteeism chronic absenteeism which made us really start digging into that 10.2 number to realize it was 33.7 not 10.2 and so in looking at that number and looking at that number you know it was really so we heard the staff say this is what they wanted so then we came back and said we heard you say this we're going to invest

[02:43:40] And we have a very supportive community, as I said, with the Board of Supervisors and our school board working very closely together to say, we need these positions. We really need these positions to help us keep this in the forefront. Because, again, to get that teacher buy-in, I can't go and say, all right, I need you to do this, this, and this.

[02:44:00] We had some other staff members that were going to be able to do this, this, and this. If you look at that chart closely, really the teachers engaged on day three, on the day three absence. Beyond that, we have so many others engaged. We want our parents to hear from the teacher to say, we want you here, but not overburdening the teacher, as you said.

[02:44:17] And I think that's another piece of the buy-in. It can't be dumping all this onto teacher because there's so much to be done. And that's where the additional staffing came in. Just logistically, if a child comes for after school and they stay for three hours, is that making up a half a day, a full day?

[02:44:34] Or how do you operationalize how that make-up time works? Yeah, that's a great question. So on the makeup piece, so if you come to an after school session, then you're making it depends on whether you're high school or at the high school level, you're making up two periods, right? So you're making up two blocks of class for each after school that you're doing, which essentially on the books is a day. You're present for that day, correct? But you're making up two blocks.

[02:45:01] But we make what you must make up. And then at the middle school, the elementary level, saying they're making up, you go to the after school, you're making up essentially that day. OK, OK. With the high school level, we treat it a little bit differently from the standpoint of by period, if that makes sense, or by block per class.

[02:45:20] OK, thank you. Thank you, President. I heard about your program. I live a good wage from Louisa County. I live in Mecklenburg County. And I've heard a lot of good things about what you're doing. I've heard that you're building a family approach with your school division, and it's all positive. So I would say just keep up the good work. Thank you.

[02:45:39] Dr. Siebert. Good morning, friends. I'm sorry I'm not there with you today. Principal Luisa, kudos for my colleagues on the board. I'll note that it is not uncommon for Luisa County to do work worthy of recognition and emulation elsewhere in the Commonwealth.

[02:45:56] So just really happy to have them there sharing today. Question for the team from Louisa Cox-Raley. Considering that many school divisions of Virginia right now are doing similarly important work, again, the work of let's make up missed time with meaningful instructional time.

[02:46:13] You know, if time was missed, let's recoup it. Are there any clarifications of existing BOE, DOE regulations, approaches, guidance that we could provide to make this easier? You know, again, a lot of our regulations and attendance accounting were not built on this idea of recouping time and getting time back.

[02:46:34] So is there anything that, you know, either the board or the department can do? And again, this question might also be, you know, Dr. Koons, is your work on superintendents on this work? Is there any clarifications that your team can put out? That will make it easier for both for this work to move forward, but also for the divisions to account for, calculate, and get credit for the credit that's there in terms of kind of absenteeism.

[02:47:00] Dr. Kingsley, would you like to speak to that? Would you, for me to speak to that? I would love for you to speak to the clarification that you would need and just state that we are working with you and several other school divisions to collaborate on how we move forward with that. So, yeah, I would love that.

[02:47:15] Yeah, indeed. Well, simply, we would just need the continued support of being able to utilize the meaningful engagement piece because it's so valuable when you speak with families to be able to say, we're looking to try to help you move forward with this and not just say it's okay to be absent.

[02:47:32] There's going to need to be some scheduled makeup time for that, and I think that's so important, so we appreciate the support on that and be able to continue to do that and use that in a positive way for families to continue to move forward. And Dr. Siebert, we're working on guidance for January to be able to give Mr. Straley and other school divisions that are also using that.

[02:47:56] There are some coding kind of things and things we need to do on our side, but the team in Dave's shop is definitely working on, working towards that. We appreciate that. Thank you. Other comments? Ms. Holton?

[02:48:15] Well, first, just thank you for your great work and thank you for coming to share it with us. This is really impressive, especially considering you're working with a high percentage of free and reduced lunch families who are facing all kinds of challenges, and yet you're helping them understand the importance of getting their kids to school.

[02:48:31] And I'm sure that's the, all the other pieces are all in support of the, even the makeup school. I'm sure your goal is not to have to do makeup classes on Saturday, but rather to have help families understand the importance of getting to school in the first place. So from everything you're doing, I'm also looking at your school quality profile here, and I'm seeing that again, even with families that have, you're serving a high percentage of families with lots and lots of challenges.

[02:49:01] you are above the state averages both in your uh outcomes and in your progress um so uh kudos to that and i'm sure a big chunk of that is absolutely this you can't teach kids who aren't in school i have two questions the first is really following up on um uh dr siebert's question beyond um anything in our um absenteeism calculations is there anything else we at the board can do to help support your work and help spread it uh across the state if you have thoughts on that now we'd love to hear them or if you have thoughts in follow-up you know we're

[02:49:40] working in our soq recommendations for instance today etc or anything else you need us uh want us to hear yeah i appreciate that question uh greatly and certainly we want to continue to collaborate with dr coons in which we have been um and dr rayleigh we appreciate their support through this because we've really been talking through how can we best do this because we want to help our colleagues across the commonwealth um some of which are out in front doing some great things already and we wanted to share with one another so we would just want to be able to continue to partner with again all of our colleagues across the commonwealth to to help one another through

[02:50:15] this it's one of the most important things facing us as i've said and it's not an easy this is not an easy um uh problem to solve it it is it's a tough one if not we wouldn't be here discussing this with you today right so um just want to say we just need to continue to work together we need to continue to partner with one another to work through this to get to the other side of it and i think we certainly aren't going to get to the other side of it but we have to work as a team and work together to do that and we're happy uh and excited to share uh with our colleagues and and and again i come back to say there are many pieces to this um to this uh plan as you've

[02:50:51] heard uh but a big one is that meaningful engagement piece just being able to provide that to our students and be able to have that as a way um because just be able to say we want you to make up your time we want you to come in and do that being able to to say that is that certainly is a big piece of this is is an understatement because i think our families have really bought into that and to have that is is crucial so

thank you and then my second question is uh to do with funding so i'm assuming that much of this was funded with esser money to start with and then

[02:51:25] with the all in virginia funds which as you know are temporary one-time funds at least so far i'm assuming also that your board of supervisors you had some local funding i mean that these positions the attendance specialists the whoever staff staffing saturday school the 6 pm evening bus round etc all that you're not doing some things that don't cost money and you're doing a lot of things that do cost money um have you how have you uh uh managed to fund it so far and what are you going to do when those temporary funds run out um do we do it and out and really

[02:52:03] i'm as i say i'm very focused on soqs as we're thinking about that today but many of these positions i assume are not so currently not soq positions they're the attendance specialists i guessing those fall under the support cap for instance so so you're having to allow a non-state funding for a lot of this what what's going to happen going forward if if you if the all-in money when it when it ends if there isn't a replacement for that so we've been you're exactly right on the srp so up to this point we don't use our sr funds to fund much of this also we're in conversations with our board of supervisors currently about the position the attendance positions because we

[02:52:41] feel that they are so valuable to keep in again it's going to build a better community by having them there so that's a conversation we're having now um the all-in uh virginia funding certainly is going to help us for the next few years moving forward with this um although the attendance piece was about 10 however i would say the learning piece and the literacy piece all of that fits together and it fits together nicely um because it it's really all one uh if that makes sense so but truly beyond that funding will be local funds that we will need to have thank you any other

[02:53:18] comments we are so thankful that you all came today and we're even more thankful for your leadership in this arena and your collaboration because like you said if we are not holding hands and locking arms to to figure this out we know that some things that work in louisa may not work in alexandria or norfolk but there's a playbook that you guys have developed and it is so worthy of every moment you all spent doing that and so truly thank you for being solutions oriented

[02:53:56] um and being forward thinking so we appreciate you guys coming today to to show us this wonderful all these wonderful things that you're doing and we really hope that by giving you all this opportunity to highlight what you're doing in louisa this is something that speaks to the rest of the state um to use as their model moving forward so thank you so much we appreciate you all being here today thank you thank you and for the public all of these resources are going on the board website and they will be on the state chronic absenteeism page so the public can learn

[02:54:32] from your excellent work and model here today thank you thank you so much thank you okay um for the board's information we are going to take up item i and item j and uh oh do you have to speak are you okay yeah okay we're gonna do item i and item j and then we will break for lunch so mr chapman thank you president creasy members of the board thank you for having me back again um have uh one last item lease of mind for today it's the first and final review

[02:55:11] of the board of education advisory committee all virtual public meeting policy and so essentially what's happening in this item is back in 2022 there were some changes to the virginia freedom of information act that made some adjustments to the requirements for boards and other public bodies who wanted to have remote participants you may recall with that part of the legislative change this body

changed amended its bylaws over the course of two successive meetings in order to make sure that the bylaws language mirrored what was in the statute that action in 2022 that

[02:55:46] legislative activity also opened up a new section of the freedom of information act that allowed for all virtual public meetings for some bodies and the board itself is not eligible to hold an all virtual public meeting because as the statute specifies it has the authority to revoke or suspend a professional license however in consultation with the office of the attorney general and very specifically at the request of some of this board's advisory committees very specifically the uh the college partnership laboratory school standing committee um and also ecac has already

[02:56:21] the early child advisory committee has already adopted a policy like this that um this action would would overwrite um the board is allowed to adopt a policy on behalf of its subcommittees and so what we have for you is an all virtual public meeting policy that was drafted by the office of the attorney general which would not allow the board but would allow for the board's advisory committees specifically under this policy abtel the advisory board for teacher education licensure on teacher education licensure the state special education advisory committee the college partnership laboratory school standing committee and the early childhood advisory committee that's

[02:56:59] already been meeting under the all virtual policy to meet virtually and we think will greatly facilitate their ability to get meetings done will ease the burden of staff uh and certainly lowers cost for for the the state um in terms of travel reimbursements of the sort um so we have this presented on first and final view especially because the policy has has come out of the office of the attorney general thank you okay i think additionally um this this comes as a request

[02:57:31] from some of our committees and the committee chair people asking that we kind of make a more uniformed approach here. And so we would like to move this forward first and final. And so that alleviates some of the pressure on some of these board advisory committees. And so if I can a motion to waive first review and adopt this all virtual public meeting policy on behalf of

[02:58:08] our committee or all the subcommittees and committees of the board um second any discussion on this yes i want to thank mr chapman i mean look we have a big commonwealth here and i think it's easy to forget particularly folks on the eastern shore and over uh when you get down to southwest virginia just how far it is to get to richmond and if we want to be able to have these boards be inclusive and involve all stakeholders i think this is really important and so it's just it's just a great step which we're reaching people and i'm really uh appreciate mr chapman's efforts

[02:58:46] to figure out uh how ways we can ways we can do this that you know allow for the necessary transparency and so forth but also allow us to engage more folks in what we're doing dr northern yeah i was i was gonna echo that sentiment with it also gives us the opportunity that's a lot easier for us to sit in on some of these meetings as well um so i love that um and on that note it would be great if they take you know us up on this to get a schedule of when they do meet virtually just so we can have an opportunity to pop in and benefit from their expertise definitely any other

[02:59:21] comments. Okay. Ms. Kilgore? Aye. Ms. Holton? Aye. Dr. Siebert? Okay. Dr. Northern? Aye. Mr. Stardofan? Aye. Mr. Rotherham? Aye. Dr. Siebert? Okay. And chair votes aye. Okay. Thank you very much. Okay. Dr. Sorensen, would you like to come up for item J, please?

[03:00:01] Good morning, Board. Thank you for having me. I would like to present to the Board of Education the Guidelines for Instruction on Problem Gambling and the Addictive Potential Thereof.

[03:00:27] We have been asked to present guidelines to the Board of Education here by the Assembly. And so what you have here from us is an overview presentation of those guidelines. So if we can go to the next slide, please, which in this presentation, we will review the legislative directive, the key elements of the proposed guidelines, stakeholder engagement, the development process, and then entertain questions from the board, if there are any.

[03:00:58] Next slide, please. And the proposed guidelines and this guidelines and the guidance to school division includes instructions on how to recognize symptoms of the problem of gambling in our young people and prevent youth gambling and risky youth behaviors.

[03:01:18] And research-based life skills trainings approach that focus on not only the protective behaviors that could engage students in gambling, but also the personal competences and empower students to achieve healthy wellness throughout their lives.

[03:01:34] We focus here also on terminology, definitions, resources. There's research-based, evidence-based resources for parents, communities, educators, all to use not only in classrooms and in educational settings, but also for parents to use with their students and with their children at home.

[03:01:55] This is a comprehensive approach, both for our educators in school and for parents and community members to engage with youth around gambling. Next slide. The development process was not just done with VDOE.

[03:02:12] We engaged with health education standards of learning, but we also reviewed numerous instructional resources and lessons that were out there, recovery resources, treatment resources that are all listed in the guidance document.

[03:02:30] If you go through the guidance document, you will see there are numerous links for folks to engage with and use on their own, as well as we talk about the training that we are going to engage with across the Commonwealth.

[03:02:46] In the guidelines for instruction, there is an opportunity for folks to engage with not only resources but also research-based articles. These resources were developed with, I'm sorry, the Department of Behavioral Health and Developmental Services, a steering committee composed of BDOE staff and the Department of Behavioral Health Department Services staff. Two health educator groups met monthly to develop the initial draft. They held three focus group meetings,

[03:03:25] had several consults teachers representatives from higher education there were over 20 community members from service boards subject matter experts all came together to create this process so this was inclusive of not only members from other agencies across the commonwealth but educators and people from experts expert agencies across the commonwealth so our proposed next steps If you can go to the last slide, our action is to seek Board of Education approval.

[03:04:03] We want to upload these resources on multiple platforms. We want to upload it on HealthSmart. We want to upload it on GoOpenVA. We want to link it to the VDOE website. We want to communicate it in the superintendent's newsletter.

[03:04:21] We want to email this out to division program coordinators and health education coordinators. We want to create links that would also be on our website, and we would also want school divisions to list this on their websites.

[03:04:38] We would also engage synchronous and asynchronous professional development for health educators and for community members. So if you look in the guidelines document and you go through it, you will see not only the ask of BDOE, but you will see lists of definitions.

[03:05:01] You will see the guidelines that clearly spell out what school divisions can do and how school divisions can react and support not only students, educators, and our young people.

[03:05:20] there are parent involvement resources and then there are also professional and instructional resources that can be used in the classroom and then concluding there are references where this was developed from so we ask the board to move on first and final review okay um that being said prior to discussion can i get a motion to waive first review and approve these guidelines as

[03:05:54] they've been presented so move second okay any discussion miss holton yeah i'll defer oh i'm sorry uh dr sievert i have huge props to the department of staff for turning this around um and so i support this work and congratulations for getting it done it's important work my plan however moving forward in this role is that every time our friends in the general assembly

[03:06:30] choose to add to what we're going to teach i'm going to go ahead and make a point that upon decades we've been adding what to teach and we're not adding hours in the day for days in the year to teach it and so this invariably makes a squeeze i mean this is all well intentioned this is important but it comes back to our conversation earlier today about time and flexibility um so really well well conceived approach thank you for implementing the legislation in a good way but this is uh this is a this is when we continue to add without add expectations

[03:07:03] without adding time thank you mr rotherham yeah i also want to brave you all for the fact to turn around uh dr siebert and i had a bet on how quickly you guys would be able to get this turned around um so uh i do want to build on what dr siebert said though one of the things i actually really like about this is how you talk about we're going to do this in an integrated way. So what often happens, and it reinforces the problem that Dr. Siebert's talking about, is we're going to do this so you're going to get 15 minutes of anti-gambling and gambling awareness. And instead, what this

[03:07:42] document talks about, I think is really important, is we can integrate this. You can learn about some of the problems with gambling in mathematics. Some of it's statistics. You can learn probability. Some of it's you're going to learn in personal health the same way you learn about other addictive kinds of behavior.

[03:07:58] And I think that's all for more time. I think we should have, like, you're going to get no argument out of me about a longer school year and so forth. But I do think also if we don't treat everything as just like a separate add-on, but instead integrated as the good work here gets at, I think there's some ways around that.

[03:08:15] So I just wanted to call attention. I was really, really pleased to see that in the approach. So we're telling schools to do this, but you can do this in ways that are engaging for kids, a matter of course with with some other things that are already going on. The goal is to engage children authentically in the work and have this be as easy for educators to implement as possible.

[03:08:40] Okay, Dr. Northern. Yeah, I see a link that says they're linked to the health standards of Virginia. But when I click on it, it actually doesn't take us there. So we probably want to just double check all the links before we post. And I think it would be helpful to actually tie, and maybe it's in here because obviously I'm just scrolling through, but to reference the specific health standards that this does support.

[03:09:04] So to these points already made that we're not just layering on these already buttressed health standards that are in place at particular grade levels. Thank you for that feedback. I appreciate it. Any other comments here? Ms. Holton? I just, without belaboring the point briefly, will raise that I'm concerned about doing this on first and final review today.

[03:09:27] I don't see any reason why we can't wait and let the public be involved. And I do appreciate that you've done stakeholder engagement. I did not hear parents specifically, but I hope and trust they were part of the process somewhere along the way. I'm sure you all have done great work. I don't see any reason why this that was posted again Thursday or Friday, three, two or three business days ago for the public to share why we don't wait and vote on this in the regular order, which would be January.

[03:09:55] And today, I haven't had the opportunity to adequately study the details of this to feel comfortable voting on it without having the public have an opportunity to tell me. I'm sure there was somebody in the public that helped move the General Assembly to legislate on this. And does this meet what their original intention was? Is there more they think we should do? Is there something different we think they should do?

[03:10:16] My guess is that the public's very happy with the result because you all have done such good detailed work, but I don't know that and I wouldn't want to move on this. so I will abstain today unless we can put this off to January. Other comments? Okay. Ms. Kilgore.

[03:10:35] Ms. Holton. Abstain. Dr. Siebert. Aye. Dr. Northern. Aye. Mr. Sturdifant. Aye. Mr. Rotherham. Aye.

[03:10:51] And Chair Boots, aye. Thank you. Thank you. Dr. Sorensen. And please, if we could, we're going to move to item N, because we have had someone sitting here waiting to do her presentation all morning and i don't want to make her wait any longer welcome thank you so much for coming um so good afternoon my name is ann eaton and i would like to begin by saying thank you to you president creasy dr coons members of the board for this opportunity to be here today as you recall

[03:11:26] dr emily salari was here last month to present this list for the first time since dr salari is not able to be here today i am here in her place representing the virginia literacy partnerships at the University of Virginia. You probably remember that Dr. Solari and the VLP have an ongoing collaboration with the VDOE and with the board as we work together to implement the Virginia Literacy Act. Part of the work of the Virginia Literacy Act is to identify high-quality instructional programs rooted in science-based reading research and aligned with evidence-based literacy instruction.

[03:12:03] Both of these terms, science-based reading research and evidence-based literacy instruction, are defined in the Virginia Literacy Act. The role of the VLP is to provide guidance on which programs are rooted in science-based reading research. As you know, we are far into this process. As I mentioned a moment ago, Dr. Solari brought the Recommended Core Instructional Program Guide to you last month for first review. Today, it is my honor to present the Recommended Core Instructional Program Guide for Cycle 2 for the second time and answer any outstanding questions

[03:12:39] that you may have. I would also like to highlight the actions we have taken since last month's meeting at the request of the board. Let me pause for a moment now before I continue with the list. So next slide, please. On this slide here, you can see the list of core instructional program guides that we are recommending for approval. These programs are rooted in science-based reading research and aligned with evidence-based literacy instruction. It is worth noting that many of the programs on this list are a result of the expansion of the Virginia Literacy Act to

[03:13:17] include grades 4 through 8. And then if you could go ahead to the next slide. At the board meeting last month, a question surfaced about Virginia's rubrics and ed reports. This second slide provides the crosswalk between the two. It is important to note that there are some commonalities among the two rubrics used to evaluate programs, as well as some key differences. While each of these rubrics is intended to identify best-in-class curriculum, the way in which that is measured varies. Both the Virginia rubrics and ed reports reflect the understanding that instruction must include

[03:13:57] strong foundational skills, developing oral language, and building background knowledge and comprehension. But the Virginia rubrics align to the Virginia Literacy Act and are deeply rooted in science-based reading research and evidence-based literacy instruction. The Virginia rubrics reflect the science of what we know to be true and necessary for instruction for all kids, including an emphasis on explicit teaching and corrective feedback across all literacy components. Finally, I want to make sure to follow up on a request that was made by you

[03:14:33] last month, Ms. Holton, and that was that our team meet with Roanoke City Schools. We had a great conversation with Dr. White and her team. We were able to explain the review process in greater detail and answer their questions. We were also able to provide more specific information about why Witten Wisdom did not meet expectation on the Virginia rubrics, and the VLP team has made themselves available to make sure that Roanoke has the information about the review to determine their next steps. At this point, I am happy to answer any questions

[03:15:06] that you have. Any questions? Ms. Holton? Thank you, Ms. Eaton, for presenting and for subbing for Dr. Solari we're delighted to have you here and I appreciate your comments about wit and wisdom.

[03:15:25] What I do see in your report is that ED reports says that it does meet the expectations and as I understand it both Roanoke and another significant division in Virginia have gotten ahead of the curve in implementing science of reading. Did their own research verify that these programs have been used in other states that have been at the cutting edge of science of reading and they're already using them and i hate to see disruption to that process as i understand it written wisdom the one of the issues is that they uh they address part of the curricular need but not all of the

[03:16:05] curricular need and for those reasons i see that they were submitted in complement with complementary programs so they were submitted both with foundations or with really great great reading did your committee reviewers look at them in with those partners and um and this and or can we consider them in some fashion going forward with those complementary materials and what's what's the process going forward i would hate to see us and again this may be for dr coons rather than you but i would hate to see us not give these divisions an option to use something that they're already

[03:16:42] using that's working that's consistent with the science of reading and so i don't know whether I'm happy to the process of this and the process is that indeed Witten Wisdom did apply with two

partnerships so to cover that area that they that they acknowledge they do not have which is really phonics they did apply with partnerships so we actually had two Witten Wisdom applications and each one had a different partner for that phonics piece and if I could speak to again to um to Witten Wisdom in the lens of Virginia I think it's really important to remember that the Virginia rubrics are

[03:17:18] a very comprehensive review it's a very deep dive in every area of literacy instruction so it includes a lot of those same elements that are in wit and wisdom and certainly i think we all can agree that wit and wisdom has a number of great strengths but the program partially met or did not meet expectations in a number of criteria including explicit instruction corrective feedback and decision making for instruction that is tied to assessments and that is really salient across all elements in the rubric so across all literacy elements and the science

[03:17:57] is really clear that a literacy program needs that corrective feedback and that explicit instruction in order for all kids to learn how to read and write and so the overall result is that they did not pass it's really those salient themes that i named are there comments

[03:18:16] So my next question would be, if those divisions are not satisfied that those curriculum, that they can't, if those divisions still think they can meet the needs of the curriculum with their complementary materials that address phonics and the other basics you mentioned, what's their option?

[03:18:38] is there a process and dr coons if you can help us understand what's the well you know i what i don't want to have happen is have these divisions that have gotten ahead of the curve using valid good materials have to change their process retrain their teachers set themselves back and their kids back going forward so what what are the other options they have dr coons that's a great question i think we have worked with dr salari and dr salari is working with wit and wisdom but but there are options under statute that we could create a process that would allow school

[03:19:14] divisions already using materials to appeal if that process was necessary. So we have been working collaboratively with Dr. Solari, with Roanoke City, with other school divisions, but there is process in the statute that could be invoked. And what do you need, if anything, from us, the board, to invoke that process and go forward? If we have an appeal process process that can come to you in a timely fashion so that these divisions don't get disrupted going into the next school year, then I'm comfortable with this. So what do you need from us to make sure we have that kind of an appeal process? Ultimately, the statute gives

[03:19:51] the board authority to make final approval. So it would be helpful if the board provided guidance on what you would like the superintendent to do in these situations. We can do that. So do we need a motion then? Would you substitute motion to adopt the recommendation to adopt this list with the additional proviso that we direct the superintendent to create an appeal process

[03:20:21] to allow divisions to raise to put forth alternatives that they think meet the science of reading requirements of the vla did i say it well enough and clearly enough so that's my substitute motion okay so um we would accept a motion to approve the updates to the core instructional program guide for k-5 to comply with vla and direct the superintendent of public instruction to create an appeals process by which local school divisions currently using

[03:20:59] curriculum that they believe to be successful to come to the superintendent and then to the board for that approval we want to do that because it has to come to us for a final approval anyway right

but just to allow the superintendent to create that dr northern i was just going to say a couple things um just to point out um you know that somehow um indiana ohio mississippi there are other um you know states that have gone through a similar process that we're going through

[03:21:37] and for whatever reason you know did approve it um i have no idea you know it seems to me like you know we should have consistency when we when we convene uh experts in ela and scientifically based reading that they should hopefully be pointing in the same direction like we think that the science of reading is pretty clear um so i do get a little concern when other states that are making reading gains using the same curriculum and have approved it then we don't i'm not saying that we should approve every curriculum but i do look at when other states have approved similar curriculum and have gotten reading bumps in all three of those states um have had some success so

[03:22:14] i would support uh the motion i think that you know obviously we want these to have been um failed first or not medics but you know mean that you would be the first line of defense and that the um appeal process would go to the uh the state superintendent to um look at those uh upon appeal Mr. Rotherham? Madam President, I just want to note at some point, and Dr. Siebert should probably speak more of the substance, I am recusing myself from votes on either the proposed amendment, the underlying thing, because professional obligations.

[03:22:52] Thank you. Dr. Siebert? Yes, thank you. I do have, even though Mr. Rotherham is recusing himself, I do have a metaphor for this one. You know, in an automobile, you have a powertrain and you have the rubber meet in the road.

[03:23:07] In between, you have to have a transmission. The transmission has got to adjust and adapt between the powertrain and rubber meet in the road. I think it's entirely appropriate for the Board of Education to serve, in this case, as a transmission, to take the powerful work of our research institutions and the great practices they are outlining there, and then also figure out how to be the clutch in the transmission to make the rubber meet in the road.

[03:23:30] Virginia has done terrific work in the last couple years with Virginia Literacy Act and the Science of Reading, but it should not derail the work of divisions, and as you all know, full disclosure, I'm in the Rose City Public Schools, the work of divisions that we're doing this work ahead of time. We should not ask them to hit the brakes back up when they're already on the road.

[03:23:49] So I do think, however, it's appropriate to make sure the work they're doing, the road they're on, is consistent with the legislation. that's the role of this body so i support uh this amendment because ultimately i think what um and hold was just support our home was looking up was you know board some school boards in their localities need the opportunity to assemble these approved pieces to take these already approved pieces and assemble them in a way that meets the communities that they're important they're they're appointed to serve and so um and still be in compliance so i i support the amendment other

[03:24:23] comments okay um so i think that the actual motion does need a second we didn't get that before we started a discussion but second okay any further discussion before we move on miss kilgore ah miss holton hi dr siebert dr northern right uh mr sturdifant hi mr rotherham

[03:24:51] recuse okay and chair votes i thank you very much thank you okay if you all what's that i'm sorry come on up all right we're hitting item k trying to hold us off as long as possible for lunch but tell me

when you're getting angry good afternoon president creasy members of the board superintendent koontz i have two recommendations to bring to you both from the aptel board

[03:25:30] i'll talk about them separately though the first recommendation is for approval of new education endorsement programs. In your documents, you have the list of those items. As mentioned earlier, when we were talking about periodic review regulations, this is one of those that was listed. Regulation is very simple. It says regulations governing the review and approval of education programs in Virginia requires that the Virginia Board of Education approve requests from Virginia institutions higher education to add new endorsement programs. They must do this

[03:26:03] by March 31st. So there is a window that they have to fit with. The recommendations here are from nine separate education preparation programs with 21 new programs. 19 of those 21 programs address our critical shortage areas and eight are for undergraduates, 13 are for graduate courses.

[03:26:25] This is a routine ABTEL recommendation that we actually make multiple times a year. The actual wording, I'm going to go ahead and read it correctly, the superintendent's recommendation, superintendent of public instruction recommends that the board waive first and first review and approve Aptill's recommendation regarding new education endorsement programs, and I'm open for questions if you need.

[03:26:52] I do have a question. So tell me a little bit more about this Norfolk State endorsement of middle education grades. How many other of our EPPs provide a middle ed endorsement?

[03:27:11] I cannot tell you how many do. I know that there are a few that do, and I know that it's becoming more common. And it's more seen in math and science. Yes, and it's partial math and partial science, and we do have a shortage in that area. It is one of the critical shortage areas, middle school, and more specifically, when we report middle school, we don't necessarily report the subjects, but those are the subjects that are the ones that are the highest in the critical shortage areas.

[03:27:36] And that being said, what instructionally, what level instructionally would a middle education 6-8 math in this particular context allow someone with this endorsement to teach Algebra 1, pre-algebra?

[03:27:54] Algebra 1 would not be included in that, but most middle school Algebra 1 teachers have the secondary and above endorsement. it wouldn't allow for those courses that go from sixth grade which we used to as you know used to have that at the elementary level and created a licensure issue back in when that transition happened so it does fill some of those gaps okay thank you anyone else dr siebert president are we supposed to do the motion in a second then discussion or we could do that but i didn't know if anybody had a question um i have a disclosure okay um madam president the colleagues

[03:28:33] on the board. I just want to disclose, of course, the state and local government Conflict of Interest Act that I want to disclose my connection to this matter. As you're considering the board's considering these batchel recommendations to approve several new endorsement programs of Virginia Institutes of Higher Education. These institutions include Bradford University where I regularly teach graduate level courses and Virginia Tech where I occasionally teach graduate level courses. Although these programs are primarily for undergraduate programs and i teach in graduate programs depending on the number of sections i teach in a given year

[03:29:07] my compensation may exceed the five thousand dollar per year threshold for the act and because however the impact of the bodies of the board's action will impact me in a very general way the

same way it affects everyone he teaches in any of these institutions or schools of education i believe i am able to participate in this matter fairly objectively in the public interest thank Thank you. Mr. Sturdifant, how about if I do this for you? Can I get a motion to waive first review and approve ABTEL's recommendation regarding new education endorsement programs? So moved.

[03:29:45] Second. Okay. Any comments, discussion? Just to note, I'm not objecting to first and final review here in part because I understand that ABTEL does include an opportunity for public comment. Thank you. Anybody else? All right. Ms. Kilgore. Ms. Holton. Dr. Sievert.

[03:30:10] Dr. Northern. Hi. Mr. Sturdifant. Hi. Mr. Rotherham. Hi. And chair votes aye. Okay. Mr. Gilstra, we're going on to L. Thank you. The second recommendation, back last year, around this time, you heard recommendations for physics, chemistry, and biology. This coursework was not quite ready for that at that time, but we are pressed for time with this one as it expires at the end of

[03:30:43] December without exception met, but I'll go ahead and just mention that this is an earth and space science endorsement area. It is a newly developed test. It is not the old test being altered. It is a new test, so a new cut score is required. The cut score in question here would be a scaled score of 62, which would be a 154 on the 100 to 200 scale. That aligns with almost 90% of all other states that use the same assessment. The only ones it doesn't align with are ones who chose

[03:31:23] much lower cut scores. I'm going to go ahead and read the recommendation and then open it up for questions. It does have a part at the end of the recommendation to allow for a window of time for people that are already registered for this test to also complete that within the time frame of the transition the recommendations superintendent of public instruction recommends that the board of education will first review and approve the recommendation of the advisory board on teacher education and licensure to establish a cut score of 154 for the praxis earth science earth and space

[03:31:59] science 5572 test individuals may take either the currently prescribed assessment for earth in space science praxis 5571 the old test or the new one praxis earth and space science 552 test through july 2024 in january only the new praxis earth and space science 5572 tests will be offered in virginia beginning beginning january 2024 the praxis earth and space science 5571 the old test will be accepted only for those individuals who took and passed the test during the period

[03:32:36] it was prescribed by the board there's only six people currently registered for that test so there won't be very many people that will need to be in that window of two tests as long as it has passed today any questions any questions here well madam president dr northern i see up here that um language around because it's new there's going to be a data review conducted after one year to determine if we've set this passing score right should that be a part of the recommendation or

[03:33:11] that that is a normal practice for the aptel board in our office when we have a new assessment it can be added if so requested but we do that automatically okay great thank you mr rotherham mr rotherham thank you madam president dr giltrap you said that there's a an element of time sensitivity here like is that because we're coming up on the end of the year and we get this uh uh in for 2024 could you say a little bit more about that uh yes sir uh ideally this test would have have been presented last year but there were the ets wasn't quite ready for that neither was my

[03:33:49] office as i came on in august and so the deadline was already extended for us up until december the end of december we can request an extension if that is the will of the board but that would

require some changes in our planning for the alternate test and the window but the end of the was an extended time for us already all right well thank you i'm not going to ask for an extension it sounds like it'd be disruptive but i do want to note i'm not a we should never do things on first and final or we always should i think it depends on the item uh and and the process on

[03:34:26] this one doing cut scores on first and final without the benefit of you know what other people think and and i know practice sets the scores a certain way but there's sometimes a concern about rigor i just don't think it's good practice it sounds like we don't have a choice we're going to review in the year but i think we should endeavor to not be doing cut scores on licensure tests on first and final review other comments questions okay can i get a motion to waive first review and approve the recommended cut scores for the praxis earth and space science 5572 test

[03:35:05] effective immediately and that the praxis earth and space science 5571 tests be sunset in july of 2024 as recommended in this item so moved second any comments discussion here okay miss kilgore ah colton hi dr siebert hi dr northern hi mr sturdifan hi mr rotherham all right

[03:35:43] and chair votes aye okay thank you thank you um if we can hold for five minutes i think we'll be able to get through the last voting item we do have um a purpose behind doing this so thank you

[03:35:59] five minutes which is which item is it going back to this was item what the item d and we had

[03:46:43] posed some questions to you and this is actually going to be around prescription g and so what say Thank you, Madam President. We've gone back and pulled data that is tied to this proposed recommendation, which comes off the JLARC recommendation for the new enhanced at-risk formula that would move into the SOQ.

[03:47:16] And so part of that recommendation is the enhanced formula that JLARC recommended would be a replacement for the existing at-risk formula that's in the budget currently, as well as the SOQ, which is not an SOQ account, as you know, and the SOQPIR, Prevention and Intervention Remediation Account, which serves at-risk or drives funding to at-risk students as well.

[03:47:49] So the proposal is an enhanced at-risk funding formula as proposed by JLORC, replacing the two existing funding streams. The JLORC formula, as we discussed earlier, uses the ISP, individual student percentage, student poverty metric, and that's one of their recommendations to move to that metric to capture high-need students.

[03:48:25] It also applies the federal multiplier that's used under the cep school mill program to drive mill reimbursements back to school districts um which is 1.6 um and and that's a that's a reimbursement mechanism um and and uh jail arc assumes that highest level uh 1.6 multiplier that's again not a state funding formula mechanism but

[03:49:03] But it's a mechanism for federal reimbursement under the CEP federal mill program. But that highest level of multiplier does create the highest cost in their proposed formula.

[03:49:21] They do acknowledge that, and that would be a policy choice, that multiplier could be reduced something on the order of 1.2 to 1.6. General Assembly could consider that. But as they described this new formula in their recommendations, we've estimated it has a cost of about $773 million in FY24. That cost would be offset by the other part of their recommendation by eliminating or replacing the current at-risk

[03:49:59] in SOQPIR formulas. That would eliminate that funding that's currently in the budget, which is $477 million. So the delta, to combine both things, a new formula coming in is recommended by JLORC, replacing the two current funding streams. The delta there would be about $296 million in FY24. That's the best indication of the state fiscal impact in FY24

[03:50:35] for the original JLARC recommendation, which appears to align to recommendation one here in the prescriptions. The cost of that, we had FY24 data readily available. The cost of that would likely or almost certainly go up in ensuing years in the next biennium due to all the factors

[03:51:05] of re-benchmarking. So that $296 million net cost if funded in the 24-26 biennium likely would be higher than that FY24 estimate of $296 million. Again, it uses the federal CEP 1.6 reimbursement multiplier that JLARC picked up as a mechanism to capture

[03:51:42] at-risk students in an enhanced uh at-risk formula um again that that uh mechanism is primarily used or as as the reimbursement mechanism for that federal lunch or federal meal program okay any comments here questions dr north oh sorry dr northern so and again i'm just trying to understand this are we identifying more students or fewer students by using the

[03:52:15] SEP designation. My whole thing in a lot of this is that FRL waters down and doesn't direct the funds to the kids who need it most. My understanding was if we used an ISP, if that's analogous with a CEP measure, that we'd actually be identifying fewer kids, the ones who really need it, because it's a better identifier for at-risk than what we use now, which in some schools, like 96% are at risk, and they're not, I mean, let's just say, sometimes they are, sometimes they're not, you know, depending on where the school's located, obviously. So in your estimation, are we

[03:52:53] identifying more or fewer kids with this measure versus the other measure we were using? The base ISP data, which are the, you know, Medicaid, TANF, SNAP, you know, foster care kids, all the categorical children that metric would make up, in many school divisions or schools that measure can dovetail the traditional free lunch measure. It's when the federal multiplier

[03:53:25] used for meal reimbursement, that 1.6 value, that multiplier that JLARC did use in their scenario and the recommendation that that's what elevates that that isp base of students uh in some yes in some cases well beyond um historical estimates from traditional free lunch measures that's why the cost can be very high here so what multiplier could they have chosen like you're saying they chose the highest multiplier what's the lowest multiplier i'm just curious well the the federal

[03:54:05] reimbursement, it does use 1.6. But again, that's not a formula mechanism for states. It's a reimbursement mechanism for the federal meals program. JLAR does acknowledge what could be considered as a multiplier somewhere between 1.2 and 1.6 is an option. But that still could create a cost that, you know, might be significant just with the application of that multiplier

[03:54:36] against the core base of ISP kids. Okay. Dr. Sievert? Madam President, I'm not sure if this is a question for Ken or for the smart room that we have assembled there. First of all, I wholeheartedly support the move to the SOQ and using improved methodology. This 1.2 to 1.6 range multiplier, I think kind of like Dr. Northern, I'm trying to write my mind around that. Probably can't do that here in the next few minutes. So I hope the board will proceed with the language

[03:55:14] we've already adopted. My question is what ways forward do we have in terms of next step, in terms of fiscal impact or no fiscal impact, not declaring a fiscal impact, simply recognizing that we already

know that we we recommend in the general assembly funds anyway so i think ultimately the what's going to matter here is the general assembly's math um and so i just i just know what our way forward is and if whether candidate or superintendent or members of the board have an idea for us and madam president if i may just a reminder to the board which you you certainly are

[03:55:49] probably already aware the the september budget you did uh create a a requirement for a joint subcommittee to study all the JLARC recommendations comprehensively throughout 23 and 24 with a deadline for their joint subcommittee report in November of 24.

[03:56:14] And that's a comprehensive review of all of the JLARC recommendations, which could, of course, include this particular recommendation. But just wanted to remind you of that provision that was the deep uh september budget of that joint subcommittee miss olton so thank you mr mickey for that very fast math today we're very grateful you've had a busy morning while we've been here working um uh i i hear you that there's some flexibility on what the general assembly could

[03:56:49] do on that multiplier i don't think that the language of recommendation one takes a stand on that one way or the other the 1.6 versus 1.2 multiplier i think only factors into the cost estimate you know jlark has one cost estimate you've got a slightly different cost estimate whatever we put in by way of cost estimate is just a ballpark for the legislature and they will if they adopt this recommendation they will have to take a stand on 1.2 versus 1.6 versus something in between but i don't think our language recommendation number one takes a stand

[03:57:26] on that one way or the other so i would recommend that i think we've got enough information to do a ballpark estimate and um i think i will uh move that we um add language with a two i think well maybe i won't make the motion yet because i'm open to what folks you know do we want to do 296 or do we want to do $250,000 or what, or round it up to $300 million for a starting point, but recognizing that it's only a, that is not anything binding on anybody. It's just that we're

[03:58:00] required and expected to give an estimate of the cost impact. So I don't think it needs to change the language of our recommendation. I do think, you know, in terms of the amount of money,

[03:58:13] Even at the high end of this, we're still talking about a 1% or so increase in the state share, which will somewhat just relieve the pressure on localities that are already having to bear a larger share than they should on the overall funding, and that that has inequitable consequences for divisions that aren't able to overfund above and beyond the SOQ.

[03:58:41] And I would also go back to, you know, if this is a 1, 1.5% increase, we're talking about that percentage where JLARC is telling us that, and others are telling us that we are severely underfunded, perhaps 20% compared to where we need to be.

[03:58:58] So this is a very small drop in the bucket, even at the highest end. Mr. Rotherham? So I have a comment, a question, a comment. It's simply, I do think we have some agreement. I agree with Dr. Northern, like this money has to be as targeted as possible. I'd like to see it even be more targeted to poverty, but we've got to work with what we've got. My question is, I'm now a little uncomfortable if we have a less concrete recommendation and we're talking about the difference in weighting. What is our statutory responsibility under code? Do we have to attach an estimate or can we say,

[03:59:35] This is the way to go, as we did earlier this morning, and then let them figure out what exactly the cost is going to be because I'm a little concerned about doing that on the fly. Mr. Dickey, do you want to

respond to that? I would just only add a comment that perhaps language could be considered that would dovetail some of the language in the JLARP report that if a multiplier was considered

[04:00:08] a range of options or scenarios, you know, could be considered that in determining cost in the appropriate level during, you know, future review and study of the proposal. Madam President.

[04:00:28] Mr. Sturdifant. These numbers are based upon the changing of the language, correct? The consolidation of the programs have caused this number to increase. So if we keep that, we still we know is going to be an increase. Ms. Holton had said we dropped to $25 million and let's say it's $250 million and then we wanted to get some quick math. Now that number is $296 million only because we're changing and consolidating these programs. So the question for the board is

[04:01:08] do we want to keep that recommendation of the consolidation which will increase the cost by substantial amount? That is the question for the board I believe and I know the board has voted on that we would like to have that recommendation, but the board can also rescind that motion and just support the original recommendation without recommendation one. I would propose that that's what we should do if a member of the board who supported it wishes to bring that motion back up

[04:01:47] for discussion and a re-vote. I'd be willing to support that motion because I did, you know, vote on the prevailing side before. I just want to add that my larger discomfort with all of this is that as a board, we're being in a position of, you know, finance experts. And any number we come up with, somebody could say, that's too much, that's too little, because we're just floating, you know, because we have this ill-functioning system. And so it's not that, you know, I think

[04:02:25] any of us want to shortchange districts or the needs of the of the kids in the commonwealth it's just that i just feel like we are flying by the seat of our pants and so personally i'd be most comfortable with not attaching any number and letting the general assembly do their job you know because they're they're supposed to be i assume coming up with much better numbers than we are um you know i mean that's just the way i feel uh in terms of trying to making us be finance experts so i would move to uh adopt uh prescription g as presented without recommendation one so what

[04:03:04] we would have to do is have a motion to reconsider the vote by which we we passed item g with recommendation one with minus the italicized sentence the way that that previous motion was we would have to have a reconsideration which opens the floor up to a new motion grace item d prescription g okay item d prescriptions g sorry item d prescription g must be we must have a

[04:03:41] reconsideration of that vote first mr rotherham yeah i don't know what that gets us we're in i mean as i understand the disagreement is exactly how to quantify but we are in agreement that we ought to be accounting for these costs more accurately and that the general assembly needs to uh consider that that that that's our role like i i i'm after after um mr diggy's presentation i remain concerned i'm looking if i'm understanding the numbers right that we've got a potentially 25

[04:04:19] sway on on what we're able to estimate that seems like we don't want to necessarily do that but we know this is the formula we need to remove towards which we did this morning i don't see any reason uh to revisit that i think we're conflating those two issues here so if i may speak to that well first well my comment is uh that um i understand uh dr northern's frustration over understanding the finances but we actually have one of the three people in virginia who understand

[04:04:54] virginia's funding formula in front of us and what as i understand how this is the constitution gives us the responsibility to establish quality education what's required for a quality education program and then gives the state the general assembly the obligation to fund it it does i believe there's a statutory requirement somewhere that we include a cost estimate that's certainly what we have traditionally done and we do that very competently because we have kent dickey here and therefore we are able he and his staff god forbid we didn't have kent here he's got competent

[04:05:34] staff we would have them um that is our role is to give them an estimate it's just an estimate they're going to get over there they've got experts and you know that's what the senate finance committee staff does and the house finance the house appropriation committee staff does they're going to come up with their own estimates and they're going to look at variations uh and there are a lot of devil in the details that they will look at uh so i i all of that's to say i i think

[04:06:00] I think that probably the right thing for us to do is to go with Mr. Dickey's number, and therefore, if and when, depending on the outcome of the motion to reconsider, I will make a motion to add Mr. Dickey's number in as our estimate.

[04:06:19] It's simply an estimate. Perhaps if it would give the board greater comfort, we could ask Mr. Dickey if he's able to give an estimate of what the number would be if we were at the 1.2 end of things instead of the 1.6 end of the multiplier, and then we could give a range. And I don't know whether he's comfortable doing that ballpark. I'll filibuster for a second to give him a chance if he is able, but that would be another way to go.

[04:06:44] i will make that motion if and when we are back to this depending on how the outcome of the motion to reconsider happens other comments questions mr rotherham it seems like we now have like three like hold what we got what we actually took this morning undo that or this third does now like commit to a number that i'm not sure we have confidence in i'm not sure why we can't just hold what we have to sporting which essentially we can maybe even add a little language essentially

[04:07:23] saying the general assembly there are a number of variables here that is in your purview we're not going to give you a ballpark um but this is the direction we need to move not unlike what we did frankly on the weighted student formula saying this is the direction that we have to move right i totally hear dr northern's point and i've been making it myself today that like the architecture of this, it is rickety. And so we are like, you know, constantly moving, trying to move pieces around. And I appreciate how frustrating that is. But I'm not sure why we can't tell them this is the way we need to move if we're going to do this. And then depending on the decisions they made,

[04:08:03] they make, they will be, you know, they will then be able to back into the numbers. mr dickey i think we have a fourth option actually um we our fourth option is actually to essentially pull this all together and ask for the review committee in their in their deliberation to essentially handle this what what's the review committee that's the review committee that you that kent was just talking about the joint subcommittee yes the joint subcommittee

[04:08:39] so so i'm not understanding you mean are you suggesting that we not make an at-risk add-on recommendation it could be contingent upon the review committees or the joint subcommittees outcome i think the joint subcommittee is their primary focus i think what that's about is the well i guess it's overall jlark recommendations but it's going to be looking at whether to go to a student-based funding formula it's

not going to start meeting until after this legislative session, so I think it's a good place to look at these issues eventually, but it's not an answer,

[04:09:16] I don't think, to what we put in our SOQs today. Dr. Siebert. Yeah, I think the language we've already adopted is the most important thing, so I will not be supporting a vote to undo what we did this morning. I certainly am open to what I thought we were going to do when we said we'd come back to this, and that would be a new motion to put in language or a price or something. I'm not comfortable with declaring a number when there's just too many unknowns. So, you know,

[04:09:50] whether it's legal to the committee or, you know, within the range of 1.2, 1.6, or some sort of language like that, I just, I'm not prepared to pick a number without a lot more information, nor am I prepared to go back on the language we adopted earlier today.

[04:10:08] Madam President. Mr. Sturdefin. I think we were adding the at-risk add-on, And that's where it started, with an estimated additional $25.6 million. So there's no doubt about adding the at-risk add-on.

[04:10:25] But for me, it got complicated once I saw the recommendation of consolidating those programs. Doing an add-on is not an issue. But when you consolidate the programs, now we're almost at $300 million because of that recommendation one.

[04:10:42] That causes me concern. Yes, the add-on is one thing, but that recommendation has changed the equation to almost $300 million. That's what I'm seeing, and that's the hold-up I have on it. The at-risk is one thing, but the recommendation for Ms. Holton was not only adding the at-risk, but it was consolidating, forming a new program.

[04:11:07] With that consolidation, the $25 million jumped up to roughly $300 million, which Ms. Holton says, yes, is 1%. But when I look at 1% versus $269 million, that's the issue I have. If it's the pleasure of the board to continue with that recommendation, then that's the pleasure of the board.

[04:11:26] But my view is we should not support that recommendation, that amendment. Just stick with the original recommendation. Dr. Sievert? I'm sorry, I meant to lower my hand.

[04:11:43] Mr. Rotherham? There you go. My hand was up. I think we have an option to stand on what we did this morning to say this is the direction we need to go.

[04:12:03] recognize that the limits of our purview here as well as the limits of the data and the General Assembly, you know, as the JLARC report indicated, the General Assembly needs to do its job here and needs to figure out. And again, this is a step in that direction. I don't think it's the comprehensive solution any of us would want. I think there's things to quibble with it. As I said, I think some of us might want to see that money even more targeted and less spread around so forth but this is we're at the point of the possible and i don't know how we pursue all the

[04:12:38] other priorities we have if we don't say we have a problem here here's a recommendation on some shifts that can help to start to address it as we move towards a more comprehensive solution okay where do we want to go with this because right now the way that this item sits we have no um dollar figure associated with it madam president i think we have a motion i don't know if we have a a second yet. So do we want to reconsider that vote? Yes. Okay. So Dr. Northern made a motion

[04:13:15] to reconsider the vote by which we passed item D, prescription G. And so that just opens us up. It opens us up. I know Dr. Sievert's shaking his head. However, if we want to change the language of the

dollar figure that could or maybe isn't associated with it, this motion has to happen.

[04:13:38] Otherwise, it simply sits there as we passed it earlier this morning. Second, Madam President. Okay. Discussion. Mr. Rotherham. I don't understand exactly. We don't need to revisit the dollar figure because we are having trouble estimating what it is, and there's an enormous amount of variance.

[04:14:01] we're simply saying this is the proper formula for this and we need to incorporate these at-risk dollars into the SOL absent a broader set of changes. So I'm very unclear why we want to revisit that. I think what we did this morning makes a lot of sense. We said let's come back and see if there's some way to estimate this. There's not. We're saying this is the direction to go and over in the capital they're going to be able to then get in figure that out based on a whole set of variables that they're going to have to work through so i think one of the other options

[04:14:37] that i think dr siebert did bring up was that we could again ask the joint subcommittee we can leave it like this and the the funding mechanism could be relayed as whatever the joint subcommittee comes up with something like that dr siebert and i think that could be an additional separate motion

[04:14:58] I can't support undoing what we did this morning, but because it doesn't have a price tag, we purposely pass it this morning without a price tag, so I think I will be voting to let what we did this morning stand, so I guess that means I'll be up against the motion, but again, I do think we can come back with any other clarifying language we want to add.

[04:15:18] Okay. I thought that the reason why we passed it with no funding mechanism was because we were going to be revisiting that when Mr. Dickey came back to us. So I think maybe there was some question there. Ms. Holton.

[04:15:40] So I also would oppose the motion to reconsider. I think what we did this morning addresses the need, and that the General Assembly will consult, I'm sure, Mr. Dickey, and have the benefit of his wisdom as to what the numbers are and what the different options are, and I think what we did this morning suffices, and therefore I'll oppose the motion to reconsider.

[04:16:03] Mr. Rotherham? Yeah, I too am going to be opposed. And also, I think we're conflating. We're not talking about the funding mechanism. We're just simply talking about, are we going to attach specific amounts? Are we able to do that today or not? Or do we want to stand on a recommendation, though, as we did this morning, that we need to move in this direction if we're going to better serve kids in the Commonwealth? And I think moving in that direction makes a great deal of sense, though. I think the board got it right this morning. I'm not sure why we're revisiting it.

[04:16:34] any other comments dr northern we voted this morning to not attach any number to this am i correct that's what i thought i voted for okay so now miss holton and mr rotherham are both saying they're in agreement with that motion not attaching that's because that's what i voted for this morning and now you both are saying that you're okay with not attaching any figure at all am i am i understanding what's on the current because i'm getting very confused yes i had said that i would be happy to make a motion to attach a number, but if it's the will, I'm hearing the will of the board is to just leave it numberless. I can live with that. Okay. So I do not, if this

[04:17:14] motion does, if the motion to reconsider does not pass, I do not anticipate making any further motions as to this section. Okay. So the motion to, Mr. Rotherham. I apologize. Like Dr. Siebert, it's my first

time on a video call. Sorry. Okay. So this is a vote on the motion to reconsider the motion or i'm sorry to reconsider um item item d prescription g as we passed it this morning

[04:17:47] miss kilgore how do you vote aye so not to reconsider miss holton nay dr siebert nay dr northern mr sturdifan aye mr rotherham nay chair votes aye okay um so with that being said at this point, the way item D prescription G sits is that we will not offer a number figure

[04:18:26] in this prescription. Everyone clear on that? Mr. Rotherham. Yeah, I think we're clear. The question is, do we want to add any language as to because there's a lot of variables or do we just want to leave it? And this is our underlying recommendation. I think if I'm reading the room granted that's through the screen there's not an appetite for attaching a specific number because we don't feel like we have the math and there's a fair degree of variance on the i concur we didn't

[04:18:59] get a specific number um uh but also we want the legislature to figure it out i think we can we can leave it or if we could attach a little bit of language that they need to figure it out simply because there are so many variables madam president mr certifan i hear andy's comment but what we just voted for was an increase we don't know what the increase number is but we voted for a blind increase that's the problem i had from the very beginning that this board voted for a blind increase up to 300 million so but it's the pleasure of the board that voted for it so

[04:19:36] that's the comment i wanted to make anything else mr rotherham just i don't think we voted for a blank we voted for a change in the methodology and the legislature's gonna have to make some decisions uh decisions attached i don't think we we voted for a blanket we voted for a change in methodology based on on uh a lot of analysis including from from jlark dr siebert i concur as mr rotherham lifted up earlier we also are recommending a a move towards student weighted funding formula

[04:20:12] uh we made that recommendation without a dollar sign associated with it and so i think this is similar uh we're recommending a direction and um and so i think this is this is compatible with what we did earlier in terms of student weighted formula mr rotherham any other comments here before we

[04:20:36] break for lunch okay we are breaking for lunch we are back thank you so much and we are on item m

[05:09:02] and that is dr sorenson thank you madam president um i am here today very excited to bring before the board a component of the virginia literacy act which is the division literacy plans this is um an item for first review and so i'm very excited to bring this forward to the board today um as a part of the vla um we are required to bring forward a division literacy plan and the

[05:09:37] board shall um in a timely manner make available to local school boards information about where current virginia school laws board regulations and revisions copies and relevant opinions of the attorney general of virginia may be located online as well as the general assembly has charged us as well as the board um in requiring all divisions and school divisions to have a division literacy plan as a part of the comprehensive um vla so we are excited to bring that here before you um so that we can talk about the content and that is in the division literacy plan

[05:10:15] um and so we want to walk through for the board and the various components that are in the division literacy plan and walk you through the various aspects of the content again that is in the plan so if we can move the next slide and then the next slide as well and the literacy plan overall it's designed

perfectly in alignment with the vla and it is really ultimately aligned to help each school division outline their outcomes and we'll walk through the various components and the various

[05:10:50] content as we show you the actual template but it will require school divisions to address how the local school board will align the mission the vision the practices with evidence-based literacy instruction practices aligned with science-based reading research and so we're super excited to bring this forward it really will help our school divisions get started and really solidify for those that have started as you were talking about this morning and really kind of bring it all together so that it can not only make sense for school communities but make sense for educators

[05:11:24] and really bring it all together in one place so that everyone can see what is the mission, vision, purpose of the work, and what materials they're using, and then what training opportunities will be available for educators. Next slide. So as you can see, the content for the division literacy plan is outlined here in terms of the various sections. And so section one is talking about planning for the comprehensive communication um dr kunz and i but mostly dr kunz um presented

[05:11:59] it vast not too long ago really talking about how important a vision is i'm thinking through what is the superintendent's literacy vision and how do you move that forward and so as a part of the plan we've really outlined a space for how do you communicate that plan to parents and stakeholders and educators and all members of the community in order to move literacy improvement instruction core resources materials how do you communicate to get an entire community on board and so we're asking school divisions to communicate that plan section two is about selecting your high quality

[05:12:39] instructional materials and so you can see that we've outlined here core supplemental and intervention materials as well as thinking about your special populations right how are you providing that for gifted education special education and for your multilingual learners section three talks about evidence-based reading research training so there's two components of that thinking about the evidence-based reading research training and also thinking about training in the high quality instructional materials and the implementation of those high quality instructional materials. So, what are those implementation supports going to look like

[05:13:16] and the reading-based research training? Next slide. Section four asks school divisions to think about monitoring, student assessment, and progress. We know that that's an essential component to moving the needle on student progress, student outcomes, student achievement.

[05:13:36] So, beyond using VALS, which we know is an essential component not only of the legislation, but in measuring student growth that we can give real-time feedback to our educators so that they can make a difference in the classroom and in their instruction what other division level progress monitoring tools will they be using and so the division literacy plan is asking our school divisions to name that up front so that again it's communicated to the community to teachers and to parents parents are an important part of that work because parents will want to know how

[05:14:12] their students are doing so also we're asking how are you communicating those tools are you communicating that data to support student progress section five talks about how are you assessing division level progress and section six talks about engaging parents and community we know that our parents are an essential piece of this work they need to be right there with us front lines doing the work with us now we know parents play a specific role in doing this work with us maybe decoding isn't the space where parents are doing that work but what is their role how

[05:14:51] do caregivers work with us how do community partners work with us so how do we engage our parents and communities and so again in our conversations as we're out in the field we're talking to superintendents we're talking to assistant superintendents division leaders teachers about how are we talking to people, parents, caregivers. So there needs to be a plan around this. None of this just happens. Everything is intentional. Everything is planned. Everything is thought out. And so in the next couple of slides, next slides, please, you can see that

[05:15:25] this is the actual template that each division leader will get. And you can see not complicated. The goal was to not overburden superintendents and their architects, meaning their assistant superintendents, executive directors. Not a lot of paperwork because we're not looking to necessarily add to their workload, their paper load. Very clean lines, simple to fill out. We've created instructions for them to complement the actual template, but each section will have drop-down

[05:16:03] menus places for them to add text and so that they can write their own vision their own mission places where there is spaces for drop down menus we've created that for them next slide you can see each section some have text boxes next slide and so here is the timeline um for our division rollout um school year 24 25 baseline data collection so normally these are done in two-year

[05:16:39] increments and so what we would like to do is have a 24-25 be our base year baseline collection year we'd like to our school divisions to do a one-year plan it's our first year of implementation school school divisions are going to learn a lot in the first year um after that and there will be two-year plans after that and they will then align with the two-year plans then that state that school divisions submit every two years anyway so then it will just align with the biennial plan that they submit so school year 25-26 will be year one of the biennial division literacy plan and then

[05:17:17] 26-27 would be year two so we would ask for a one-year plan that would then be submitted may 1st of this year and then they would submit a two-year plan the following year so that's what we're asking for our next steps then after that next slide upon approval of first review from the board division literacy plans will be shared with key stakeholder groups for feedback based upon the feedback edits will be made to refine the document i plan on conducting focus

[05:17:51] groups with superintendents with central office leaders since they're primary people who are going to work with us we're also going to talk to our vla work group we're going to talk to educators we're going to talk to teachers and then we will present back to the board in January for final approval here thank you all right so thank you Dr. Thornton we are happy to have this item on first review and we will see you in January great thank you thank you okay I'm sorry so we'll have

[05:18:28] all the discussion in january so we're saying okay all right item uh elizabeth here yes

[05:19:09] good afternoon ms schultz this is the switcheroo of the glasses so y'all pardon me so we're here today to present item o which is a recommendation from the superintendent and from the office of advanced learning to present a recommendation to switch and reconstitute the virginia advisory committee for the education of the gifted to an advisory committee for advanced learning

[05:19:42] can you go the next slide please so the history of this committee is it was established in 1982 it's to provide the guidance to the board and the superintendent of public instruction on the educational needs of gifted students and you all have appointed just like your other advisory committees members based on the recommendations from the superintendent next slide currently there are 20 members on

vkeg there isn't any constitution of how many members you know around the state the type of members they've been appointed over time actually

[05:20:22] jim's done a little bit of research on this and hasn't really been able to determine how what what constitutes a good vkeg member um that that was never drawn out in the guidelines and it's really only presented um gifted education um content to the board without necessarily a particular charge can you go to the next slide this is how the current um constitution looks across our composition of the advisory committee looks across the commonwealth as you can see we're

[05:20:54] very heavy in in region four and we're light um in uh in region eight and what we're looking at is how do we address the advanced learner needs that maybe look a little bit different than they did in 1982. you have statutory authority can you go to the next slide please um you have statutory authority under 22116 um that allows you to to promulgate you know regulations as needed and actually bylaws specifically call out how advisory committees can be um created um you have the ability to do basically whatever you want um your by your bylaws allow for that this is just the

[05:21:34] first read um by the way um next slide reflecting the current needs so it's proposed that we look at reconstituting vcag to be an advisory committee for advanced learning this is going to address needs of learners across the state and just for a snapshot there's 100 almost 186 000 gifted ed students who are identified as gifted in the commonwealth there's almost 7 000 in governor schools plus another 2 000 who participate in both the summer residential governor school program

[05:22:09] and the summer regional governor school program then on top of that um our 2022 that which is the latest data that we have um virginia graduates took um 33 344 students took ap exams as graduating seniors and in 2023 almost 72 000 students took ap exams so you really have a much broader perspective of needs across the commonwealth of advanced learning than just kind of that narrow

[05:22:42] scope of gifted can you go to the next slide please so in looking at it and trying to say how do we fairly represent um the the commonwealth um both parents and the needs of uh of those who teach advanced learners we looked at putting one region representative um from each region from gifted ed community somebody who is either an administrator or a teacher then also a parent so that you have good parent representation across the commonwealth adding also an aygs director

[05:23:19] somebody from higher ed a private school affiliated gifted ed because we also provide programming support to them a division superintendent and then um the doe representative which is likely going to be um amanda um as our director of advanced learning so that is the proposed composition can you slide to the next slide so you see a much more balanced representation across the state and ensuring that all levels of advanced learning from the higher ed community from from leading the schools from the division superintendents the parents that there is an

[05:23:59] intentionality to the delivery of support to the board and the work to support advanced learners if you can go to the next slide so we're talking about providing support and advocacy for access of advanced students in the commonwealth for rigorous learning opportunities and pathways to meet their needs and strengthen um their outcomes i mean that's what we all want for for all of our advanced learners um you'll one more slide so this is my little attempt to be technologically

[05:24:34] representational for the visual learners so you have gifted ed academic year governor schools summer regional governor schools summer residential governor schools advanced placement ib and we

also have like a little wing where we're going to take on um some of the presidential scholars and then it has a plus so it's others so this is the broader scope um rather than just the 1982 gifted ed um so that's a bigger scope next slide please so with a wider lens i think that we can look at a wider array of students we can review educational best practices the like for example you've got the

[05:25:14] the fordham report on there out there on building a wider lens and a diverse pipeline for advanced learners and they're better able and more nimble to support the board with recommendations and opportunities for not only the teachers but the professional learning so we have a wider lens And one more slide for a bigger impact, you know, to hit all the learners across.

[05:25:38] Amanda and I have had the pleasure of, we've been very intentional in going out and seeing the governor's schools on the ground, how diverse they are. That really is not met by the current composition of VCAG, and they really are very, very different.

[05:25:53] They have different needs, but there's a lot of commonality, and those are not being reflected in the work of this advisory board to the to the board. One more slide, please. So this is the recommendation. I'm going to read it as it is. For the record, the superintendent of public instruction recommends that the board receive for first review with action requested at the next meeting the recommendation to A, reconstitute its Virginia Advisory Committee for Education of the Gifted, VCAG, to the Virginia Advisory Committee for Advanced Learning, and B, ensure representation across the Commonwealth on its new advisory

[05:26:31] committee by adopting a composition of two representatives per region with one division employee or administrator affiliated with gifted ed and or advanced academic programming and one parent plus one academic year governor school director one higher ed representative one private school gifted ed and or advanced academic programming representative one division superintendent and the ex officio vdoe representative go to the last slide so i know this is just first review there's really no action, but what kind of questions can we help answer for you? And I don't think I took

[05:27:11] the opportunity to properly introduce you. You all may not know her. Amanda Nevetrol came to us this summer. She is, for those in the know, she is the new Donna Poland. Hello, Donna Poland. And has really demonstrated a tremendous capacity. Her background is really in gifted ed, But she has taken on, with a tremendous amount of grace and aptitude, the advanced learning role, and was promoted to director to handle this bigger role.

[05:27:45] So just a question on the allocations of the positions. For the higher ed, one, does that have to be a resident of Virginia, or do you know, or can you get back to us on that? We can, I could get back to you.

[05:28:03] don't know if maybe jim or policy might know if your advisory committee members have to be residents of the state let me get about larger issue which is is really um i i think there's several um folks i can think of at the national level that are really good on this stuff um and i just want to make sure that there's a potential slot that if someone doesn't fit into all these buckets um whether they will leave some space for a tbd perhaps can we go back to the um proposed composition slide um with the picture of the commonwealth of the regents back back that one

[05:28:40] so there's no particular rhyme no reason to the 21 um there are sizes of advisory committees where if they're too small you have difficulty with quorum if they're too big they become unwieldy i i don't

see any reason why we couldn't just add another slot here that says you know somebody with with national expertise and national subject matter expert i mean if that if that's what you all want um you know this is based on research and talking to other states but but i i can see that that's a very reasonable um request from the board one of the things we've done with our task force

[05:29:19] to if we don't have necessarily we have a national expert we invite them as not necessarily a member of the commission but as a guest and they can speak and engage so maybe if there's not the ability to have a non-resident then we could definitely have a visiting member or something like that yeah just get back to me i mean i think especially with the goal to widen the pipeline which i think is key widened diversify the pipeline um there are just some people that are really good about doing doing that in districts outside of the state um so anyway yeah i mean

[05:29:56] whether they become a regular visitor or they're allowed to be on the state that'd be helpful to know thank you holton thank you for bringing this matter to our attention and working to support our our gifted programs i'm a huge fan of of our gifted programs all across the commonwealth and And particularly, as you say, our governor schools across the Commonwealth are widely different.

[05:30:18] I've had kids in two different governor schools in two different regions and a third region, the one in Region 7, is named after my dad. So I'm fans of all of them and appreciate you all focusing on making sure we're serving them well.

[05:30:34] I have a couple of questions. The current committee, your proposal would basically end the service of the current committee members. Is that right? It would, because this is going to be a new focus and a new charge from the board and make sure that we get to this sort of parity of composition.

[05:30:55] So we would just, I mean, they could apply to be, you know, advisory committee members for the advanced learning. But we would go through the regular process of soliciting, gathering applications and making recommendations to you for the new composition.

[05:31:10] So a couple of more questions. The current what what is the appointment term of the current members and how many of them come up for reappointment? How soon? We could bring that to you. We don't have that today because this was just for first review on the new composition.

[05:31:29] But if you want to see, we can provide that to you. And another question I would have that maybe you could look at at the same time of the current members, how many are parents? parents and so how how difficult is the realignment from the current i think it's only two i i do i do seem to recall that i i looked at that composition um i don't know if you have maybe only two designated as parents but if if we could survey them to find out how many of them have kids in our uh in the k-12 world yeah they have indicated roles in their in their current appointments and i believe only two and i think one is actually a teacher so their teacher and a

[05:32:07] parent. So that was a definite intent is that, you know, in the gifted community and the governor school community, parents, you know, really want to have a voice. Absolutely. But I would frankly be surprised if only two of 19 are parents. Now, many of them may be dual roles, as you suggest, teacher and parent. But I'd be very surprised because almost all of our advisory committees are parents are well represented because that's who comes forward and wants to serve.

[05:32:35] So the reason I'm asking these questions is I'm getting at, I just hate to have people that we have appointed and asked to serve, have their service ended precipitously without due consideration to

that.

[05:32:52] And so I would have two thoughts. One is that can we transition? Can we take the existing committee? And you can answer this this week or today or next month. But can we transition the existing committee, change its mandate, which I think you're broadening the mandate, and I think that's a useful thing, but also figure out how to adjust through if they've got appointments coming up, can we use the regular transition composition to get to more geographic diversity, which seems like one priority, and to more parent representation

[05:33:30] if need be. As to the geographic diversity, I'm all for it. I will say that Region 4 represents well over 30% of the children in Virginia, so it's not surprising that they would be a little overrepresented, and Region 2 is also a bit overrepresented. Again, it's a very high population region. So if you were to allocate according to student population, we're probably under-representing them. But I do understand the geographic needs make for differences. But

[05:34:06] just I think that in terms of if we could make this change more incrementally by adjusting the mission of the existing group and still honoring the service of the people who are on it and using the reappointment process to meet the diversity goals um uh i think i would uh i would encourage us to look at that as an option and if for whatever reason we can't do that i would uh would suggest that we consider including in our final approval of this a recommendation that any

[05:34:40] members of the current committee who wish to continue to serve be given priority consideration consistent with the requirements for the new board so we definitely think that that's the will of the board i mean certainly you know we're here to help facilitate it and we have recommendations um it could be that those who are serving in their current capacity have a passion for gifted education and maybe taking on the role of additional you know advanced learning and a much broader scope is not in their you know in their valley wick um so we're we're happy to

[05:35:16] conform to what the board wants to see and if somebody's interested in continuing service you know we can put that in the the recommendation pile back to you all um but i would imagine that in order to have a to have a proper new advisory board you would want to go through the process of people putting in their applications but um like what you said at the end which is that maybe there is a priority given for people who have been appointed and we know their service that they may be appropriately aligned with the mission of this new of this new committee i mean if the whole

[05:35:53] board if our appointments end every year then you could make a lot of this transition without um you know without having to kick anybody off um so that question about when do their terms end or is it every other year half the board goes off we don't know the answer to that so if we could if if we could look at when do the appointments come up.

[05:36:13] I see you've got 19 of the 20 spots currently filled, so you've got a little flexibility already according to these numbers. But if we could look at that, and also if we could adopt this provision with board direction to the department to give priority consideration to anybody who wants to continue to serve to the extent that that's feasible to do And also meet the certifications of the eligibility criteria for the new board.

[05:36:47] That's what I would love to see us move in that direction. Okay, I think Amanda might just have a little bit of information. We don't need to go into details. I don't know if I have this on, but I'm a former

classroom teacher. I can project. To answer your question, we do only have currently two parents serving.

[05:37:07] The majority of members of this current VK committee either rolled off in 2023 and were kind enough to serve an additional term. And we have all members but four rolling off in 2024.

[05:37:24] We have four remaining members whose three-year terms would end in 2025. that's about what i remembered so this was sort of an optimal period is that we didn't really have you know a new constitution of committee members for you at least of the majority and so it also means that we could do we could get this we could make the change as to the eligibility position eligibility and keep this current committee in other words we don't have to change to a whole new committee to get a more diverse body we can just use our regular reappointment

[05:38:01] process and we could put it into the uh term uh you could i don't i don't i don't know that we would necessarily recommend uh that this and we can have a follow-on discussion i don't know that the superintendent's going to recommend necessarily that you just switch the whole existing committee to a new committee because i think there was an attempt um with this to broaden the lens and bring in you know that that bigger scope um and the current constitution or composition of that advisory committee may not actually match the the new mission but what we could do is look at

[05:38:37] those of those who may be willing to serve in in a new capacity if that is a match we could definitely recommend those as a as a priority to the board so that they could be reappointed so i'll stop but i just personally i'd prefer to adjust what we have rather than start something entirely new if that works and it sure looks like it would work the mission isn't that different i'll stop so i think um i have to sort of use my uh my own experience here i was a gifted coordinator

[05:39:14] um still certified in gifted education spent quite a long time in that field and the field is is broadening um there is a lot of emphasis to broaden the field broaden the scope of the students that we bring into advanced learning and so i actually am very pleased to see that we want to move out of simply those identified and bring in more students who may not have that full

[05:39:46] identification, but are capable of, or even have the promise of being capable to compete in those advanced courses. So I'm really excited to see where this takes us in the future, because I do think that it also helps in a professional standpoint, from a professional standpoint as well, so that teachers understand that we're not just in this one little bubble anymore, that our bubble does need to be broad-based and more inclusive. That's really the intent is to support

[05:40:24] the board's work for you to have a robust committee that you can rely on, that you can look at things like national best practices, Fordham Report, whether you want to do universal screening for gifted, how you look at expanding. We have a group that's interested in starting another academic year of governor school, how we grow that. That's been stagnant at 19 for a very long time so how we really deliver innovation in advanced learning curriculum support professional development etc and that this can be a a robust resource for this board um and leaning in on that

[05:41:04] work if there's nothing for um sorry mr rotherham you're on mute you're on mute that's what built on what you said and what um what dr northern said i i will say i thought the school finance discussion with scott formula was complicated until miss holton got going on the formula for appointing board members which seem next level um complicated um my comment though is just to build on on um generally what i've seen with this when is when you were just talking about there's either

[05:41:41] a focus on advanced uh kids are already at advanced levels and how do we raise the ceiling or there's a focus on how do we identify kids who uh are really at promise but because of issues in the system and so forth and so and people tend to index on one of those or the other and so what i really like here is that we're looking at this more holistically because both parents are frustrated if kids who are already high achieving aren't getting stressed and getting new opportunities and it's just completely unacceptable the way that so many kids who have tremendous promise don't get to realize that because of the way that the system works um so my question this builds a

[05:42:18] little bit on this i don't know the media national person whatever there's different ways but just can we make sure that we have folks who really have like a broad perspective on that this also builds on um on miss crazy's point that's a really broad perspective so we're really hitting this holistically because it seems like a tremendous opportunity i'm i'm really excited about it but the kind of people in those conversations will be will be very important that's definitely the intent so thank you for that okay um if there's nothing further uh thank thank you both very much

[05:42:49] and we will see you again in january okay thank you okie item p mr dickey and mr lanza dr meyers good afternoon

[05:43:29] hey madam president members of the board good afternoon again um and i've got presenting with me dave meyer you know dave of course also ed landa uh budget director very uh appreciative of ed's efforts um the last several months and that of his staff in the re-benchmarking process and so that's our uh overview uh for you today on uh re-benchmarking uh the cost of the direct aid

[05:44:02] budget for the coming 24 26 biennium we give this presentation to you every other year when re-benchmarking occurs and we will move through a pretty broad overview and i'll trade it off to dave to cover some of the enrollment nuances but starting off the re-benchment re-benchmarking process itself is it's just the process of updating the data inputs or cost inputs as we would refer

[05:44:39] to them in all or most of the direct aid to public education formulas. And that can involve both standards of quality program accounts, which is the major component of funding in the direct aid budget and what we're most familiar with in terms of the sizable dollar items. But it also can involve non-SOQ accounts and funding streams that school divisions receive as well, such as VPI, at-risk funding, K-3 class size reduction, those accounts that need to be refreshed every

[05:45:16] biennium but are outside the SOQ. So it's a whole comprehensive data update every two years. The impact of the data updates may increase or decrease state and local shares of cost just depending on the value and the direction of the data that is updated.

[05:45:40] Publicly available data sources are used, and we'll touch on some of the main buckets of data inputs that are updated. The critical thing about re-benchmarking is it's a technical updating process of data inputs in the formulas.

[05:45:57] It does not change funding methodology, policy, or standards. And again, that asterisk at the lower part there, the major component of the process is updating the standards of quality accounts. Costs are projected forward in this case for the 24-26 biennium.

[05:46:21] We're coming off the FY24 base, the base year in the current biennium. So the base budget we're working off of is FY24. Just for context, for direct aid, that's $9.2 billion in general funds and over

$700 million in lottery funds are in the FY24 base formula funding for school divisions in the direct aid budget.

[05:46:53] So that's the starting point to update all the accounts of $9.2 billion coming off FY24. It's an incremental process. We go step by step incrementally. We update for various student enrollments, funded salary and benefits, support costs, and that's both salaries and non-salary support costs that are recognized for school divisions, inflationary adjustments, and various other cost factors in the formulas that change over time

[05:47:26] and need to be kept current. DOE conducts the process in conjunction with other agencies, and that's primarily staffed by Ed and his staff with support by others. This year's rebenchmarking began in June and finished in November as it typically does with delayed data items that come in off fall data collections. And you can see the other state agencies involved in

[05:47:59] the process and their data sources that we draw data from those particular agencies. Again, the largest cost impact of the process when completed is to the SOQ as the largest cost base of funding for divisions. In this diagram, the funnel, as some have referred to it, but it's sort of a hierarchical order of how re-benchmarking impacts SOQ funding. And really, the top tier

[05:48:34] is a representation of the data elements and what occurs every two years to update major data elements and you see some of those listed. The staffing standards, which you recommend in the General Assembly and Acts and the standards, those remain constant in the process. Those only are altered or modified as an SOQ policy change as recommended by you and adopted by the General Assembly. So those remain resonant in the funding formula until changed by policy. But all

[05:49:12] the other data points at the top that we spoke of early enrollments, test scores, free lunch, support costs, number of students, fringe benefits, all of those data input elements are updated on a biennial cycle and fed into the formulas. The middle tier are the major components of SOQ cost, and that's instructional cost for teachers, support positions for the wraparound supports outside of the classroom that are funded in the SOQ, and then non-salary

[05:49:48] support costs, utilities, supplies, fuel, and so forth that are provided on a prevailing cost basis. Those get processed through the funding model. And then step three at the very bottom of the funnel. The outcome of the re-benchmarking process are new values of SOQ per pupil amounts by division, and all calculations are done individually by school division, both inputting the data elements that are updated as well as the calculations all occur individually by school

[05:50:27] division. Those new pupil amounts calculated as a result of the data update process are then applied in the bottom layer to derive what school divisions would see in their amended funding, multiplied by ADM, an adjustment for sales tax, and then as you're familiar with, to the right there in the bottom, the adjustment for the application of the composite index for the state

[05:50:58] and local shares. So a critical byproduct of the re-benchmarking process is updated SOQ per pupil amounts, but other updated non-SOQ formula amounts. Really a restatement of the previous slide, But students are critical in the generation of SOQ funding.

[05:51:25] Your various standards in the General Assembly's staffing standards currently in the SOQ are applied to student enrollments to derive the required positions, all the pupil-teacher ratios, the class size caps, the positions per thousand, all the things, staffing standards resident in standard two of the SOQ.

[05:51:49] Those positions and their salary amount in step two, again, the critical step in which those costs are then re-based or stated on an ADM per pupil basis, and that's important to differentiate that from any kind of student-based or student-waiting system.

[05:52:13] This is taking division-wide costs and spreading it on average across all students in the division as a per pupil cost. And that's the traditional funding metric for the SOQ. And then in step three, taking those per pupil amounts multiplied by ADM, again, application of the composite index to calculate the state and local shares. Going into the biennium and before each general assembly session, state funding has to be appropriated on a projected basis. And so that is done based on

[05:52:49] predicted or projected ADM to get funding in the budget that's necessary. The critical last step, each fiscal year, while school divisions are paid a portion of the year based on projected ADM, it's always trued up at the end of every fiscal year, and school divisions only receive funding in the end of each fiscal year based on their actual certified ADM enrollment. So some initial

[05:53:20] high-level cost estimates to date of the process so far, approximately $166 million for the biennium. And that's, you see the breakout of the impact of re-benchmarking each year, $75 million for FY25, $90 million marginally higher in FY26 of $90 million. So as of the publication of this presentation and the cutoff of the process at that time, we were at a total

[05:53:55] biennial cost of $165 million. Some of the key cost factors emerging that are tending to increase costs, higher base year non-personal support costs. School divisions have returned to normal operations, and the formula picks up some of their non-salary support costs, utilities, supplies, fuel, utilities, and we're picking those up from the FY22 base year. Those get folded into the model, into the funding formula. Local salaries, as those continue to increase from local salary

[05:54:34] actions, as well as the state raises, those have an impact. And of course, in that second bullet, But the substantial state salary increases this biennium, the 12% provided for school divisions. That continues forward and is recognized as a continuing cost in the funded salaries.

[05:54:54] And that is a substantial cost of 12% that continues on and impacts funded salaries. Higher free lunches, schools and divisions came off the pandemic. there were substantial initiatives at the state and local level to increase student participation in the free lunch program and that has shown up in that metric and that impacts those formulas decreasing some of the decreasing factors for the first time in a number of years

[05:55:30] in Virginia we're beginning to see the trend of a declining enrollment scenario and we're and we have begun and we will continue to predict or pick up that declining enrollment trend as we'll see in some subsequent slides and in a final projection that occurs for the governor's budget process. Removal of one-time line items from the FY24 base. It's not uncommon

[05:56:04] that there's one-time or short-term funding in the previous biennium. That typically happens just about in every state biennial budget by policy. Those adjustments are made. And then thirdly, the substantial ESSER federal funds included in a downward adjustment in the federal revenue deduct that's been state policy for many years. So federal expenditures by school divisions don't unduly increase re-benchmarking costs, but ESSER funding was included in that

[05:56:42] calculation as well. That $166 million state cost increase to date, that aligns to these technical steps. Nor do we have time to delve deeply into these, but these translate at this point to $166 million in

cost. And as you peruse these, you'll see many of these are related to

[05:57:16] those major data input elements that are refreshed and updated every year, whether it's various student enrollments, inflationary adjustments, other formula input updates to the SOQ and non-SOQ accounts. One highlight or one data factor we did want to highlight that is critical, of course, and we've talked about that some, is the various student enrollments that impact SOQ and other direct aid funding. Again, and there are various forms of student

[05:57:55] enrollments that feed into the formula, but primarily the major element, of course, is March 31 average daily membership that you're familiar with and the process that DOE goes through annually, both during the time of re-benchmarking, but for each annual update of the state budget to re-forecast and re-project March 31 ADM that's necessary for appropriating funds in the state

[05:58:31] budget before the fiscal year begins, beginning payments to school divisions, and then again at the close of the year truing up what school divisions are owed in state funding based on actual ADM. But this is an annual cycle every year that's conducted by DOE. And just a very brief high level diagram of the forecasting or projection approach for March 31 ADM. And again,

[05:59:09] this is on a rolling cycle that dovetails each fiscal year as appropriations have to be updated. As we move through the biennial budget cycle, we get more current data in which to refine the forecast. But at a high level, it's really dependent. We take advantage of the very strong relationship between fall and spring enrollment. And as you're aware, the initial student enrollment data point DOE receives from school divisions is a September 30th fall membership head counter

[05:59:48] snapshot that's available by October 15th every year. That's a critical element in the forecast podcasting process for spring ADM that DOE conducts. And we leverage that very close, stable relationship that for many school divisions is a factor of 0.99 to 1 between their enrollment in the fall and that fall headcount and their ultimate March 31 ADM the following spring.

[06:00:20] That stable relationship mathematically helps us forecast the March enrollment based off what we actually know in the fall reported by school divisions. In this brief example, we would receive a 10,000 student headcount in the fall. We would look back historically and we usually use a one, two or three year average of the spring to fall enrollment ratio, that 0.9950 factor, very close relationship on a ratio basis between spring ADM historically and their fall enrollment.

[06:00:58] We established that factor. It's just a multiplication between the fall enrollment, 10,000 students and that factor. And that's the 9950 figure to end the process is the predictive ADM that is used for funding formulas and paying costs until, again, school divisions report their certified final March ADM every year and we true up their final payments.

[06:01:34] And with that on the enrollment topic, I'll turn it over to Dave to, and Dave, I can continue the slides for you. Yeah, I appreciate that. Talk about some of the enrollment trends we're beginning to see. Yeah, so Kent has set up nicely why enrollment is so important, because it drives so much in this agency and the state work that we do with education.

[06:01:58] This is probably our most important data collection that we bring in every year is to know how many students we have and trying to accurately project this. We are seeing in Virginia this trend downward, which is new to us, and there's a pretty good reason for that.

[06:02:18] As you can see, this year we're down negative 0.17%. Ken, if you can flip to the next slide. So the trend is is trending down, and we've I've spoken personally and worked pretty closely with the Weldon Cooper Center.

[06:02:35] Those are demographers that do a lot of work around the state. They do a lot of projections for from everyone from state agencies to home builders. They they they project this out, and the thing they keep saying over and over is that we're seeing a declining birth rate, and that's the number one reason.

[06:02:53] There are some other smaller reasons, but the number one reason are the declining birth rates. And so you can see there that we're going to continue to have that happen through 2030. There are a couple of other reasons that they've cited.

[06:03:09] Weldon Cooper said that we have had an increase in students going to private school from the pandemic, and that has remained, as you can see, in the last 12 years. went from uh we've we've we've doubled that uh those numbers are still relatively small compared to the overall 1.2 plus million students in virginia but that is also affecting some of the enrollment rates that we have but again i think live births are a real real story um those started declining and now those students would be entering kindergarten and are not entering kindergarten

[06:03:45] just because there's less of them to do so. Thanks, Dave. And just with that as context and highlighting the enrollment data input was such a critical part of the rebenchmarking process.

[06:04:05] To date, we've gone through two waves of enrollment projections. And as we've labeled here, as we typically do at the beginning of the rebenchmarking process, we need to start the incremental process to build the cost changes with an initial fall membership and ADM estimate.

[06:04:25] That initial projection was made in the early part of the summer before we had the benefit of some of the Weldon Cooper research and also the critical fall membership data point from this past fall that for the first time, as Dave indicated, really has signaled the beginning of enrollment decline in Virginia K-12 related to the

[06:04:59] slowing of the birth rate. That June projection was in a growth scenario. All of the historical data, all of the historical growth factors if you discounted the significant disruption that occurred during the pandemic with with the you know 40 or 45 000 student drop but moved back from that in in the most recent past we were in a scenario of about a half a

[06:05:33] a percent increase in enrollment in Virginia each year. That was the latest historical data we really had available in June. That step five cost impact now almost from six months ago did represent an increase, projected increase in students and associated costs. However, step 29 was a substantial turn as fall membership from school divisions came in, as we had

[06:06:11] additional detailed information from Weldon Cooper on birth rate patterns across localities. We made an initial November projection that significantly turned the number of students downward with the associated decrease in cost. The per pupil value at that point was significantly higher. So the value in step five on a per pupil basis early in the re-benchmarking was much lower

[06:06:50] than the value in step 29. So when we took students out in step 29, the reduction in loss or reduction in funding due to lowering of the projection was much greater and a little more dramatic there.

[06:07:08] That really is a reflection of going through most of the re-benchmarking process to date and the value of those per-pupil amounts when we remove students from the projection resulted in more of a per-pupil reduction in funding.

[06:07:27] We've continued with DPB and others to continue to refine ADM projections during November and December. There will be a final ADM projection, and that will be part of the governor's introduced in the coming days. In addition to student enrollment is just one of the critical factors in the process, local composite indexes as well. Although it's set by policy, it's a re-benchmarked

[06:08:03] factor in and of itself because the components in the formula are updated every two years. ADM, local population, the three indicators of ability to pay that are underlined there towards the bottom of the slide, true value of property, adjusted gross income, taxable retail sales.

[06:08:25] In and of itself, the formula is updated for all of the component data elements, but the formula itself is established by policy of the General Assembly and set out in detail in the state appropriation act we have released as we typically do for local planning purposes for school divisions and local governments and their local planning process for the next biennium we've released their values their composite index values for 24 26 at the

[06:09:04] end of the month but the state cost impact of making that data update which can be a savings or a cost depending on the direction that's still under review and would be a component of the governor's introduced budget. Here is the formula. It is a relative formula of local values of the ability to pay indicators to value of property, which is taxable real estate,

[06:09:40] adjusted gross income, compensation and salaries in locality, taxable retail sales activity. Those are the three defined indicators of ability to pay for public education in a locality.

[06:09:58] Essentially, this is a measure that culminates in a percentage for an individual school division, and it's expressed as a ratio or a percentage of local values relative to state values, and the associated weighting is specified in the Appropriation Act by the General Assembly.

[06:10:21] The very final 0.45 weight is set by the General Assembly as well. That establishes an overall local share across all divisions of 45 percent of cost when the All composite indices are applied to the formulas and 55% state share.

[06:10:44] And then once the composite index is re-benchmarked every two years, then of course it's applied. It doesn't just stand alone. It's then input back into the formulas as part of the re-benchmarking process.

[06:11:01] impacts state and local shares compared to the prior composite index values that were resident in the funding streams. You can see as the SOQ cost that we reviewed previously, the hierarchical model that derives the per pupils and the total cost, that it's time to apply the composite index to each of those accounts, again, individually by school division, and each school division

[06:11:37] derives its state share and local share of funding individually, but again, the index is designed to fund an average local share across all divisions, 45 percent, 55 percent.

[06:11:55] Then wrapping up, we presented costs known to date based on the publication date of the presentation.

[06:12:10] Work continues as it always does, and these are some of the pending updates, among others, that are dependent on data availability later into November, into December, that will culminate in the governor's introduced budget in December on some of the key cost impacts or final updates that will impact cost again the composite index again a final final revisions to enrollment projections as we had final certified full membership data points

[06:12:48] from every school division. In October and into November, a final wave of refined projections will occur. Revised sales tax projections, which tend to come in the November-December time frame from taxation. And then, of course, for part of the salary benefits package for SOQ positions, the funded fringe benefit rates from Virginia Retirement System. But again, other technical updates that occur in the final weeks as the final cost of SOQ and direct aid re-benchmarking

[06:13:28] process finishes up for the governor's budget. So, Madam President, that completes our slides. Thank you so much. Does anybody have questions for any of the gentlemen here? Ms. Holton?

[06:13:46] Thank you all. And I revised my claim earlier that there are three people in Virginia that understand the uh uh uh our funding formula to add two more because uh your your colleagues were blessed to have uh them on on on this uh podium uh my question is and i don't uh well in my ignorance there may be an obvious easy answer to this but uh it's my understanding that the senate

[06:14:20] finance committee and the uh house appropriations committee staff uh have um quite different projections of the re-benchmarking costs that they shared in their committee meetings in december it's my impression that your estimate is fairly low as the you know not i don't mean low relative to the what it should be but low historically re-benchmarking cost is often well above this figure that's your bottom line, and that their numbers are much higher. And so my question

[06:14:57] would be, can you help me understand, and I'm not used to you all not agreeing, you all are the five people between you that understand this. So how come you all in the committee staff are in, am I right you're in different spots and why? Yeah, I don't think we can speak to where the Senate and house finance committees we can't just gave a detailed presentation on his numbers but we can't speak to um the calculations of other entities well if i may just respond it would certainly be i'm sure that this uh illustrious group here has seen those uh projections and to help us understand i

[06:15:35] mean are they where are they different to help pinpoint where the questions where the differences are is not to say who's right or who's wrong but just to based on what they i'm sure they've seen those um presentations uh they're public and uh without without asking you to base it on anything private conversations you may or may not have had with any of those folks but just based on their public presentations to me helping us understand you know if the free

[06:16:11] If the general assembly thinks it's going to cost 900 million and we think it's going to cost 160 million, it's just in wildly different places. And I would think these very competent individuals could help us. I am going to compliment these individuals who spent five months.

[06:16:29] And as I've sat down with them and looked at what they actually do, that 31 line step formula occurs for every single school division in the state, and is an extensive process. I have seen them work many late hours focusing on our model, so I just want to thank them for the hard work they've done in the re-benchmarking for the department.

[06:16:49] If I may, and yet I'm sure they can tell us where others have gone wrong, if need be. If I'm correctly understanding, you're directing them not to answer my question, Dr. Coons? I'm not directing them to do anything, but Madam President asked me to respond, and I responded.

[06:17:12] Madam President, can I ask the staff, the knowledgeable staff, to help illuminate this question? I think I would rather have that come out through the processes that they will be engaged in during the General Assembly. I know that you guys spend quite a bit of time up there with those other entities, and so I'm sure we will see how that rolls out in new time.

[06:17:38] So I understand you're directing them not to answer the question today. Is that correct? I'm not directing them one way or the other. I'm just saying, I think that, you know, it's hard for us to say who's right and who's wrong. And I think it puts them in a position with colleagues that they have to work with to basically be saying whether they feel like they are right or wrong. And I think that's a wrong place for us to put them in.

[06:18:04] Madam President, if I may, just one comment. All projections would be incomplete in the October-November timeframe solely because there are major data points and data elements that simply aren't available. So at any point before the governor's introduced budget, which will culminate the

[06:18:31] So that's really going to be the final say in the culminating cost. At any point, it's typically going to be an incomplete projection because in the November timeframe, when presentations and estimates have to be cut off, there are key major data points that simply are not available that can affect the costs quite significantly.

[06:18:56] So it's difficult for DOE staff and even other staff who may be projecting costs to signal or indicate that that's the final word on what the cost is going to be in the November timeframe.

[06:19:17] There are critical pieces weekly that affect the process. Only during the governor's introduced budget at that point has it fully culminated, and that's a complete cost. So I think any estimate is incomplete prior to the governor's budget.

[06:19:39] Well, I appreciate it, and I'll just move on. And I didn't mean to be putting anybody on the spot, but I would love to be illuminated as to why smart people are coming to different conclusions. And I'm sorry we can't hear that from these smart people today.

[06:19:55] I do have another question, which is I see in the you referenced removing one time spending programs. And I see I think both step two and step 28 reference some pretty big numbers for that. Is one of the one-time programs that you removed from the calculation the $418 million in learning loss recovery that was put in the current biennium budget for one-time spending?

[06:20:24] Yeah, among other items. And again, it's not uncommon for there to be one time or short duration, one bionium only funding streams that inevitably happens because there are funding streams that meet particular short-term needs.

[06:20:40] The critical thing about the flexible funding that as school divisions get paid that money this year as they file their plans with DOE is substantial flexibility to use that funding over three fiscal years.

[06:20:58] And the plans they're formulating to provide the services, by and large, are planning and streaming that funding over two to three years. In most cases, over three years through the end of FY26.

[06:21:15] So that funding stream, and that was substantial flexibility the governor and the General Assembly provided to allow school divisions, while it's an FY24 appropriation, a lot of the use of that funding is going to carry over into the next biennium.

[06:21:34] and there's substantial discretion and flexibility for school divisions to continue to use that funding. As conditions change or don't change, that funding stream is going to be closely monitored by the department in terms of future needs two or three years out in future needs of school divisions as we approach the end of the three-year period. But a key critical piece of

[06:22:10] that funding stream is the ability to use it over three years. Kent, you had said that one-time funding by policy and has happened in other re-benchmarking because you've done this many times is not included typically. Is that correct? That's correct. That's correct. Right. So what you're telling this funding wasn't any different from it it's it's not that the department made some different decision about how to use it but rather that the fact that the general assembly allocated that money on a one-time basis rather than as a longer term but if the general assembly in his

[06:22:45] wisdom thinks that the learning loss impact is the need for tutoring extra funding for those other purposes literacy act etc then they would need to be separately accounted for when the general Assembly addresses the bottom line. That issue, you know, studied and addressed and reviewed, you know, as we move through the all-in, you know, three-year cycle. And it's not unlike previous biennium when there's been forms of, you know, one-time hold harmless funding. It clearly and usually is in language by the General Assembly that it's intended to be one year or one biennium funding to address some temporary need. And that, you know, that is quite common for

[06:23:24] those one-time pots of money to come back out. And on an appropriation basis, they are a negative. They are reducing money because we're starting with the FY24 base. But again, what differentiates the all-in is substantial flexibility to use that money over three years, which is typically not the case with short duration money that is coming out that the General Assembly has appropriated in the

[06:23:58] past. This really has substantial flexibility. Dr. Northern. I think my question is for Mr. Lanza. This is like one of my favorite reports and it looked like you advised them. This is the school district funding that was commissioned as a part of the Hunt Institute bipartisan legislator meeting in 2018. Do you remember this report? Not in the least.

[06:24:24] okay in the back is the main person they're thanking for all the information and that's good for me so i'll pass it around to you um but i wanted just to read from it because i i get that we're you know we're all like oh my gosh this is so piecemeal it's driving all of us crazy um just interest because we want to get to a better place where it's more transparent and understandable and and drives money where it needs to be driven um this report let me just i would just want to get get your opinion on it because you are listed as their source. It says in 2017, the state formula resulted in slightly progressive funding across districts in terms of student poverty, meaning

[06:25:04] students living in poverty are on average enrolled in districts with slightly higher per student spending. That's what we want. Students of color were also enrolled in districts with slightly higher cost funding per student than white students on average. In contrast, rural students were enrolled in districts with lower average per student funding and cost adjusted dollars.

[06:25:25] And then they said this, which was the key to me, and I think it's something that I'm picking up from you, Mr. Dickey, changes to the existing formula generally produce modest effects on equity. Tinkering around with this like we've been doing generally produces modest effects on equity. And by equity, I mean driving money to the kids who are most at risk and often commits additional state resources. However, distributing state sales tax revenue earmarked for education more progressively. So they're saying if you finagle with the state sales tax revenue, that's where

[06:26:04] you're going to see the most bang for your buck. Earmarked for education more progressively. So we drive those dollars to the at-risk kids instead of doing all this Christmas tree stuff that we just saw with all those lines. Or computing the composite index using the total population per capita, so I think right now we don't use the total population per capita, we use something else, could result in very large changes in equity without increasing state funding, which is hard for me to believe, but I'm just here to ask you, like, that was their key thing coming out of the Hunt Institute, not even using a student base. They're still working with the staffing-based

[06:26:41] formula we're talking about here today, so I guess I'm asking you, is that true, or would you say I agree or disagree with that, or would we get more bang for a buck looking at these other areas instead of trying to add on all these lines that i'm looking at well i'd argue that you know that particular piece is pretty difficult to to answer straight up since you know the factors that kent went over in detail earlier can earlier can change quite a bit yes we do have we do use population as a factor in the composite index but it's the minority uh factor whereas two-thirds of it is

[06:27:15] on a per student basis and one-third of it is on a per capita basis you could certainly if you were looking at data in one biennium and you played with that particular factor that could certainly uh impact your your distribution of state and local share statewide like that could very easily happen we have you know we do both of those calculations but the directive in the appropriation act is to wait at two-thirds one-third so yes you could have you could have state impacts by making those types of changes for sure which way it goes could like i

[06:27:51] said varied uh depending on the biennium uh in terms of the the sales tax distributions again uh you know that that's a you know we distribute most of our funding at the state level based on enrollment sales taxes distribution based on school age population which is a data element we get from weldon cooper so again two different factors you could have two completely different calculations is correct yeah it's correct and so i i'm just saying all this to encourage us to not get caught up because i think we're missing the the what do we say the missing the forest for the trees right like i feel like there are just such bigger things that we could be talking about

[06:28:31] um even using our current trying to get to where we want to be formula i'm no i'm not you got obviously but i just keep coming back to this report and would encourage you if you haven't looked at it recently to look at it um because it gives like this last page it tells you like if we did these 35 different things here's how it would affect the downstream um and apparently a lot of you i mean it says uh we thank the department grateful to edward lands at the department for his help and guidance understanding the soq and his feedback on this brief so anyway

[06:29:03] that refresh your memory because it looked to me very useful other comments dr seabird i see you'd like to speak yeah my my question is probably more for the uh the question i'm getting from the people in the field i imagine she's also getting through these sort of attendees and whatnot and it looks like

well where i am on slide six the last bullet was the esser funds being part of the federal deduct step and so the question i'm getting from the field is if the esser funds

[06:29:40] weren't part of the um the state budget process rather being conducted at this stage and i'd like to be able to answer that question and uh which one's got a good answer for me i'm definitely going to defer to mr dickey uh mr seaberg yeah you you know the current policy of the federal revenue design which the the intent of the general assembly of that step in the formula um and it's really a long-standing policy when we hold base year expenditures from school divisions

[06:30:17] that drive into the formula and it's for the support component only um it's the intent of the general assembly that federal spending that elevates those expenditures not not unduly uh increase or influence the the costs that are funded back through the formula um that that You know, the Commonwealth should only recognize in the support component expenditures that, you know, as best to be determined from state and local funds and discount or try to remove a portion that are attributable to federal funds.

[06:30:56] And so that's been a longstanding policy adjustment in the formula, and typically there's a factor of approximately 30 or 35 percent proration to reduce federal grant revenue, to reduce it in terms of the amount being picked up for support costs in the SOQ.

[06:31:26] FY22 is our base of expenditure data used for re-benchmarking to fund support costs in the SOQ. That, of course, was a major year for school divisions to pull down and receive ESSA reimbursements, as you know.

[06:31:48] And that data very clearly elevated school division spending that we picked up on their FY22 annual financial records. So like other federal grant sources such as Title I, IDA, other things that are part of that biennial adjustment in terms of federal funding, ESSER funding in the cycle of FY22 data was also picked up and included in that deduct. It does have the effect of increasing the federal revenue deduct,

[06:32:29] but offsetting that is a substantial increase in the support funding in the formula. To align to the General Assembly's policy of removing some of the influence of federal funding the formula esser funds in the in the cycle of this biennium uh re-benchmarking what was included in the deduction okay thank you kent that's very helpful um so as you captured that data

[06:33:09] were you looking at esser funds as a net as a total or are you looking at the funds in terms of what was going to stand up versus what was put into you know in the very beginning versus what with capital improvements or if it has related to cash or how to spend different ways in different places?

[06:33:27] Yeah, we're right. Like every other federal funding source, Title I, Title II, IDEA, that go into that adjustment. We include actual federal revenues, actual federal funds DOE pays to school divisions when they draw down reimbursements during the fiscal year.

[06:33:45] So we accumulate it all by school division. Again, it's an adjustment by school division. For FY22 as our base year, by school division, we added up their Title I, their Title II, all of their federal funds, including ESSER, and for the funding formula to make that adjustment.

[06:34:06] But it's based on actual federal reimbursements in the fiscal year data used. Dr. Siebert, you okay? Yeah, so I think what I'm hearing is that the whole amount of ESSER, the whole amount that it was

factored in versus the proportion of ESSER that were actually spent on support staff versus spent on capital projects versus spent on, you know, the...

[06:34:38] You're right. That is a critical component of that adjustment. We don't deduct dollar for dollar of the federal funds received by school divisions. deduct an estimated support portion that the federal spending contributes to and that's approximately 30 to 35 percent typically um so it's not a dollar for dollar deduction approximately 30 35 percent um component of of soq support cost anything further thank you so much

[06:35:18] okay so at this time we are at discussion of current issues anybody have anything i want to thank the board members. We've had six of eight listening sessions all in the evening in between Thanksgiving and now and we have had Amber at two board meetings, Grace you're going to be at two board meetings, and you've been at a board meeting. Alan, I really want to appreciate the opportunity to have you at listening sessions and have the opportunity to engage with so many

[06:35:55] community members, so many educators, so many parents who really care. We've had over 40 to 80 members our community members and every single listening session and really getting great feedback great input and great conversations around our next steps so looking forward to bringing that summary i also want to give a huge thank you to the hunt institute who has facilitated all those taken notes and both in and chad who you know well and high slop and um chad have done a great job opening those meetings summarizing the intent of the board so those have been a major

[06:36:30] lift that several of you and several different partners have helped us with and we're getting really great feedback and really great community engagement and appreciate that tremendously i'm looking forward to having some direction today on the work plan and some of the focus on accountability the feedback i'm focusing on a student weighted funding formula and continuing to deep dive on virginia literacy act as we've started to really start showing you district district literacy plans and adoption um but I want to most thank the staff the senior leadership some of the staff who presented today have absolutely put in a tremendous amount of time to give you

[06:37:09] data on the soq prescriptions to work through funding to work through that they have put in countless hours to put in the projections and the work and the things that they have done for you and for various parts of the budget and various parts of the re-benchmarking and really have head down working on this work and i have seen mr dickey here very late many many nights doing dedicated work to get that that space i just want to thank them and thank the agency for all they've done to do the data work to do all the work you've heard some of the challenges in our current data

[06:37:44] system and all the time they put into that has just absolutely been tremendous while still really stepping up their support for school divisions you know our school divisions are doing great things like we saw the presentation today but we are trying to emphasize our support of school divisions walking side by side on initiatives and i'm incredibly proud at the year end of all the things they've been doing to support school divisions to put great data in front of you and to really produce the best product they possibly can so just want to end by saying thank you tim

[06:38:15] anyone else miss holton yes kudos to staff one thing i want to flag is that we just have a lot of new staff i also understand we've got a number of i think i'm right we've got a number of outstanding vacancies still at the department and i don't know who a lot of these folks are so uh nevitrol is um sounds

wonderful but new to us um i understand that we've got i i think they i know we've got some vacancies in accountability and assessment which i would think are particularly important

[06:38:54] given our work plan our hopes for the work plan for 2024 um and if i'm wondering if the superintendent can give us an update and it doesn't need to be now it could be maybe best a written report but just sort of helping us know who are the key leadership i feel like a lot of your key leadership people are still brand new to me um and uh so and that there are significant vacancies and uh maybe not you're maybe you've addressed most of the vacancies now

[06:39:24] But if we could understand, if we could get some update on the org chart and the background on the key leadership folks who are new and some update on the plans for addressing key vacancies, certainly in accountability and assessment, for instance, that would be really helpful.

[06:39:47] Our website, and I want to give a huge shout out to that team, has been updated our ELT. I'm happy to give you an annotated version as the board. We don't have key vacancies. I have one assistant superintendent vacancy at this time, and the director of accountability for our last day was yesterday. So that is posted and will be transitioned very quickly and is a priority in that space. So I'm not sure what you're talking about, but we will be happy to give a staffing update in January.

[06:40:15] So if I may, is the director of accountability position that, that wasn't Shelly's position yesterday. Shelly left earlier. That is correct. And we have other members working in that position and working through that. And then we have a deputy of assessment and support and performance that has a deep background in similar roles as Shelly's.

[06:40:37] So Shelly's position is still vacant and then the director of accountability is now. I'm not sure we are filming Shelly's position. I'm happy to give you an update in January. So, wonderful. And the update, yeah, just so we, on that crucial work, accountability and accreditation assessment, et cetera, two people who were here are no longer here. If we can know who's doing that work and who to work with. And just as I say, really, just if we can really get regular updates on the, not just who's leaving, but on who's coming so that we get.

[06:41:09] I'm happy to provide you an update in January. Madam President. Mr. Stardappen. I do have something. Okay. um i was happy to hear about at some of the listening events um cursive writing came up and i was happy to hear about that i i do hope that we can get it back in full um i was asked a question well if we bring cursive writing back what are we going to get rid of well i don't think cursive writing should have left in the beginning so hopefully we can work it out i also want to thank the staff for their hard work they do a lot they present a lot and they get a lot of tough

[06:41:48] questions asked upon them so i'm grateful for them and now that we have this holiday coming up i would like to wish all the staff a very merry christmas and hopefully we can get some snow thank you madam president you mean you didn't have snow yesterday i did not oh i had an excited seventh grader who said so do i have to go to school today yes you do anyway yeah so uh anything else from anyone today dr northern i'd also like to end on a positive note um i feel like we had a kind of

[06:42:22] a rough meeting or at least i i felt that a little bit today um and i felt like um you know some of us were you know maybe a little bit at crosshairs and maybe not just in terms of our understanding or lack thereof about some components of this meeting but i just wanted to say that i'm really looking forward to working with this team in 2024 and the staff uh we've got so much important work to do um but it's

exciting work you know anytime anybody asks me about how's it how's it going on board i say it's going great like we got a lot of important work to do and it's not easy um and we

[06:42:56] don't always you know it's not all kumbaya um but just as we walk into a new year um i hope we come back refreshed and renewed and uh ready to collaborate uh and get the get some tough work done for all of the commonwealth's children and um i know the staff feels the same way i look back here and i see almost every seat filled um so they're here to support us and listen in and um you know and take away all the supposedly some good ideas that we uh that we uh discuss up here so thank you all and and thank you co co-board members and dr coons madam president i lost my

[06:43:31] voice i miss kilgore concur with every single thing that dr northern said every single thing and the staff has been extraordinary i'm still learning i shared that with you lunch today but uh i'm very proud to be a part of this team um we don't always agree but we always respect each other that's what it means and matters at the end of the day and i wish every single person on the board and on the staff a very merry christmas i look forward to seeing you in the new year okay mr rotherham it's your turn i won't belabor it very good you like the holiday spirit is just

[06:44:09] broken out around the diet so i just wanted to say echo the kind words on um uh on staff and all the work it's been i mean a lot has gotten done it's a busy agenda but uh it's a fantastic effort i'm i'm very grateful and they also thank my colleagues i think these are hard questions we're not always going to agree but do you think people bring up really great spirit of sort of joy to be here and respect uh respect to it and so it's a it's a fantastic board to be a part of thank you dr siebert yeah this is actually some questions on the individual items i also think

[06:44:45] but people say man that's a lot of you got on the agenda coming up and so truly that gets back to the confidence of the staff and that brings your team because again i think everybody understands that we had a background with work to get done and so i appreciate all the hours and efforts have taken to create these agendas and and clearly this extra meeting was necessary to help us it's almost like exam week so like two of my own men are exam week right now uh they're trying to finish up a whole lot of assignments in a short period of time and that's kind of what we've been doing and so that's a burden uh and so thanks to everybody involved

[06:45:19] sorry it was a better day and you're continuing to feel better and um and just uh great great great christmas well miss holton you're here thank you everyone and we look forward to seeing you in the new year um and for everybody who's watching um on our public live stream we wish you happy holidays and a very happy new year. And so we will see you in 24. We're adjourned.